Democratic Republic of Congo
Ministry of Water Resources and Electricity
Water Project Implementation Unit
(CEP-O)

Tender documents (RFP) for supplies
(Two-Envelope Process)
Acquisition and installation of smart meters as well as the supply of calibration bench assembly equipment in the pilot areas of the cities of Kinshasa and Kananga

Call for Tenders No	:	**02/ZR-CEP-O-414380-GO-RFB/AGREE/2025**
Project	:	**Access, Governance and Reforms of the Electricity and Water Sectors Project "AGREE"**
Buyer	:	**Water Project Implementation Unit (CEP-O)**
Title of the contract	:	**Acquisition and installation of smart meters as well as the supply of calibration bench assembly equipment in the pilot areas of the cities of Kinshasa and Kananga**
Loan/Credit/Grant No	:	**IDA Credit No. 7066-ZR and IDA Grant No. D9890-ZR**
Country	:	**Democratic Republic of Congo**
Issued on	:	**June 19, 2025**
Receipt of tenders	:	**July 24, 2025**

Table of Contents

PART ONE - Tendering procedures 3

Section I. Instructions to Bidders (SI) 5

Section II. Specific Tender Data (DPAO) 41

Section III. Evaluation and Qualification Criteria 53

Section IV. Submission Forms 63

Section VI. The Bank's Rules on Fraud and Corruption 93

PART TWO - Buyer's Needs 97

Section VII. List of Supplies, Delivery Schedule, Technical Specifications and Plans 99

PART THREE – Contract Clauses and Forms 109

Section VIII. General Administrative Clauses (GACC) 111

Section IX. Special Administrative Clauses (CCAP) 138

Section X. Contract Forms 149

PART ONE - Tendering procedures

Section I. Instructions to Bidders (SI)

Table of Clauses

A. General 8

1. Purpose of the Contract 8
2. Source of funds 8
3. Fraud and Corruption Practices 9
4. Candidates admitted to the competition 9
5. Supplies and Related Services That Meet the Eligibility Criteria 12

B. Content of the Tender Documents 12

6. Sections of the Tender Documents 12
7. Clarifications to the Tender Documents 13
8. Changes to the Tender Documents 14

C. Preparation of Offers 14

9. Submission Fees 14
10. Language of the Offer 14
11. Constitutive documents of the Offer 14
12. Letters of Submission 16
13. Variants 16
14. Offer Prices and Discounts 16
15. Offer and settlement currencies 18
16. Documentation that the Supplies and Related Services meet the original criteria and are in compliance 19
17. Documents attesting to the Bidder's eligibility and qualifications 19
18. Offer Validity Period 20
19. Quote Guarantee 21
20. Form and Signature of the Offer 23

D. Submission of Bids 23

21. Sealing and Marking of Offers 23
22. Deadline for submission of tenders 24

23. Late bids 25
24. Withdrawal, Substitution and Modification of Offers 25

E. Public Opening of the Technical Parts of the Tenders 25

25. Public Opening of the Technical Parts of the Tenders 25

F. Evaluation of Bids - General 27

26. Privacy 27
27. Clarification of Offers 28
28. Discrepancies, Reservations or Omissions 28
29. Non-compliance, errors and omissions 28

G. Evaluation of the Technical Parts of the Tenders 29

30. Evaluation des Parties Techniques 29
31. Determination of Compliance 29
32. Qualifications of Bidders and Detailed Evaluation of the Technical Part 29

H. Notification of the Evaluation of the Technical Parts and Public Opening of the Financial Parts of the Bids 30

33. Notification of the Evaluation of the Technical Parties and Public Opening of Financial Offerings 30

I. Evaluation of the Financial Parts of the Bids 32

34. Evaluation of Financial Parties 32
35. Arithmetic Error Correction 33
36. Conversion to a single currency 34
37. Margin of preference 34
38. Comparison of Financial Parts 34
39. Abnormally low bids 34
40. Combined Evaluation of the Technical and Financial Parties 35
41. Buyer's Right to Accept Any Bids and Reject One or All Bids 35
42. Waiting period 35
43. Notification d'Intention d'Attribution 35

K. Award of the contract 36

44. Award criteria 36
45. Buyer's Right to Change Quantities at the Time of Contract Award 36

46. Notification of the award of the contract 36
47. Debriefing by the Buyer.....37
48. Contract Signature 38
49. Guarantee of Good Performance 38
50. Procurement Claims.....39

Section I. Instructions to Bidders (SI)

A. General

1. Purpose of the Contract

1.1 Following the tender notice indicated in the Specific Data of the Call for Tenders **(DPAO),** Buyer, as set out in the **DPAO**, issues this Tender Documents for the Supplies and Related Services specified in Section VII, List of Supplies, Delivery Schedule, Technical Specifications and Plans. The name, identification number and number of lots that are the subject of the call for tenders (RFP) are listed in the **DPAO**.

1.2 Throughout this Tender Documents:

a) The term "in writing" means communicated in written form (by post, e-mail, fax, including if specified in the **CAPP**, distribution or delivery through the electronic purchasing system used by the Buyer) with acknowledgement of receipt

b) If the context requires it, the singular designates the plural, and vice versa; and

c) The term "day" means a calendar day, unless otherwise specified as a "Business Day". A Business Day is a day that is an official working day in the Borrower's country. This excludes the Borrower's official holidays.

2. Source of funds

2.1 The Borrower or payee (hereinafter referred to as the "Borrower") whose name appears in the **DPAO** has applied for or obtained financing (hereinafter referred to as "the funds") from the International Bank for Reconstruction and Development or the International Development Association (hereinafter referred to as the "Bank") in the amount indicated in the **DPAO**, to fund the project described in the **DPAO**. The Borrower intends to use a portion of the funds to make authorized payments under the Contract for which this solicitation is being issued.

2.2 The Bank will only make payments at the request of the Borrower, after approving such payments, in accordance with the articles and conditions of the financing agreement between the Borrower and the Bank. The financing agreement prohibits any withdrawal from the Loan Account for payment to any natural or legal person, or any importation of supplies where, to the knowledge of the Bank, such payment, or importation, is prohibited by the Security Council of the United Nations under Chapter VII of the Charter of the United Nations. No party other than the Borrower may assert any

of the rights stipulated in the financing agreement or purport to have any claim on the funds arising from the loan.

3. Fraud and Corruption Practices

3.1 The Bank requests that the Bank's Anti-Bribery Guidelines and its sanctions policies and procedures as set out in the Bank Group Sanctions Framework, as contained in Section VI, Fraud and Corruption, be implemented.

3.2 For the purposes of these rules, Bidders shall allow and cause their agents (when declared or not) subcontractors, service providers, suppliers and staff to allow the Bank to examine accounts, accounting records, statements and other documents relating to the prequalification process, bid submissions and contract performance (if awarded) and to submit them for verification to auditors appointed by the Bank.

4. Candidates admitted to the competition

4.1 A Bidder may be a private or public company (subject to the provisions of ITB 4.6) or any group of such companies under an existing agreement or as evidenced by an intention to form such an agreement supported by a letter of intent and a draft grouping agreement. In the event of a grouping, all the members constituting it shall be jointly and severally liable for the performance of the Contract in accordance with its terms. The consortium shall appoint a Trustee with the power to validly represent all its members during the call for tenders, and in the event of the award of the Contract to this consortium, during the performance of the Contract. Unless the **DPAO** provide otherwise, the number of participants in the grouping is not limited.

4.2 A Bidder may not be in a conflict of interest. Any bidder in such a situation will be disqualified. A Bidder is considered to be able to have such a conflict in the context of this Bidding process if it is in the following situations:

a) It directly or indirectly controls another Bidder, is under the control of another Bidder, or is under common control with another Bidder; or

b) It receives or has already received, directly or indirectly, subsidies from another Bidder; or

c) It has the same legal representative as any other Bidder in the context of this Call for Tenders; or

d) It has a relationship with another Bidder, directly or through a third party, which puts it in a position to influence the bid of another bidder or to influence the decisions of the Buyer in connection with this call for tenders; or

e) The Bidder or one of the firms with which it is affiliated has provided consulting services for the preparation of specifications, plans, calculations and other documents for the supplies or services that are the subject of this Call for Tenders; or

f) The Bidder has itself, or one of the firms with which it is affiliated, has been or is to be recruited by the Borrower or the Buyer, to supervise or control the supplies or services in connection with the Procurement; or

g) The Bidder shall provide goods, works or services, other than consultancy services, which are a result of or directly related to the consultancy services provided for the preparation or execution of the Project referred to in the CAOPs with reference to ITB Article 2.1, which it had provided itself or which had been provided by any other company affiliated with it and which it directly or indirectly controls or which controls it or with which it is subject to joint control; or

h) The Bidder has a close business or family relationship with a member of the Borrower's staff (or of the staff of the Project Executing Entity or a beneficiary of part of the Loan): (i) who is directly or indirectly involved in the preparation of the Tender Documents or the Contract Specifications, and/or in the Bid evaluation process; or (ii) who may be involved in the execution or supervision of the Contract, unless the conflict arising out of that relationship has been resolved to the satisfaction of the Bank during the selection process and the performance of the contract.

4.3 A company that is a Bidder (individually or as a member of a GE) must not participate in more than one Bid, except for permitted Alternative Bids. This includes participation as a processor. This participation will result in the disqualification of all offers in which the company is involved. A company that is not a bidder or member of a GE may participate as a subcontractor in more than one Bid.

4.4 Subject to the provisions of ITB 4.8, a Bidder may be a national of any country. A Bidder shall be deemed to be a national of a particular country if it is incorporated, or registered, and subject to its law, as reflected in its articles of association or equivalent documents and registration documents. This criterion will also apply to the determination of the nationality of the subcontractors and suppliers of the Contract, including Related Services.

4.5 A bidder that has been sanctioned by the Bank under the Bank's Anti-Fraud and Anti-Corruption Guidelines, and in accordance with the applicable policies and sanctions as set out in the World Bank Group Sanctions Regime, and described in Section VI, paragraph 2.2 d, will be ineligible to be pre-qualified, pre-qualified, to submit a bid or proposal or to be awarded a Bank-financed contract or receive a profit (whether financial or otherwise) of such contract for such period as the Bank may determine. . The list of exclusions is available at the e-mail address mentioned in **DPAO**.

4.6 Public institutions in the Buyer's Country are eligible to participate on the condition that they can establish to the satisfaction of the Bank (i) that they enjoy legal and financial autonomy, (ii) that they are governed by the rules of commercial law, and (iii) that they are not under the supervision or supervision of the Buyer.

4.7 The Bidder shall not be subject to a temporary exclusion under a Declaration of Guarantee of Offer or Proposal.

4.8 Companies and individuals may be ineligible if indicated in Section V, Eligible Countries, and

(a) the law or regulation of the country of the Borrower prohibits business relations with the country of the company, provided that it is established to the satisfaction of the Bank that such exclusion does not prevent effective competition for the supplies and related services subject to this Tender; or

(b) if, pursuant to a decision taken by the Security Council of the United Nations under Chapter VII of the Charter of the United Nations, the country of the Borrower prohibits any importation of supplies from the country of the enterprise or any payment to natural or legal persons of that country.

4.9 The Bidder shall furnish such documentation as the Purchaser may reasonably require, establishing to the satisfaction of the Purchaser that it continues to be eligible to compete.

4.10 A company that is sanctioned by the Borrower for exclusion from its markets will be eligible to participate in this process unless, at the request of the Borrower, the Bank determines only the exclusion:

(a) is related to fraud and corruption, and

(b) has been made in a judicial or administrative proceeding that is fair to the company.

5. Supplies and Related Services That Meet the Eligibility Criteria

5.1 All Supplies and related Services covered by this Procurement and financed by the Bank may originate from any country in accordance with Section V, Eligible Countries.

5.2 For the purposes of this Clause, the term "supplies" means products, raw materials, machinery, equipment and industrial plants; and the term "related services" includes services such as insurance, installation, training and initial maintenance.

5.3 The term "origin" refers to the country where the supplies are extracted, grown, produced, manufactured or processed; or the country where a process of manufacturing, processing or assembling components results in a marketable article whose basic characteristics are substantially different from those of its components.

B. Content of the Tender Documents

6. Sections of the Tender Documents

6.1 The Tender Documents (RFP) consists of Parts 1, 2 and 3, which include all the sections listed below. It should be read in conjunction with any additives, if any, issued in accordance with Article 8 of the SIB.

PART I: Tendering procedures

- Section I. Instructions to Bidders (SI)
- Section II. Specific Tender Data (DPAO)
- Section III. Evaluation and Qualification Criteria
- Section IV. Submission Forms
- Section V. Eligible Countries
- Section VI. Fraud and Corruption

PART TWO: Buyer's Needs

- Section VII. List of Supplies, Delivery Schedule, Technical Specifications and Plans

PART THREE: Contract Clauses and Forms

- Section VIII. General Administrative Clauses (GACC)
- Section IX. Special Administrative Clauses (CCAP)
- Section X. Contract Forms.

6.2 The tender notice issued by the Buyer does not form part of the tender documents.

6.3 The Buyer shall not be liable to the Bidders for the integrity of the Tender Documents, responses to requests for clarification and addenda to the Tender Documents in accordance with ITB Article 8, if they have not been obtained directly from the Buyer. In the event of a contradiction, the documents issued directly by the Buyer shall be authentic.

6.4 The Bidder must review all instructions, forms, conditions and specifications contained in the Tender Documents. It is the responsibility of the Contracting Party to provide all the information and documents requested in the Tender Documents.

7. Clarifications to the Tender Documents

7.1 An applicant wishing clarification of the documents should contact the Buyer in writing, at the Buyer's address indicated in the **DPAO**. The Buyer shall respond in writing to any request for clarification received no later than the time period specified in the **DPAO** before the deadline for submitting tenders. The Bidder will send a copy of its response (indicating the question asked but without identifying the author) to all potential candidates who have obtained the Tender Documents in accordance with ITB 6.3. If the DPAO so provides, the Buyer will also publish its response on the website identified in the **DPAO**. In the event that the Buyer deems it necessary to amend the Tender Documents following requests for clarification, it shall do so in accordance with the procedure stipulated in Articles 8 and 22.2 of the ITB.

8. Changes to the Tender Documents

8.1 The Buyer may, at any time, before the deadline for submission of tenders, modify the Tender Documents by issuing an addendum.

8.2 Any Addendum issued shall be considered an integral part of the Tender Documents and shall be communicated in writing to all those who have obtained the Tender Documents directly from the Purchaser in accordance with ITB 6.3. The Buyer shall immediately publish the addendum on the website identified in Article 7.1 of the ITB.

8.3 In order to allow Bidders a reasonable period of time to take into account the amendment to the tender at the time of preparing their bids, the Purchaser may, at its discretion, extend the deadline for submission of bids in accordance with ITB 22.2.

C. Preparation of Offers

9. Submission Fees

9.1 The Bidder shall bear all costs relating to the preparation and submission of its tender, and the Purchaser shall in no way be liable

for such costs nor obliged to pay them, regardless of the course and outcome of the tender procedure.

10. Language of the Offer

10.1 The Bid and all correspondence and documents relating to the bid exchanged between the Bidder and the Buyer shall be in the language stipulated in the **DPAO.** The additional documents and printouts provided by the Bidder in connection with the tender may be drafted in another language provided that they are accompanied by a translation of the relevant passages to the Tender in the language stipulated in the **DPAO,** in which case, for the purposes of interpretation of the Tender, the translation shall be authentic.

11. Constitutive documents of the Offer

11.1 The Offer must consist of two Parts, namely the Technical Part and the Financial Part. These two Parties must be submitted simultaneously in two separate sealed envelopes (two-envelope tendering process). One of the envelopes must contain only information relating to the Technical Part and the other, only information relating to the Financial Part. These two envelopes must be enclosed in a separate sealed outer envelope marked "ORIGINAL OFFER".

11.2 The **Technical Part** will include the following documents:

(a) The **Letter of Submission – Technical Part**: prepared in accordance with Article 12 of the ITC;

(b) the **Offer Guarantee or the Offer Guarantee Statement** prepared in accordance with the provisions of ITB 19.1;

(c) **Variant offer – Technical part**, if their presentation is authorised, in accordance with the provisions of Article 13 of the ITC;

(d) written confirmation authorising the signatory of the Bid to bind the Bidder, in accordance with the provisions of Article 20.3 of the ITB;

(e) documents certifying, in accordance with the provisions of ITB Article 17, that the Bidder has the qualifications required to perform the Contract if its tender is successful;

(f) documents certifying, in accordance with the provisions of ITB Article 16, that the Supplies and Related Services to be provided by the Bidder meet the origin criteria;

(g) documents certifying, in accordance with the provisions of Article 16 of the ITB, that the Supplies and Related

Services comply with the requirements of the Tender Documents; and

(h) any other documents required **in the CAPD.**

11.3 The envelope containing the **Financial part** will include the following documents:

(a) The **Letter of Submission** – **Financial Part**: prepared in accordance with the provisions of Articles 12 and 14 of the ITC;

(b) the **applicable Price Schedules**, completed in accordance with the provisions of Articles 12 and 14 of the ITC;

(c) **Variant Offer – Financial Part**, if the presentation of variants is authorised, in accordance with the provisions of Article 13 of the ITC; and

(d) any other documents required **in the CAPD.**

11.4 The Technical Part shall not include any financial information regarding the price of the Offering. Where material financial information concerning the price of the Offer is contained in the Technical Part, the Offer will be declared non-compliant.

11.5 In addition to the documents required by Article 11.2 of the ITC, the Offer submitted by a Group of Companies must include either a copy of the Grouping agreement binding all the members of the Grouping, or a letter of intent to form such a Grouping signed by all the members of the Grouping and accompanied by a draft Agreement.

11.6 The Bidder shall provide in the Letter of Submission the information relating to the commissions and gratuities paid or to be paid, if any, in relation to its Bid.

12. Letters of Submission

12.1 The Bidder will submit its Letter of Bid – Technical Part and the Letter of Bid – Financial Part by completing the forms provided in Section IV, Bid Forms, without making any changes to its format, and no alternative format will be accepted, subject to the provisions of ITB 20.3. All sections must be completed to provide the requested information.

13. Variants

13.1 Unless otherwise specified in the **DPAO**, variants will not be considered.

14. Offer Prices and Discounts

14.1 The prices and discounts indicated by the Bidder in the Letter of Bid – Financial Part and the Price Schedules shall be in accordance with the stipulations below.

14.2 All lots and items on the List of Related Supplies and Services shall be listed and their prices shall be shown separately on the Price Schedules.

14.3 The price to be indicated in the Letter of Bid – Financial Part in accordance with Article 12.1 of the ITC will be the total price of the Offer, excluding any possible discount.

14.4 The Bidder shall indicate any unconditional rebate and the method of applying such rebate in the Letter of Bid – Financial Portion, in accordance with ITB Article 12.1.

14.5 The prices offered by the Bidder will be firm throughout the duration of the performance of the Contract by the Bidder and may not vary in any way, unless otherwise stipulated in the **DPAO**. A bid with a price revision clause will be considered non-compliant and will be rejected, pursuant to ITB Article 31. However, if the DPAO provide that prices will be revisable during the period of performance of the Contract, a firm price tender will not be rejected, but the revision coefficient will be considered to be zero.

14.6 If specified in ITB Article 1.1, Bids are solicited for individual lots (contracts) or for any combination of lots. Unless otherwise specified in the **DPAO**, the prices listed must be for all items in each lot, and for the full quantity listed for each item. Bidders wishing to offer a price reduction in the event of the award of more than one contract shall specify the reductions applicable to each group of lots or to each contract in the group of lots. **However, rebates conditional on the award of more than one lot will not be taken into account for the purposes of evaluating the tenders.**

14.7 The words "EXW, CIP" and other similar terms shall be governed by the rules prescribed in the latest edition of Incoterms published by the International Chamber of Commerce on the date of the call for tenders as specified in the **DPAO**.

14.8 Prizes will be indicated as required in each of the price schedules provided in Section IV, Submission Forms. The breakdown of the price between its different components will only be intended to facilitate the comparison of offers by the Buyer. It shall not in any way limit the right of the Buyer to award the contract on the basis of any of the conditions offered by the Bidder. The Supplier is free, by indicating the price, to use a carrier and to obtain insurance benefits from any country, in accordance with Section V, Eligible Countries. The prices proposed in the price schedule forms for Supplies and Related Services will be presented as follows:

a) For Supplies manufactured in the Buyer's Country:

i) the price of EXW supplies (ex-factory, factory, showroom, warehouse or sales store, as applicable), including any customs, sales or other duties already paid or payable on components or raw materials used in the manufacture or assembly of the Supplies;

ii) sales taxes and other taxes levied on Supplies that will be due in Buyer's Country if the Contract is awarded; and

iii) the price of inland transport, insurance and other local services related to the delivery of the Supplies to their final destination (Project site) specified in the **DPAO**.

b) For Supplies manufactured outside the Buyer's Country, i.e. supplies to be imported:

i) the price of CIP supplies-place of destination, in the Buyer's Country, as stipulated in the **DPAO** ;

ii) the price of inland transportation, insurance and other local services related to the delivery of supplies from the Indicated Place of Destination (CIP) to their final destination (Project site) specified in the **DPAO**.

c) For Supplies manufactured outside the Buyer's Country, but already imported:

i) the price of the Supplies, including the original import value of the supplies, and any margin (or reduction), as well as other associated costs, and customs duties and other import taxes already paid or payable on supplies already imported;

ii) customs duties and other import taxes already paid (documented for payment) or payable on Supplies already imported;

iii) the price of the Supplies obtained by the difference of (i) and (ii) above,

iv) sales taxes and other taxes levied on Supplies that will be due in Buyer's Country if the Contract is awarded; and

v) the price of inland transport, insurance and other local services related to the transport of the Supplies to their final destination (Project Site) specified in the **DPAO.**

d) For Ancillary Services, other than inland transport and other services necessary to convey the Supplies to their final destination, where such Ancillary Services are specified in the Buyer's Requirements:

i) the price of each item that is part of the Related Services (including applicable taxes).

15. Offer and settlement currencies

15.1 The currency(ies) of the Offer and the settlement currency(ies) will be in accordance with the provisions of the **DPAO**. The Bidder shall indicate the portion of the price of its tender corresponding to the expenses incurred in the Buyer's Country, in the currency of the Buyer's Country, unless otherwise specified in the **DPAO**.

15.2 The Bidder may indicate the price of its bid in the currency of any country. If the Bidder wishes to be paid in more than one currency, it may formulate the price of its bid in those currencies, provided that it does not use more than three currencies in addition to the currency of the Buyer's country.

16. Documentation that the Supplies and Related Services meet the original criteria and are in compliance

16.1 To establish that the Supplies and Related Services meet the origin criteria, pursuant to the provisions of ITB Article 5, a Bidder shall complete the country of origin declarations contained in the price schedules, included in Section IV, Bid Forms.

16.2 To establish the conformity of the Supplies and Related Services with the Tender Documents, the Bidder shall provide as part of its bid written evidence that the supplies comply with the technical specifications and standards specified in Section VII, List of Supplies, Delivery Schedule, Technical Specifications and Plans.

16.3 The supporting documents may be in the form of prospectuses, drawings or data and shall include a detailed description of the main technical and performance characteristics of the Supplies and Related Services, demonstrating that they substantially correspond to the specifications and, where appropriate, a list of any deviations and reservations from the provisions of Section VII, List of Supplies, delivery schedule, technical specifications and plans.

16.4 The Bidder shall also provide a list giving all the details, including available sources of supply and current prices of spare parts, special tools, etc., necessary for the proper and continuous operation of the supplies from the commencement of their use by the Purchaser and during the period specified in the **DPAO.**

16.5 Standards that apply to construction methods, manufacturing processes, equipment and materials, as well as references to brand names or catalogue numbers specified by Buyer on the Bill of Quantities, Delivery Schedule, and Technical Specifications are for information purposes only and are not restrictive. The Bidder may substitute other quality standards, brand names and/or other catalogue numbers, provided that it establishes to the satisfaction of the Buyer that the standards, marks and numbers so substituted

are substantially equivalent to or better than the technical specifications in Section VII, List of Supplies, Delivery Schedule, Technical Specifications and Plans.

17. Documents attesting to the Bidder's eligibility and qualifications

17.1 To establish that the Bidder meets the original criteria, pursuant to the provisions of Article 4 of the ITB, the Bidder shall complete the Technical Part Bid Letter, included in Section IV, Bid Forms.

17.2 The documents that the Bidder will provide to establish that it has the qualifications required to perform the Contract if its offer is accepted, will establish, to the satisfaction of the Buyer, that:

a) if required by the **DPAO**, the Bidder who does not manufacture or produce the Supplies it offers, shall submit a Manufacturer's Authorization, using for this purpose the standard form included in Section IV, Bid Forms, to attest to the fact that it has been duly authorized by the manufacturer or producer of the Supplies to supply the Supplies in the Buyer's Country;

b) if required by the **DPAO**, in the event that it is not present in the Buyer's Country, the Bidder is or will be (if its offer is accepted) represented by an agent equipped and able to meet the contractual obligations of the supplier in terms of technical specifications, maintenance, repairs and supply of spare parts.

c) the Bidder fulfils each of the qualification criteria specified in Section III, Evaluation and Qualification Criteria

18. Offer Validity Period

18.1 Offers will remain valid until the date specified in the **DPAO** or any date extended if amended by Buyer in accordance with ITB 8. An offer that is not valid until the date specified in the **DPAO** or such extended date as amended by Buyer in accordance with ITB Section 8 specified in the **DPAO** will be considered non-compliant and rejected by the Buyer.

18.2 Exceptionally, before the expiry of the validity of the tenders, the Buyer may ask the bidders to extend the period of validity of their tenders. The request and responses will be made in writing. If an Offer Guarantee or Offer Guarantee Statement is requested pursuant to ITB Article 19, its validity will be extended for a corresponding period. A tenderer may refuse to extend the validity of its tender without losing its guarantee. A bidder that consents to this extension will not be asked to amend its bid, nor will it be permitted to do so, subject to the provisions of ITB 18.3.

18.3 If the award is delayed for more than fifty-six (56) days beyond the validity of the specified Bid, the Contract price will be determined as follows:

a) in the case of a firm price contract, the Contract Amount will be equal to the Amount of the Tender discounted by the factor set out in the **DPAO** ;

b) in the case of a contract with a revisable price, the Contract Amount will be the Amount of the Offer;

c) in any case, the bids will be evaluated on the basis of the Offer Amount without taking into consideration the aforementioned discount.

19. Quote Guarantee

19.1 If required in the **DPAO**, the Bidder shall provide the original of a Bid Security or a Bid Security Statement which shall form an integral part of the Technical Part of its Bid. Where a Bid Security is required, the amount and currency in which it is to be denominated will be indicated in the **DPAO**.

19.2 The Bid Security Statement will be in the format set out in Section IV – Bid Forms.

19.3 Where required by section 19.1 of the ITB, the Bid Security will be in one of the following forms, at the option of the Bidder:

a) a bank guarantee on first demand issued by a bank, an insurance company or a guarantee organisation; or

b) an irrevocable documentary credit; or

c) a cashier's check or certified check; or

d) any other guarantees mentioned, if any, in the **DPAO,**

from a recognized source, established in a country that meets the origin criteria set out in Section V. Eligible Countries. If the Bid Security provided by the Bidder is in the form of a first-demand guarantee issued by an insurance company or a surety organization located outside the Buyer's Country, the issuing institution shall have a corresponding financial institution in the Buyer's Country in order to enable its enforcement, if any. The Bid Security shall be made in accordance with the form set out in Section IV - Bid Forms, or in another form substantially similar and approved by the Purchaser prior to the submission of the Bid. The Bid Security must include the full identification of the Bidder. The Bid Security shall remain valid for a period exceeding twenty-eight (28) days the initial date of expiry of the validity of the Offer and, if applicable, any other date following an extension under the provisions of ITB 18.2.

19.4 If a Bid Security is required pursuant to ITB 19.1, any bid not accompanied by a substantially compliant bid security will be rejected by Buyer as non-compliant.

19.5 If a Bid Security is required pursuant to ITB Article 19.1, the Bid Security of the unsuccessful Bidders shall be returned to them as soon as possible after the successful Bidder has provided the Performance Security prescribed in ITB Article 49.

19.6 The Bid Security of the successful Bidder will be returned to it as soon as possible after the signature of the Contract, against delivery of the required Performance Bond.

19.7 The Bid Security can be seized:

a) if the Bidder withdraws its Bid before the expiry date of the validity of the Bid specified in the Letter of Bid, or such extended date as may be provided by the Bidder; or

b) in the case of the successful Bidder, if the successful Bidder fails to comply with its obligation to:

i) sign the contract pursuant to Article 48 of the ITC; or

ii) provide the Performance Bond pursuant to Article 49 of the ITC.

19.8 The Bid Security or the Bid Guarantee Statement of a consortium of undertakings (GE) must be in the name of the consortium that submitted the Tender. If a consortium has not been formally formed at the time of submission of the Bid, the bid guarantee or the declaration of guarantee of the Bid of a consortium of undertakings must be in the name of all future members of the consortium, in accordance with the wording of the letter of intent referred to in Articles 4.1 and 11.5 of the ITB.

19.9 Where, pursuant to section 19.1 of the ITB, a Offer guarantee is not required, and if:

a) the Bidder withdraws its Bid before the expiry date of the validity mentioned in the Letter of Bid; or any extended date provided by the Bidder; or

b) the successful Bidder fails to sign the Contract in accordance with ITB Article 48, or to provide the Performance Bond in accordance with ITB Article 49,

the Buyer may disqualify the Bidder from any award of the contract by the Buyer for the period stipulated in the **CAPD**.

20. Form and Signature of the Offer

20.1 The Bidder will prepare the Bid in accordance with ITB Articles 11 and 21.

20.2 Bidders will mark as "CONFIDENTIAL" information that is confidential to their company. This information may contain proprietary information, trade secrets, or sensitive commercial or financial information.

20.3 The original and all copies of the Offer will be typed or written in indelible ink; they shall be signed by a person duly authorized to sign on behalf of the Bidder. This authorisation shall be established in the form specified in the **DPAO**, and attached to the Submission. The name and title of each person signing the authorization must be typed or printed under the signature. All pages of the Offer, except for unmodified postings, will be initialled by the person signing the Offer.

20.4 Tenders submitted by grouped undertakings (EGs) must be signed on behalf of the consortium by an authorised representative of the consortium, in such a way as to bind all the members of the consortium, and include the power of attorney of the consortium, signed by the persons authorised to sign on behalf of the consortium.

20.5 Any addition between the lines, deletion or override, to be valid, must be signed or initialled by the person signing the Offer.

D. Submission of Bids

21. Sealing and Marking of Offers

21.1 The Bidder must submit the Bid in two separate sealed envelopes (the Technical Part and the Financial Part). Both of these envelopes must be included in an outer envelope marked "ORIGINAL OFFER".

21.2 In addition, the Bidder shall submit copies of the Bid in the number specified in the **DPAO**. Copies of the Technical Part must be placed in a separate sealed envelope marked "COPIES: TECHNICAL PART". Copies of the Financial Part will be placed in a separate sealed envelope marked "COPIES: FINANCIAL PART". The Bidder shall place these two envelopes in a separate, sealed outer envelope marked "COPIES OF THE BID". In the event of any discrepancy between the original and the copies, the original shall prevail. If Alternative Offers are authorised in accordance with Article 13 of the ITB, the Alternative Offers must be submitted as follows: the original of the Technical Part of the Alternative Offer must be placed in a sealed envelope marked "VARIANT OFFER – TECHNICAL PART" and the Financial Part must be placed in a sealed envelope marked "VARIANT OFFER – FINANCIAL PART" and these two

separate sealed envelopes must then be enclosed in a sealed envelope. sealed outer envelope bearing the words "VARIANT OFFER – ORIGINAL", copies of the Variant Offer must be placed in separate sealed envelopes bearing the words "VARIANT OFFER – COPIES OF THE TECHNICAL PART" and "VARIANT OFFER – COPIES OF THE FINANCIAL PART" and enclosed in a separate sealed outer envelope bearing the words "VARIANT OFFER – COPIES"

21.3 Envelopes marked "ORIGINAL OFFER" and "COPIES OF OFFER" (and, if appropriate, a third envelope marked "ALTERNATIVE OFFER") will be placed in an outer envelope for the deposit of the Offer to the Buyer.

21.4 The inner and outer envelopes must:

a) include the name and address of the Bidder;

b) be addressed to the Buyer in accordance with Article 22.1 of the ITC;

c) include the identification of the call for tenders indicated in Article 1.1 of the ITC; and

d) include the mention not to open them before the date and time fixed for the opening of the envelopes.

21.5 If all envelopes are not sealed and marked as stipulated, the Buyer will not be liable if the Offer is misplaced or opened prematurely.

22. Deadline for submission of tenders

22.1 Bids must be received by the Buyer at the address indicated in the **DPAO** and no later than the date and time specified therein. When the **DPAO** provide for this, Bidders will have to be able to submit their bids electronically. In such a case, Bidders will be required to follow the procedure set out in the **DPAO**.

22.2 The Buyer may, if it deems it necessary, extend the deadline for the submission of bids by amending the Tender Documents pursuant to ITB Article 8, in which case all rights and obligations of the Buyer and the bidders governed by the earlier deadline shall be governed by the new deadline.

23. Late bids

23.1 The Buyer will not consider any Bids received after the expiry of the bidding period in accordance with ITB Article 23. Any bid received by the Buyer after the deadline for the submission of bids will be declared out of time, rejected and returned to the Bidder unopened.

24. Withdrawal, Substitution and Modification of Offers

24.1 A Bidder may withdraw, replace, or modify its tender after having submitted it, by means of a written notification, duly signed by an authorized representative, accompanied by a copy of the authorization pursuant to Article 20.3 of the CTB (except in the case of notifications of withdrawal which do not require copies). The

corresponding amendment or Replacement Offer must be attached to the written notification. All notifications must be:

a) prepared and issued pursuant to Articles 20 and 21 of the ITC (except for notifications of withdrawal which do not require copies). In addition, the envelopes must clearly bear the words "WITHDRAWAL", "OFFER OF REPLACEMENT" or "MODIFICATION", as the case may be; and

b) received by the Buyer before the deadline for submission of bids in accordance with ITB Article 22.

24.2 Tenders requested to be withdrawn by tenderers pursuant to Article 24.1 shall be returned to them unopened.

24.3 No bid may be withdrawn, replaced or modified between the deadline for the submission of bids and the expiry date of validity specified by the Bidder in the Bid Letter – Technical Part, and repeated in the Bid Letter – Financial Part, or any extended date.

E. Public Opening of the Technical Parts of the Tenders

25. Public Opening of the Technical Parts of the Tenders

25.1 Except in the cases specified in sections 23 and 24.2 of the ITC, the Buyer shall open the bids in public and shall read, in accordance with this article, all bids received before the deadline and time and the place specified in the **DPAO** in the presence of the Bidders' representatives and any other person who wishes to be present. The specific procedures for the opening of electronic tenders if such tenders are provided for in Article 22.1 of the ITC will be detailed in the **DPAO.**

25.2 Initially, the written notification of the withdrawal of envelopes marked "WITHDRAWAL" will be opened and the contents announced aloud, while the envelope containing the corresponding Bid will be returned to the Bidder unopened. If the envelope marked "WITHDRAWN" does not contain the authority confirming that the signature is that of a person authorized to represent the Bidder, the corresponding Bid will be opened. A withdrawal of an offer will not be allowed if the corresponding notification does not contain a valid authorization of the signatory to request the withdrawal and is not read aloud.

25.3 Thereafter, the envelopes marked "REPLACEMENT OFFER" will be opened and announced aloud and the corresponding new tender will be substituted for the previous one, which will be returned unopened to the Bidder. A bid replacement will not be allowed if the corresponding notification does not contain a valid authorization of the signer to request the replacement and is not read aloud.

25.4 Finally, envelopes marked "MODIFICATION" will be opened and their contents read aloud with the corresponding Offer. No modification of the offer will be allowed if the corresponding notification does not contain a valid authorization of the signatory to request the modification and is not read aloud. Only tenders that have been opened and announced aloud when the bids are opened will then be considered.

25.5 Then, all envelopes marked "Technical Part" will be opened one at a time. All envelopes marked "Financial Part" shall remain sealed and kept by the Buyer in a safe place until they are opened, at a subsequent public opening, following the evaluation of the Technical Part of the Bids. When opening the envelopes marked "Technical Part", the Buyer must read: the name of the Bidder and if there is a change; a Variant Offer and the presence or absence of a Bid Guarantee, if required, and such other details as the Buyer may deem appropriate.

25.6 Only the Technical Parts of the Tenders and the Variant Offers – Technical Parts announced aloud at the opening of the Tenders will be subject to evaluation. The Letter of Submission – Technical Parts and the separate envelopes marked "FINANCIAL PART" will be initialled by the Buyer's representatives present at the tender opening ceremony in the manner specified in the **DPAO.**

25.7 Upon opening the Bids, the Buyer must neither rule on the merits of the bids nor reject any of the bids (with the exception of bids received after the deadline and in accordance with ITB 23.1).

25.8 Following the opening of the Tenders, the Buyer shall draw up a report of the opening session, which shall include at least:

(a) the name of the Bidder and whether there is any withdrawal, replacement or modification of the Bid;

(b) The presence or absence of an envelope marked "FINANCIAL PART";

(c) The presence or absence of a Bid Security if required; and

(d) any Variant Offer – Technical Part.

25.9 The representatives of the Bidders present will be asked to sign the minutes of the opening of the tenders. The absence of a Tenderer's signature shall not affect the validity and content of the minutes. A copy of the minutes will be distributed to all Bidders.

F. Evaluation of Bids - General

26. Privacy

26.1 Information relating to the evaluation of the Technical Part will not be disclosed to Bidders, or any other person not formally involved in the bidding process, until notification of the evaluation of the Technical Part in accordance with ITB Article 33. The information relating to the evaluation of the Financial Part, the evaluation of the combined Technical and Financial Part and the recommendation for the award of the Contract shall not be disclosed to the Bidders or any other person not officially involved in the bidding process until the notification of the intention to award the Contract is transmitted to the Bidders in accordance with ITB 43.

26.2 Any attempt by a Bidder to influence the Buyer during the evaluation of bids or during the award decision may result in the rejection of its bid.

26.3 Notwithstanding the provisions of ITB 26.2, between the time the bids are opened and the time the Contract is awarded, if a Bidder wishes to contact the Buyer for reasons relating to the bidding process, it must do so in writing.

27. Clarification of Offers

27.1 To facilitate the review, evaluation, comparison of bids and verification of the qualifications of bidders, the Purchaser shall have the discretion to seek clarification from a Bidder on its bid. No clarification provided by a Bidder other than in response to a request from the Buyer will be taken into account. The Buyer's request for clarification, as well as the response provided, will be made in writing. No price changes, nor any substantial changes to the Bid (including a change in the Amount of its Bid made at the initiative of the Bidder) will be requested, offered or authorised, other than to confirm the correction of arithmetical errors discovered by the Buyer in the evaluation of the bids pursuant to ITB 35.

27.2 A bidder's Bid that fails to provide clarification of its Bid by the date and time specified by the Buyer in its request for clarification may be rejected.

28. Discrepancies, Reservations or Omissions

28.1 For the purposes of evaluating the Bids, the following definitions will apply:

a) A "discrepancy" is a deviation from the stipulations of the Tender Documents;

b) A "reservation" is the formulation of a restrictive conditionality, or the non-acceptance of a provision required by the Tender Documents; and

c) An "omission" is the total or partial absence of the information and documents required by the Tender Documents.

29. Non-compliance, errors and omissions

29.1 If an offer is substantially compliant, Buyer may tolerate any non-conformity or omission in the offer that does not constitute a material discrepancy.

29.2 If a tender is substantially compliant, the Purchaser may request the Bidder to submit, within a reasonable period of time, the information or documentation necessary to remedy the non-conformity or non-essential omissions found in the Tender in relation to the requested documentation. Such omission may not, under any circumstances, be linked to any element of the price of the Offer. A Bidder who does not comply with this request may have his or her bid rejected.

G. Evaluation of the Technical Parts of the Tenders

30. Evaluation des Parties Techniques

30.1 To evaluate the Technical Parts of each Tender, the Employer will use the criteria and methodologies indicated in sections 31 and 32 of the ITB in the DPAO, if applicable, and Section III, Evaluation and Qualification Criteria. No other criteria or methodologies will be permitted.

31. Determination of Compliance

31.1 The Buyer's determination of the conformity of an Offer shall be based on the content of the Offer itself, as defined in Article 11 of the ITB. A substantially compliant Bid is a Bid that meets the requirements of the tender document without any significant discrepancies, qualifications or omissions. A significant discrepancy, qualification or omission is a deficiency that:

(a) If accepted:

(i) materially affect the scope, quality or performance of the Supplies and Related Services specified in the Contract; or

(ii) would substantially limit, inconsistent with the tender document, the Buyer's rights or the Bidder's obligations under the Contract; or

(b) if rectified, would unfairly affect the competitive position of other Bidders with substantially compliant Bids.

31.2 The Buyer shall review the technical aspects of the Offer submitted pursuant to ITB Articles 16 and 17, in particular, to confirm that all requirements of Section VII have been satisfied without material deviations or qualifications, or omissions.

31.3 If a Bid does not substantially comply with the requirements of the tender document, it will be rejected by the Buyer and cannot be brought into compliance thereafter by correcting the material discrepancy, reservation or omission.

32. Qualifications of Bidders and Detailed Evaluation of the Technical Part

32.1 The Buyer shall determine, to its satisfaction, that all eligible Bidders, whose Bids have been determined to substantially comply with the provisions of the Tender Documents, possess the required qualifications stipulated in Section III, Evaluation and Qualification Criteria.

32.2 The determination is based on the review of the supporting documentation of the Bidder's qualifications submitted by the Bidder, in accordance with ITB Article 17. The determination must not take into account the qualifications of other companies such as the Bidder's subsidiaries, parent entities, affiliates, subcontractors (other than specialized subcontractors if the tender document allows it) or any other company other than the Bidder.

32.3 Prior to the award of the Contract, the Buyer shall verify that the successful Bidder (including each member of an EG) is not disqualified by the Bank due to non-compliance with the contractual obligations of EAS/HS prevention and response. The Purchaser shall perform the same verification for each subcontractor proposed by the successful Bidder. If a proposed subcontractor does not meet the requirement, the Purchaser shall request the Bidder to propose a replacement subcontractor.

32.4 Only substantially compliant bids submitted by eligible and qualified Bidders will be subject to a detailed technical evaluation to assess the adequacy of the technical part, followed by an evaluation by applying the technical factors/sub-factors and corresponding scores specified **in the CADPs.**

H. Notification of the Evaluation of the Technical Parts and Public Opening of the Financial Parts of the Bids

33. Notification of the Evaluation of the Technical Parties and Public Opening of Financial Offerings

33.1 Upon completion of the evaluation of the Technical Parts of the Bids and the Bank's No Objection (if any), the Purchaser shall notify in writing the Bidders who have not met the qualification criteria and/or whose Bid has been found to be non-compliant with the requirements of the tender document, providing them with the following information:

(a) the reasons why the Technical Part of their Tender did not meet the requirements of the tender document;

(b) their envelope marked "Financial Part" will be returned unopened to them after the end of the Bid evaluation process and the signature of the Contract;

(c) the date, time and place of the public opening of the envelopes marked "Financial Part".

33.2 The Purchaser shall simultaneously notify in writing the Bidders whose Technical Part has been evaluated as substantially meeting the tender document and the qualification criteria, providing them with the following information:

(a) their Bid was evaluated as substantially responding to the tender document and the qualification criteria; and

(b) their envelope marked "Financial Part" will be opened at the public opening of the Financial Parts;

(c) the date, time and place of the public opening of the envelopes marked "Financial Part".

33.3 The opening date shall not be earlier than ten (10) business days from the date of notification of the results of the technical evaluation, as specified in ITB Articles 33.1 and 33.2. However, if the Purchaser receives a complaint on the results of the technical evaluation within ten (10) business days, the opening date will be subject to ITB section 48.1. The Financial Part of the Offering will be open to the public in the presence of the Bidders' designated representatives and any person who chooses to attend.

33.4 At such public opening, the Financial Parties will be opened by the Buyer in the presence of the Bidders, their designated representatives and any other person who chooses to attend. Bidders who met the qualification criteria and whose Bids were deemed to be substantially compliant will have their envelope marked "Financial Part" opened at the second public opening. Each of these envelopes marked "Financial Part" will be inspected to verify that it has remained sealed and unopened. These envelopes will then be opened by the Buyer. The Buyer will read the name of each Bidder, the technical score and the total prices of the Bid per lot (contract), if any, including discounts and Variant Bids - Financial Part, as well as any other details that the Buyer may deem appropriate.

33.5 Only the envelopes of the Financial Part of the Offers, or the Open Variant Offers and the discounts that are announced at the opening of the Offers will be further examined for evaluation. The Tender Letter – Financial Part and the Price Schedules must be initialled by representatives of the Buyer participating in the opening of the Bids in the manner specified **in the DPAO**.

33.6 The Buyer must not discuss the merits of an Offer, nor reject envelopes marked "FINANCIAL PART" during the meeting.

33.7 The Buyer shall prepare a report of the Financial Part of the opening of the Bids which shall include, at a minimum:

(a)the name of each Bidder whose Financial Part has been opened;

(b) the price of the Offer, per lot (contract), if any, including any discounts;

(c) where applicable, any Variant Offer - Financial Part.

33.8 Bidders whose envelopes marked "FINANCIAL PART" have been opened or their representatives present will be asked to sign the minutes. The omission of a Bidder's signature in the minutes will not invalidate the content and effect of the minutes. A copy of the minutes will be distributed to all Bidders.

I. Evaluation of the Financial Parts of the Bids

34. Evaluation of Financial Parties

34.1 To the extent that an Offer is substantially compliant, Buyer shall rectify any minor quantifiable non-conformities affecting the price of the Offer. For this purpose, the price of the Bid will be adjusted, for comparison purposes only, to reflect the price of a missing or non-conforming element or component, by adding the average price of the component or component indicated by the Bidders that are substantially compliant. If the price of the item or component cannot be derived from the price of other substantially compliant offers, Buyer will use its best estimate.

34.2 In evaluating the Financial Part of each Offer, the Buyer must take into account the following:

(a) the valuation will be carried out for the Items or Lots (contracts), as specified in **the DPAs,** and the price of the Bid as indicated in accordance with Article 14 of the ITC;

(b) price adjustment for the correction of arithmetic errors in accordance with Article 35.1 of the ITC;

(c) price adjustments due to discounts offered in accordance with CIT Article 14.4;

(d) the conversion of the amount resulting from points (a) to (c) above, where applicable, into a single currency in accordance with Article 36 of the ITC;

(e) price adjustments due to quantifiable minor non-conformities in accordance with CIT 34.1; and

(f) the additional evaluation factors specified in Section III, Evaluation and Qualification Criteria.

34.3 The estimated effect of the price revision provisions of the Contractual Clauses, if any, applied over the period of performance of the Contract, will not be taken into account in the evaluation of the Offer.

34.4 If this tender document allows Bidders to indicate separate prices for different lots (contracts), each lot will be evaluated separately to determine the Most Advantageous Bid, using the methodology specified in Section III, Evaluation and Qualification Criteria. **Discounts conditional on the award of more than one lot or group of lots will not be taken into account for the purposes of evaluating the Offers.**

34.5 Buyer's evaluation of an Offer will exclude and not take into account:

(a) in the case of Supplies manufactured in the Buyer's Country, sales and other similar taxes, which will be payable on the Supplies if a contract is awarded to the Bidder;

(b) in the case of Supplies manufactured outside the Buyer's Country, already imported or to be imported, customs duties and other import taxes levied on the imported Supplies, sales taxes and other similar taxes, which will be payable on the Supplies if the contract is awarded to the Bidder;

(c) any price revisions during the period of performance of the contract, if any.

34.6 The Buyer's evaluation of the Bids may require consideration of other factors, in addition to the Bid price indicated in accordance with Article 14 of the ITB. These factors may be related to the characteristics, performance and conditions of purchase of the Supplies and Related Services. The effect of the selected factors, if any, shall be expressed in monetary terms to facilitate the comparison of Bids, unless otherwise specified **in the CADPs,** among those set out in Section III, Evaluation and Qualification Criteria. The criteria and methods to be used will be those specified in paragraph (f) of ITB 34.2.

35. Arithmetic Error Correction

35.1 In assessing the Financial Part of each Offer, the Buyer shall rectify the arithmetic errors on the following basis:

a) If there is a contradiction between the unit price and the total price obtained by multiplying the unit price by the quantities, the unit price shall prevail and the total price shall be corrected, unless, in the opinion of the Buyer, the decimal point of the unit price is manifestly misplaced, in which

case the total price stated shall prevail and the unit price shall be corrected;

b) If the total obtained by adding or subtracting the subtotals is not correct, the subtotals will be considered as proof and the total will be corrected; and

c) If there is a discrepancy between the price quoted in letters and figures, the amount in words shall prevail, unless such amount is related to an arithmetical error, in which case the amount in figures shall prevail subject to paragraphs (a) and (b) above.

35.2 The Bidder will be asked to accept the correction of arithmetic errors. If the Bidder does not accept the corrections made in accordance with ITB 35.1, its bid will be rejected.

36. Conversion to a single currency

36.1 For evaluation and comparison purposes, Buyer will convert all bid prices expressed in various currencies into a single currency, as set out in the **DPAO**.

37. Margin of preference

37.1 Unless otherwise specified in the **DPAO** No margin of preference will be granted.

38. Comparison of Financial Parts

38.1 The Buyer will compare the evaluated costs of the Bids to determine the Bid that has the lowest evaluated cost. The comparison will be based on CIP (place of final destination) prices for imported supplies and EXW prices, plus the cost of inland transportation and insurance to the place of destination, for Supplies manufactured in the Borrower's Country, as well as the prices of assembly, training, commissioning and other required services, if applicable. The valuation of prices does not take into account customs duties and other taxes levied on imported goods rated CIP and sales and other similar taxes levied in connection with the sale or delivery of the Supplies.

39. Abnormally low bids

39.1 An Abnormally Low Bid is a Bid which, taking into account the other elements of the Bid, appears so low that it raises concerns among the Buyer as to the Bidder's ability to perform the Contract for the price offered.

39.2 In the event of identification of a potentially abnormally low bid, the Buyer shall request clarification from the Bidder in writing, including a detailed analysis of the price/ sub-detail of the price of its Bid in relation to the subject matter of the Contract, scope, delivery schedule, allocation of risk and liability, and any other requirements contained in the tender documents.

39.3 After verifying the information and price details provided by the Bidder, in the event that the Buyer establishes that the

Bidder has not demonstrated its ability to perform the Contract for the proposed price, it will reject the Bid.

J. Combined Evaluation of Technical and Financial Parts, Most Advantageous Offer and Notification of Intent to Award

40. Combined Evaluation of the Technical and Financial Parties

40.1 The Buyer's evaluation of the Conforming Bids will take into account technical factors, in addition to cost factors, in accordance with Section III - Evaluation and Qualification Criteria. The weighting to be assigned to technical factors and cost is specified in **DPAO**. The Buyer will rank the Bids according to the evaluated score of the Bids (B).

40.2 The Buyer will determine the Most Advantageous Offer. The Most Advantageous Bid is the Bidder that meets the qualification criteria and whose Bid has been determined to be:

(a) substantially compliant with the tender document; and

(b) The Offer with the highest combined technical and financial score.

41. Buyer's Right to Accept Any Bids and Reject One or All Bids

41.1 The Purchaser reserves the right to accept or reject any Bid, and to cancel the bidding process and to reject all Bids at any time prior to the award of the Contract, without thereby incurring any liability to the Bidders. In the event of cancellation, the Bids and Bid Guarantees will be returned to the Bidders without delay.

42. Waiting period

42.1 The Contract will not be awarded until the Waiting Period has expired. The Waiting Period will be ten (10) business days, unless extended in accordance with ITB 47. The Waiting Period shall commence on the day following the date on which the Purchaser has sent each Bidder the Notification of its Intention to Award the Contract. Where only one Bid is submitted, or if this Procurement is in response to an emergency situation recognized by the Bank, the Waiting Period shall not apply.

43. Notification d'Intention d'Attribution

43.1 The Purchaser shall send to each Bidder (who has not already been notified that its Bid has been rejected) the Notification of its Intention to Award the Contract to the successful Bidder. The Notification of Intent to Assign must contain, at a minimum, the following information:

(a) the name and address of the Bidder submitting the successful Bid;

(b) the contract price of the successful Bid;

(c) the total combined score of the successful Bid;

(d) the names of all Bidders who submitted Bids and their prices as read and evaluated and the technical scores;

(e) a statement of the reasons why the Tender (of the unsuccessful Bidder to whom the notification is addressed) was not accepted;

(f) the expiry date of the Waiting Period; and

(g) instructions on how to request a report and/or file a complaint during the Waiting Period.

K. Award of the contract

44. Award criteria

44.1 Subject to the provisions of Article 41 of the ITB, the Buyer shall award the Contract to the Bidder whose Bid has been evaluated as the Most Advantageous.

45. Buyer's Right to Change Quantities at the Time of Contract Award

45.1 At the time of awarding the Contract, the Purchaser reserves the right to increase or decrease the quantity of Supplies and related Services initially specified in Section VII, provided that such change does not exceed the percentages indicated in the **DPAO**, and without any change to the unit prices or other terms of the Offer and the Tender Documents.

46. Notification of the award of the contract

46.1 Before the expiry date of the validity of the Bids and the expiry of the Waiting Period, specified in Article 42.1 of the ITC or any extension, and after having submitted any complaint submitted during the Waiting Period, the Buyer shall notify the successful Bidder, in writing, that its Bid has been accepted. The notification letter referred to below and in the Contract under the heading "Contract Award Letter" shall include the amount to be paid by the Buyer or Supplier for the performance of the Contract, which amount is referred to below and in the contract documents as the "Contract Amount".

46.2 Within ten (10) working days after the date of transmission of the Contract Award Letter, the Buyer shall publish the Contract Award Notification which shall contain, at a minimum, the following information:

(a) the name and address of the Buyer;

(b) the name and reference number of the contract awarded, and the selection method used;

(c) the names of all Bidders who submitted a bid, and the prices of the Bids as read at the opening of the Bids, and as evaluated;

(d) the names of all Bidders whose Bids were rejected as non-compliant or not meeting the qualification criteria, or not evaluated, indicating the reasons;

(e) the name of the successful Bidder, the Amount of its Bid, as well as the duration of the Bid and a summary of the description of the Contract awarded.

(f) The Beneficial Ownership Disclosure Form of the successful Bidder.

46.3. The Contract Award Notification shall be published on the Buyer's website in open access, if available, or in at least one newspaper of national circulation in the Buyer's Country, or in the official gazette. The Purchaser shall also publish the Contract Award Notification on UNDB-online.

46.4 Until the official and final version of the Contract is drafted and approved, the Contract Award Letter will constitute a reciprocal commitment between the Buyer and the Successful Tenderer.

47. Debriefing by the Buyer

47.1 Upon receipt of the Notification of Intent to Award by the Purchaser referred to in Article 43.1 of the ITB, an unsuccessful Bidder shall have three (3) working days to make a written request to the Purchaser for a debriefing. The Buyer shall grant a debriefing to any unsuccessful Bidder whose request is received within this period.

47.2 Where a request for a debriefing is received within the specified time period, the Buyer shall grant a debriefing within five (5) working days, unless the Buyer decides, for justifiable reasons, to provide the debriefing beyond that time. In this case, the Waiting Period will be automatically extended up to five (5) business days after the debriefing. If more than one debriefing is delayed in this way, the Waiting Period will be extended to five (5) working days after the last debriefing. The Buyer shall promptly notify, by the fastest means available, all Bidders of the extension of the Waiting Period.

47.3 Where a request for debriefing is received by the Purchaser after the three (3) business day deadline, the Purchaser shall provide the debriefing as soon as practicable, and normally no later than fifteen (15) business days from the date of publication of the Contract Award Notification. Debriefing requests received outside the three (3) day period do not result in an extension of the Waiting Period.

47.4 The debriefing of an unsuccessful Bidder may be done in writing or verbally. The Bidder will bear its own costs of participating in the debriefing.

48. Contract Signature

48.1 The Purchaser shall send to the successful Bidder the Contract Award Letter, including the Deed of Commitment, and the request to submit the Beneficial Ownership Disclosure Form providing additional information on its beneficial ownership. The Beneficial Ownership Disclosure Form must be submitted within eight (8) business days of receipt of this request.

48.2 The successful bidder shall sign, date and return to the Buyer the Deed of Commitment within twenty-eight (28) days of receipt.

48.3 Notwithstanding the provisions of Article 48.2 above, if the signing of the Contract is impeded by restrictions on imports attributable to the Buyer, the Buyer's Country or the use of the goods/goods, systems or services to be provided, and if such import restrictions are governed by trade regulations of the country of the Supplier of the goods/goods, systems or services, the Bidder shall not be bound by its Bid. This provision will only take effect in cases where the Bidder demonstrates to the satisfaction of the Bank and the Buyer, that the signing of the contract has not been hindered by a lack of diligence on the part of the Bidder in establishing the necessary formalities such as the application for permits, authorizations and licenses required for the export of the products/goods, systems or services in accordance with the terms of the Contract.

49. Guarantee of Good Performance

49.1 If required, within twenty-eight (28) days of receipt of Buyer's notification of the award of the Contract, the successful Bidder shall provide the Performance Bond, in accordance with Clause 18 of the CCAG, using the Performance Security Form set out in Section X, Contract Forms or such other template as may be acceptable to the Buyer. If the Performance Bond provided by the successful Bidder is in the form of a bond, the latter shall be issued by a surety or insurance company acceptable to the Buyer. A guarantor or insurance company located outside the Buyer's Country will need to have a correspondent in the Buyer's Country, unless the Buyer has agreed in writing that a corresponding financial institution is not required.

49.2 The successful Bidder's failure to provide the above-mentioned Performance Bond, or the failure to sign the Deed of Commitment, shall constitute sufficient grounds for the cancellation of the award of the Contract and the seizure of the Bid Bond, in which case the Purchaser may award the Contract to the next Bidder whose Bid is deemed to be the Most Advantageous.

50. Procurement Claims

50.1 The procedures for filing a Procurement Claim are specified **in the DPAO**.

Section II. Specific Tender Data (DPAO)

The following specific data relating to the procurement of the Supplies supplements, clarifies, or amends the sections of the Instructions to Bidders (SI). In the event of a conflict, the provisions below shall prevail over those of the ITB.

A. General	
IS 1.1	Tender Notice Identification Number: ***02/ZR-CEP-O-414380-GO-RFB/AGREE/2025*** Name of the Buyer: ***Water Project Implementation Unit (CEP-O)*** Name/AO Identification Number: ***02/ZR-CEP-O-414380-GO-RFB/AGREE/2025*** Number and identification number of lots covered by this tender: ***Single batch***
IS 2.1	Name of Borrower: ***Government of the Democratic Republic of Congo*** ***Ministry of Water Resources and Electricity*** ***Water Project Implementation Unit (CEP-O)***
IS 2.1	Loan/credit/grant funding amount: ***USD 600,000,000*** as follows: • ***USD 300,000,000*** under Credit No. 7066-ZR, and • ***SDR 200,000*** under Grant No . D9890-ZR. Project Name: ***Access, Governance and Reforms of the Electricity and Water Sectors Project "AGREE"***
IS 4.1	The number of members of a group (EG) ***is not limited***
IS 4.5	A list of companies that are not eligible to participate in the Bank's projects can be found at the following e-mail address http://www.worldbank.org/debarr
B. Content of the Tender Documents	
IS 7:1	For **clarification** purposes only**,** the Buyer's address is as follows: ***To the attention of Mr. Philippe LUMEKA DITALUA*** ***Water Project Implementation Unit, CEP-O,*** ***Located at 22007, Route de Matadi, BINZA – Ozone, Commune of Ngaliema*** ***Kinshasa, Democratic Republic of Congo*** ***Phone Number: (+243) 978 254 141 – 823 636 173*** ***E-mail: cepo@cepordc.com with copy to scpm@cepordc.com***

	The deadline for receipt of requests for clarification, expressed in the number of days before the deadline for the submission of tenders, is twenty-one ***(21)*** days. Website address: ***http://www.cepordc.com***
C. Preparation of tenders	
IS 10:1	The language of submission is: ***French*** All correspondence will be exchanged in ***French***. The language of translation of the additional and printed documents provided by the Bidder will be ***French***.
IS 11.2 (h) & 11.3 (d)	The Bidder must attach to its tender the following other documents: 1. For national bidders only, the following documents are required: • ***Certificate of Registration with the Trade and Movable Credit Register "RCCM";*** • ***Valid National Identification Certificate;*** ***Certificate of affiliation to the Social Security signifying that they are in good standing with the contributions.*** 2. For foreign bidders, the following documents are required: • ***Proof of its legal existence (any document proving its legal existence in accordance with the legislation or obligations of its country);*** 3. For all bidders (domestic and foreign), the following document(s) are required: • ***An exploded drawing of the meter with a nomenclature in French specifying the material of the different components of the meter;*** • ***Technical documentation of all supplies and services offered in French (leaflets giving the technical specifications and materials used, plans, diagrams, etc.);*** • ***A copy of the articles of association in French (if they are written in a language other than French).*** • ***A document dated less than ninety (90) days old, drawn up in accordance with the tenderer's national law or practice, certifying that the latter is not in a state of bankruptcy, shall not be the subject of a procedure for the declaration of bankruptcy, liquidation, judicial settlement, arrangement with creditors or any other procedure of a similar nature;*** • ***Certified Balance Sheets for the last five (5) years (2024, 2023, 2022, 2021, 2020);*** • ***Cash and/or credit facilities, in order to satisfy the cash requirements of the Market, at least equal to USD 1,000,000.00 (US dollars one million). A Bank Certificate (issued by a bank acceptable to the Buyer) for the Line of Credit or Credit Facility must be provided for this purpose.***

IS 13:1	Variant Offers (Technical and Financial Parts) ***will be*** taken into account.
IS 14:5	The prices proposed by the Bidder ***will not be*** subject to revision during the performance of the Contract.
IS 14:6	The price listed for each item must be at least one ***hundred percent (100%)*** of the quantity required for that item.
IS 14:7	The edition of Incoterms to refer to is: ***Incoterms 2020***
IS 14.8 (a) (iii), (b) (ii) et (c) (v)	The Final Destination (Project Site) is: • **REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema;** • **REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.**
IS 14.8 (b) (i)	The place of Destination is *:* • **REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe, Commune of Ngaliema;** • **REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ / Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Nganza and the Ntambwe mission.** The price of inland transport, insurance and other local services related to the transport of the Supplies to their final destination (project site) for installation are **the responsibility of the supplier**. **All equipment will be delivered in "20-foot" containers <u>LAST VOYAGE</u>** which will be used to store and secure equipment.
IS 15:1	The Bidder ***is not*** required to express in the currency of the Buyer's Country the fraction of the price of its tender corresponding to expenses incurred in the same currency.
IS 16:4	Expected period of operation for supplies (in view of spare parts requirements): ***Two (02) years***. *The list of spare parts is indicated*
IS 17.2 (a)	Manufacturer's Authorization is required.
IS 17.2 (b)	After-sales service is required.
IS 18:1	The Offer will be valid until 120 days after the submission of the offers, i.e. no later than ***November 21, 2025.***
IS 18:3 (a)	In the case of a firm price contract, the Contract Amount will be the Amount of the Tender updated as follows: ***The share of the Market Price expressed in national currency will be adjusted by a factor reflecting inflation at the national level during the extension period; and the share of the Market Price expressed in foreign currencies will***

	be adjusted by a factor reflecting inflation at the international level, i.e. in the countries of foreign currencies, during the extension period.
IS 19:1	A Bid Security will be required and ***will be placed in the envelope <u>of the TECHNICAL Part only</u>***. It will remain valid ***for 28 days*** after ***the date of validity of the offers***. The amount and currency of the supply guarantee is: ***Eighty thousand U.S. Dollars (US$80,000)*** or the equivalent in Congolese Francs or another freely convertible currency at the applicable rate fifteen (15) days prior to the scheduled date of submission of bids.
IS 19.3(d)	Other Acceptable Warranties: ***None***
IS 20:3	The written confirmation of the signatory's authorisation to bind the Bidder shall consist of: ***a certificate of power of attorney (or power of attorney) from the signatory of the tender.***
D. Submission of tenders	
IS 20:1	**<u>The offer will be presented in TWO SEPARATE AND SEALED ENVELOPES (Technical Part and Financial Part)</u>** In addition to the original of the Offer, the number of copies requested is: ***four (04). A USB key version of the offer is required.***
IS 22:1	For the purpose of **<u>bidding only</u>**, the Buyer's address is: ***To the attention of Mr. Philippe LUMEKA DITALUA*** ***Water Project Implementation Unit, CEP-O,*** ***Located at 22007, Route de Matadi, BINZA – Ozone, Commune of Ngaliema*** ***Kinshasa, Democratic Republic of Congo*** **The deadline for submitting tenders is as follows:** Date**:** ***July 24, 2025*** Time*:* ***11:00 a.m., Kinshasa time.*** The Bidder ***will not have*** the option to submit its bid electronically.
E. Public Opening of the Technical Parts of the Tenders	
IS 25:1	The opening of the bids will take place at the following address: ***Water Project Implementation Unit, CEP-O,*** ***Located at 22007, Route de Matadi, BINZA – Ozone, Commune of Ngaliema*** ***Kinshasa, Democratic Republic of Congo*** Date: ***Thursday, July 24, 2025*** Time: ***11:10 a.m., Kinshasa time.***
IS 25:6	The Letter of Bid – Technical Part and the sealed envelope marked "Second Envelope – Financial Part" will be initialed by the Buyer's representatives

	attending the opening of the bids as follows: ***Each Offer will be initialed by at least one (01) of the Buyer's representatives.***
G. Evaluation of the Technical Parts of the Tenders	
IS 32:4	The technical factors (sub-factors) and the corresponding weighting are given in the table **in Section III. Evaluation and Qualification Criteria, Evaluation of Tenders, point 2. Evaluation of the Technical Party.** The minimum technical score for qualification is 60/100.
H. Notification of the Evaluation of the Technical Parts and Public Opening of the Financial Parts of the Bids	
IS 33.5	The Tender Letter – Financial Part and the Price Schedules will be initialled by the Buyer's representatives who open the Bids: ***Each Offer will be initialled by at least one (01) of the Buyer's representatives.***
I. Evaluation of the Financial Parts of the Bids	
IS 34.2 (a)	The evaluation will be conducted in **batches**. Note: ***Bids will be evaluated in batches, although this is a single batch. If a price schedule includes items without providing the prices, their prices will be considered included in the prices of the other items. An item not mentioned in the Price Schedule will be considered as not forming part of the Bid and, assuming that the Bid is compliant, the average price offered (as specified in the CADPs) for the item in question by the bidders whose bids are compliant will be added to the Bid price, and the total price so evaluated of the Bid will be used for the purpose of comparing the Bids.***
IS 34:6	Adjustments will be calculated using the following evaluation criteria, selected from those set out in Section III, Evaluation and Qualification Criteria: a) Variance from delivery schedule: **No applicable ;** b) Variance from payment schedule: **Noapplicable ;** c) The cost of replacing key components, spare parts, and service: **Not applicable ;** d) availability in the Buyer's Country of spare parts and after-sales service for the equipment offered in the Offer:**Not applicable ;** e) Operating and maintenance costs during the life of the equipment: **Not applicable;** f) Operation and performance of the proposed equipment: **Not applicable;** g) **Any other criteria: No applicable.**
IS 36.1	The currency that will be used for the purposes of evaluating and comparing the Bids to convert all Bid prices expressed in various terms into a single currency, at the ask price, is*:* The source of the exchange rate is ***the Central Bank of the Democratic Republic of Congo***

	The date of the exchange rate will be: ***June 26, 2025 (not less than 28 days before the deadline for submission of Offers, and no later than the expiration date of the validity of the Offers specified in accordance with DPAO 18.1).***
IS 37	Margin of Preference: Not applicable
J. Combined Evaluation of the Technical and Financial Parties and the Most Advantageous Offer	
IS 40:1	The weighting to be given for the cost is: • Technical proposal (T): **T = 0.60** • Financial Proposal (F): **F = 0.40**
K. Award of the Contract	
IS 45.1	Quantities may be increased by a maximum percentage equal to *: **fifteen percent (15%)*** Quantities may be reduced by a maximum percentage equal to: ***fifteen percent (15%)***
IS 50.1	The procedures for filing a Procurement Claim are detailed in the "Procurement Regulations for REIT Borrowers (Annex III)". If a Bidder wishes to file a Procurement Claim, it must submit it following these procedures, in writing (by the fastest means available, i.e. by email or fax), to the following address: ***To the attention of Mr. Philippe LUMEKA DITALUA*** ***Water Project Implementation Unit, CEP-O,*** ***Located at 22007, Route de Matadi, BINZA – Ozone, Commune of Ngaliema*** ***Kinshasa, Democratic Republic of Congo*** ***Phone Number: (+243) 978 254 141 – 823 636 173*** ***E-mail: cepo@cepordc.com with copy to scpm@cepordc.com*** In summary, a Procurement Claim may challenge any of the following: **1.** the terms of the Tender Documents; **2.** the Buyer's decision to exclude a Bidder from the procurement process prior to the award of the contract; and **3.** the Buyer's decision to award the Contract.

Section III. Evaluation and Qualification Criteria

This Section includes the criteria that the Buyer must use to evaluate a Bid and determine whether a Bidder meets the required qualifications. The Buyer shall not use any criteria other than those indicated in this tender document.

Contents

TECHNICAL PART 54

1. Qualification (ITB 32) 54
2. Evaluation technique(IS 32.4) 55

FINANCIAL PART 56

1. Margin of Preference (ITC 37) 56

2 Evaluation criteria (SI, 34.6) 57

3 Combined evaluation 60

4 Multiple Markets (SI34.4) 60

5 Variant offers (IS 13.1) 61

TECHNICAL PART
1. Qualification (ITB 32)

1.1 Qualification Criteria (ITL 32.1)

The Buyer will evaluate each Bid against the following Qualification Criteria. Requirements not listed in the text below are not to be used in the evaluation of the bidder's qualifications.

(a) **Financial capacity** : (a1) ***The Bidder shall submit audited financial statements*** or, if the law of the Bidder's country does not require it, other financial statements acceptable to the Buyer, ***for the last five (05) years (2020, 2021, 2022, 2023 and 2024)*** by the deadline for submission of Bids, ***demonstrating the current strength of the Bidder's financial position***. ***In the case of a Grouping of Undertakings (GE), this requirement must be complied with by each member*** ; a2) Cash and/or credit facilities, in order to satisfy the cash requirements of the Market, at least equal to USD 1,000,000.00 (US dollars one million). A Bank Certificate (issued by a bank acceptable to the Buyer) for the Line of Credit or Credit Facility must be provided for this purpose.

(b) **Specific experience** : ***The Bidder must demonstrate, with a certificate of good completion in support, that it has successfully concluded at least one (01) contract in the last five (05) years, as of January 1, 2019, for the supply and installation of at least 20,000 smart water meters with diameters ranging from DN15 to DN25*** and Related Services that are the subject of the Contract. In the case of an EG, this requirement must be met by all members combined.

(c) **Documentary Evidence** : The Bidder must provide documentary evidence demonstrating that the Supplies it offers meet the following requirements for use: ***Potable water (Valid Certificate of Sanitary Compliance)***

(d) **Manufacturing Experience and Technical Capability** : For items covered by the Contract for which the Bidder is a manufacturer, the Bidder must provide documentary evidence demonstrating that:

(i) ***it has been manufacturing smart water meters for at least ten (10) years, starting on January 1, 2015****,* before the deadline for submission of Bids; and

(ii) ***its annual production capacity of smart water meters for each of the last ten (10) years, starting on January 1, 2015****,* before the deadline for submission of Bids, ***is at least five (05) times the quantities specified in the contract***.

(e) **Cybersecurity practices and experience must be demonstrated through:**

1. *A Cybersecurity Management Practice and Experience (Information Security Policy), and*
2. *Compliance with standards and Accreditation in Cybersecurity such as ISO 27000 (ISO 27001),* NIST *or equivalent.*
3. *Description of the network architecture and related security components*
4. Protection against cyberattacks
5. Securing Industrial Control Systems (ICS/SCADA)
6. Identity and access management
7. Data encryption

8. Incident Response Plan
9. Penetration testing and security audit
10. Cyber Security Training and Awareness
11. Data backup and business continuity in the event of a system failure or major security incident

(f) **Manufacturer's Authorization** : A Bidder that does not manufacture one or more items for which a manufacturer's authorization is required in accordance with paragraph 17.2(a) of CAP-SI17.2 (a), the Bidder must provide evidence that it has been duly authorized by a manufacturer (Manufacturer's Authorization Form, Section IV, Tender Forms), meeting the criteria referred to in paragraphs (d) (i) and (ii) above, to provide the Supplies;

(g) A Bidder that does not manufacture one or more items for which a manufacturer's authorization is not required in accordance with CAOP-IS 17.2(a), the Bidder must submit documentation of its supplier status, to the satisfaction of the Buyer (e.g., authorized reseller/distributor of the items).

At the time of the Award of the Contract, the Bidder (including each subcontractor proposed by the Bidder) shall not be disqualified by the Bank for non-compliance with the EAS/HS obligations.

2. Evaluation technique (IS 32.4)

Assessment of the conformity of the Technical Part with the equipment specifications in accordance with Article 32.4 of the ITB.
The technical factors and sub-factors, if any, that are assessed and the scores to be assigned to each of the technical factors and sub-factors are specified in **DPAO SI 32.4.**

The technical offer will be evaluated using the following factor and sub-factor criteria:

- **Technical Part Scoring Factors**

NB: Factors or sub-factors will be scored according to the degree of satisfaction with the narrative presented by the bidder as follows:

No	Assessment	Notation
0	Absence of the narrative: the elements sought are not included in the offer	0
1	Poor: the elements sought are listed in the offer in a summary manner	30% of the maximum expected score
2	Fair: the items you are looking for are included in the offer with a few details	50% of the maximum expected score
3	Satisfactory: the elements sought are included in the offer with sufficient detail	80% of the maximum expected score
4	Excellent: the elements sought are included in the tender in sufficient detail and present innovative approaches that do not exist in the other tenders or are better than those proposed by the other tenderers.	100% of the maximum expected score

- **Table of criteria and sub-criteria of the Technical Part:**

No	Factors and sub-factors	Scores out of 100 points	Elements to be checked and improved
1	**Smart meters with GPRS (General Packet Radio Service) technology:**	**60**	
1.1	*Completeness of the technical documentation: manufacturer's catalogue/leaflet, technical data sheets, certificate of health compliance and other ISO certificates (Quality, Health and Safety at Work, Environment, etc.)*	*10*	
1.2	*Conformities of technical specifications and standards, including all technical characteristics and/or essential performance requirements of related supplies and services*	*30*	*The differentiation of the offers will be based on the quality of the supplies compared to the minimum prescribed in the DAO*
1.3	*Conformities of the required functional guarantees*	*20*	*The differentiation of the offers will be based on the quality of the supplies compared to the minimum prescribed in the DAO*
2	**Compliance of the computerized management system (software) allowing the interfacing of these meters with the other software of REGIDESO SA in particular the ERP, CRM, ...**	**15**	
3	**Equipment of the modular assembly workshop for smart meters**	**15**	
3.1	***Compliance of the equipment of the modular assembly workshop for smart meters***	*5*	
3.2	***Training program:*** *description of a program for the transfer of knowledge, technologies, and other skills related to the workshop that will be carried out on an ongoing basis from the beginning to the end of the project between REGIDESO SA engineers and all suppliers associated with the project. Technicians and workshop staff will be trained in the latest technology and best production practices*	*5*	
3.3	***Maintenance program:*** *description of a regular maintenance program is put in*	*5*	

No	Factors and sub-factors	Scores out of 100 points	Elements to be checked and improved
	place to ensure that production equipment remains in perfect working order. This program will be provided by maintenance management software (for example: CMMS)		
4	**Organisation of services**	**10**	
4.1	*Delivery time and installation in the pilot areas (proper implementation) in the cities of Kinshasa and Kananga*	*5*	*A detailed overall schedule developed by professional planning software including the following steps: ordering, manufacturing, testing and factory acceptance, embarkation and sea transport to the port of arrival, customs clearance and removal of equipment from the port, land transport to the site and installation of meters in pilot areas)*
4.2	*Description of the Supply Chain Organization for Imported Supplies (include the supply chain risk assessment and risk management proposal)*	*5*	*Demonstration of mechanisms for transporting imported supplies and materials to the site of the works in a timely manner*
	Total	**100**	

NB: The minimum technical qualification score is 60/100.

- **Technical Proposal Scoring Methodology**

The score for each sub-factor (i) within a factor (j) will be combined with the scores of the sub-factors in the same factor as a weighted sum to form the technical score of the factor using the following formula:

$$S_j \equiv \sum_{i=1}^{k} t_{ji} * w_{ji}$$

where:

TJI = the technical score for the sub-factor "i" of the factor "j",

WJI = weight of the sub-factor "i" in the factor "j",

k = the number of sub-factors noted in the "j" factor, and

$$\sum_{i=1}^{k} w_{ji} = 1$$

The technical scores by factor will be combined into a weighted sum to form the total technical score of the technical proposal using the following formula:

$$T \equiv \sum_{j=1}^{n} S_j * W_j$$

where:

Sj = *the technical score of the "j" factor,*

Wj = *the weight of the "j" factor as specified in the DPAO,*

n = *the number of factors, and*

$$\sum_{j=1}^{n} W_j = 1$$

FINANCIAL PART

1. Margin of Preference (ITC 37): Not applicable

If the **DPAO** so provides, the Buyer will give a margin of preference in the comparison of the evaluated offers to supplies manufactured or assembled in the Buyer's Country, in accordance with the procedure below.

The Buyer will classify substantially compliant bids into one of the following three groups:

a) **Group A** means bids offering supplies manufactured in the country of the Borrower, for which: (i) the cost of labor, raw materials, and components originating in the country of the Borrower represent more than thirty (30) percent of the EXW price of the supplies, and (ii) the facility in which such supplies will be manufactured or assembled, manufactures or assembles identical supplies at least since the date of submission of the Bids.

b) **Group B** : all other offers offering supplies originating in the Borrower's country.

c) **Group C** : offers offering supplies manufactured or assembled outside the country of the Borrower, which have been or will be imported.

To facilitate this classification by the Buyer, the Bidder will complete the appropriate version of the Price Schedule included in the Tender Documents. It is understood, however, that if the Bidder makes a mistake and fills in another form, its Bid will not be rejected but will simply be reclassified by the Buyer in the appropriate group.

The Buyer will first review the Bids to verify in which group the Bidders have classified their Bids in preparing their Bids and Price Schedules. He will confirm or modify this classification if necessary.

After the combined evaluation described below, the Evaluated Offers in each group will then be compared with each other, to determine which is the Most Advantageous Evaluated Offer in each group. The Most Advantageous Evaluated Offer of each group will then be compared with the Most Advantageous Evaluated Offers of the other groups. If, from this comparison, it appears that a Tender from Groups A or B is the Most Advantageous Evaluated Tender, the Bidder who submitted it will be awarded the contract.

If, as a result of the foregoing comparison, the Lowest Valued Bid is in Group C, all Group C Bids will be re-compared to the Most Advantageous Evaluated Bid in Group A, after the supplies offered in each of the Group C Bids have been added to the Assessed Price, and for the sole purpose of such additional comparison, an amount of fifteen (15) percent of the CIP (place of destination) price of the products and goods to be imported or already imported. All prices will take into account unconditional discounts and will be corrected for arithmetic errors. If it is the Group A Tender that is the Most Advantageous, it is selected as the successful tenderer of the contract. Otherwise, the Most Advantageous Evaluated Offer in Group C will be selected.

2 Evaluation criteria (SI, 34.6)

The Buyer will use the criteria and methodologies mentioned in this Section to evaluate the Financial Part.

The Buyer's assessment of the Financial Part may take into account, in addition to the Bid price, one or more of the factors specified in Article 34.6 of the ITB, using the methods and criteria described below:

a) Delivery schedule (version of the Incoterms specified in the **DPAO**):

The Supplies that are the subject of this Call for Bids must be delivered within an acceptable period of time (i.e. between and including an initial and a final date) specified in Section VII - Delivery Schedule. No bonus will be awarded for early delivery; and Offers offering delivery beyond this period will be considered non-compliant. Within this acceptable period, ***no advantage will be granted in the event of a shorter delay*** *in the prices of Offers providing for delivery on a date within the period specified in the Delivery Schedule.*

b) Variations to the Payment Schedule: **Not applicable**

c) Cost of spare parts, mandatory spare parts, and after-sales service:

i) ***The list and quantities of the major assemblies and spare parts, which are likely to be required during the initial period of operation of the supplies specified in the OSA with reference to ITB 16.4, is provided in the Supplies list. The total cost resulting from the application of the unit prices indicated in the Offer will be added to the price of the Offer for evaluation purposes.***

d) Availability of spare parts and after-sales services in the Buyer's country, for equipment offered in the Offer: Not applicable) Life Cycle Costs: **Not applicable**

f) Performance and yield of supplies: **Not applicable**

(g) Additional Specific Criteria: **Not applicable**

3 Combined evaluation

The Employer will evaluate and compare the bids that have been found to be substantially compliant.

The Buyer's evaluation of the Compliant Bids will take into account technical factors, in addition to cost factors.

A score of the evaluated Bid (B) will be calculated for each compliant Bid using the following formula (for percentage comparison purposes), which allows for a full evaluation of the price of the Bid and the technical merits of each Bid:

$$B \equiv \frac{C_{min}}{C} X + \frac{T}{T_{max}} (1 - X)$$

Where:

C = *Assessed cost of the offer*
C min = *the lowest of all costs of the tenders evaluated among the admissible tenders*

T = *the total technical score awarded to the tender*
T max = The note *technique obtained by the tender that obtained the highest score among all the admissible tenders*
X = *weighting for cost as specified in the CADAs*

The Bid with the highest evaluated Bid score (B) among the compliant Bids will be the Most Advantageous Bid provided that the Bidder is qualified to perform the Contract.

4 Multiple Markets (SI34.4)

If, in accordance with ITB **1.1**, Bids are solicited for more than one lot, the Contract(s) will be awarded to the Bidder(s) who submitted the Most Advantageous Bid for the individual lots.

However, if a Bidder, with substantially compliant Bids and with the highest evaluated score for individual lots, is not qualified for the combination of lots, the award will be made based on the highest total score for the combination of lots for which the Bidder is qualified.

Discounts that are conditional on the award of more than one lot will not be taken into account for the purposes of evaluating the Bids.

5 Variant offers (IS 13.1)

The Buyer will evaluate the variants as follows, if their consideration is provided for in Article 13.1 of the ITC:

"The Bidder may submit a Variant Bid *(Technical and Financial Parts)* only if it has submitted a Bid in accordance with the tender documents (Basic Bid). The Buyer will only consider any Alternative Bids submitted by the Bidder whose Basic Bid has been assessed as the Most Advantageous. »

Section IV. Submission Forms

List of Forms

Letter of Submission – Technical Part **65**

Technical Part **68**

Offers Technical Checklist 68

Functional guarantees 70

Manufacturer's Authorization 71

Bidder Information Form 72

Group Member Information (EG) Form 74

EAS and/or HS Declaration of Performance 76

Offer Guarantee Model (Bank Guarantee) **77**

Quote Guarantee **(Surety bond issued by a guarantee company)** **79**

Sample Offering Guarantee Statement **81**

Letter of Submission – Financial Part **83**

Price schedules **85**

Price schedule for Supplies to be imported 86

Price schedule for Supplies, already imported 87

Price schedule for supplies manufactured or assembled in the Buyer's Country 88

Price schedule and schedule for the execution of Related Services 89

Letter of Submission – Technical Part

INSTRUCTIONS TO BIDDERS: REMOVE THIS BOX ONCE YOU HAVE COMPLETED THE DOCUMENT

Place this letter of offer in the first envelope "TECHNICAL PART".

The Bidder must prepare the Letter of Bid on its letterhead clearly indicating the full name and business address of the Bidder.

Note : All text in italics in black type is intended to assist bidders in preparing this form and bidders should remove it from the final document.

Date: *[insert date (day, month, year) of submission of the Offer]*
AO No.: *[insert Tender Number]*
Tender Notice No.: *[insert tender notice number]*
Variant No.: *[insert ID number if this offer is offered for a variant]*

To: *[insert full name of Buyer]*

We, the undersigned Bidder, hereby submit our Bid, in two parts, namely:

(a) the technical part; and

(b) The financial part.

By submitting this Offer, we make the following statements:

a) **No Qualifications**: We have reviewed the Tender Documents, including the amendment(s) issued pursuant to ITB Section 8, No. and have no **reservations** about them;

b) **Eligibility**: We meet the **eligibility** criteria and we have no conflict of interest as defined in Article 4 of the ITB;

c) **Bid Security Statement**: We have not been excluded by the Buyer based on the implementation of a bid guarantee statement or proposal guarantee statement in the Buyer's Country under ITB Section 4.7;

(d) **Sexual Exploitation and Abuse (SEA) and/or Sexual Harassment (HS):** *[select the appropriate option from: (i) to (iii) below and remove the others. In the case of members of a GE and/or subcontractors, indicate the status of disqualification by the Bank of each member of the EG and/or subcontractor].*

We *[in the case of a GE, insert: "including one of the members of the GE"]* and one of our subcontractors:

(i) [have not been disqualified by the Bank for non-compliance with the EAS/HS obligations.]

(ii) [have been disqualified by the Bank for non-compliance with EAS/HS obligations.]

(iii)[have been disqualified by the Bank for non-compliance with EAS/HS obligations, and have been removed from the disqualification list. An arbitral award on this case of disqualification has been rendered in our favour.]

e) **Compliance**: We undertake to provide the following Supplies and Related Services in **accordance with the Tender Documents** and the Delivery Schedule specified in the Tender Documents: *[insert brief description of the Supplies and Related Services*]

f) **Validity of Offer**: Our offer will remain valid until *[insert day, month and year in accordance with CIT 18.1]*; such offer is binding on us and may be accepted at any time prior to the expiration of such period;

g) **Performance Bond**: If our Offer is accepted, we undertake to obtain a Performance Bond in accordance with the tender document;

h) **One Bid per Bidder** : We do not submit any other Bids as an individual Bidder, and we do not participate in any other Bids as a member of the Consortium or as a subcontractor, and we meet the requirements of Article 4.3 of the ITB, other than the Alternative Bids submitted in accordance with Article 13 of the ITB;

i) **Suspension and Exclusion** : We, as well as any of our subcontractors, suppliers, consultants, manufacturers, or service providers for any part of the contract, are not subject to any temporary suspension or exclusion imposed by the World Bank Group or an exclusion imposed by the World Bank Group pursuant to the Mutual Agreement Exclusion between the World Bank and other development banks. In addition, we are not ineligible under the official laws or regulations of the Buyer's Country or under any decision of the United Nations Security Council;

j) **Public Company or Institution**: *[insert either "we are not a public enterprise of the Buyer's Country" or "we are a public enterprise of the Buyer's Country and we comply with the provisions of Article 4.6 of the ITC"*];

k) **Contractual Commitment**: It is understood that this Offer, and your written acceptance of such offer by means of the Contract Award Letter, shall be in lieu of a binding commitment between us, until such time as a contract is formally established and signed;

l) **Not Required to Accept**: We understand that you are not required to accept the Most Advantageous Evaluated Offer or any Offer you may have received;

m) **Fraud and Corruption**: We certify that we have taken all appropriate measures to ensure that no person acting in our name or on our behalf can engage in Fraud and Corruption actions.

Name of Bidder* *[insert full name of Bidder]*

Name of Person Signing the Offer** *[insert full title/capacity of Person Signatory to Offer]*

As *[indicate signer's capacity]*

Signature *[insert signature]*

Duly authorized to sign the Bid for and on behalf of *[insert full name of Bidder]*

As of the _____ day of *[Insert date of signature]*

*In the case of a tender submitted by a consortium of undertakings, indicate the name of the consortium or its partners as the Tenderer.

**The signatory must have a power of attorney given by the Bidder, to be attached to the Bid.

Technical Part

[Note to Buyer: Amend as required]

The Technical Offering must include all relevant information required to evaluate the Technical Part in accordance with the requirements.

To establish the conformity of the Supplies and Related Services with the solicitation document, the Bidder must provide documentary evidence that the Supplies conform to the technical specifications and standards, including all essential technical and performance characteristics specified in Section VII. All required functional guarantees must also be provided. The attached forms/format may assist the Bidder in organizing the information required to submit its Technical Offer.

Documentary evidence may take the form of literature, drawings or data and shall consist of a detailed item-by-item description of the essential technical and performance characteristics of the related supplies and services, demonstrating the substantial compliance of the related supplies and services with the technical specification and, where applicable, a statement of any deviations and exceptions to the provisions of Section VII.

In the interest of timely evaluation of bids and award of the contract, Bidders are encouraged not to overload supporting documentation with documents that do not directly meet the Buyer's requirements.

The Bidder shall also provide a list giving all the details, including the available sources and current prices of spare parts, special tools, etc., necessary for the proper functioning and continued operation of the Supplies for the period specified in the CADPs following the commencement of the Buyer's use of the Supplies.

The standards relating to workmanship, processes, materials and equipment, as well as references to brand names or catalog numbers specified by Buyer in the schedule of requirements, are intended to be descriptive only and not restrictive. The Bidder may offer alternative quality standards, brand names and/or catalog numbers, provided that it demonstrates, to the satisfaction of the Buyer, that the substitutions provide substantial equivalence or are superior to those specified in Section VII.

If the Contract has been assessed as presenting potential or actual cybersecurity risks, the Technical Bid must include the proposed cybersecurity risk management plan.

If there are assessed supply chain risks, the Technical Tender must include the proposed supply chain risk management plan.

Manufacturer's Authorizations must be included in accordance with section 17.2(a) of the IT-CAPD and the attached Manufacturer's Authorization form.

Offers Technical Checklist

Technical requirement No. _	Technical requirement: ***Comply with the Technical Specifications set out in point 3 of Secti VII,***
Compliance of the Bidder's Technical Offer:	
References of the Bidder to the information in the Technical Bid justifying the conformity:	

Functional guarantees

(to be used if applicable)

The Bidder must copy in the left-hand column of the table below; the identification of each functional guarantee required in the Specifications and in the right-hand column, provide the corresponding value for each functional guarantee of the Proposed Supplies.

Functional warranty required	**Value of the Functional Warranty of the Supplies**
1.	
2.	
3.	
...	

Manufacturer's Authorization

[The Bidder shall request the Manufacturer to complete this form in accordance with the instructions provided. This Letter of Authorization must be on Manufacturer's letterhead and must be signed by a person with signing authority that is binding on the Manufacturer. The Bidder will include it in its Bid, if indicated in the CADPs.]

Date: *[insert date (as day, month and year) of submission of Tenders]*

AO Number: *[insert AO process number]*
Variant No.: *[insert ID number if this is an Offer for a Variant Solution]*

To: [insert full name of Buyer]

WHILE

We *[insert full name of manufacturer]*, who are official manufacturers of *[insert type of supplies manufactured]*, having factories in *[insert full address of manufacturer's factories]*, hereby authorize *[insert full name of bidder]* to submit a Bid the purpose of which is to supply the following Supplies, manufactured by us *[insert name and/or brief description of supplies]*, and to negotiate and subsequently sign the Contract.

We hereby extend our full warranty in accordance with Clause 28 of the General Contract Clauses, in respect of the Supplies offered by the company above.

We confirm that we do not engage or employ forced labour or persons subject to trafficking or child labour, in accordance with Clause 14 of the General Contract Clauses.

Signed: *[insert signature of authorized representative(s) of the Manufacturer]*

Name: *[insert full name(s) of manufacturer's representative(s))*

Title: [insert title]

Date of ___

Bidder Information Form

[The Bidder shall complete the table below in accordance with the instructions in square brackets. The table must not be changed. No substitutions will be allowed.]

Date: *[insert date (day, month, year) of submission of the Offer]*
AO No.: *[insert Tender Number]*
Tender Notice No.: *[insert tender notice number]*
Variant Number: *[insert ID number if this Offer is a Variant]*
Page _____ de_ _____ pages

1. Name of Bidder: *[insert legal name of Bidder]*
2. In the case of a grouping, names of all members: *[insert legal name of each member of the group]*
3. Country where the Bidder is, or will be, legally registered: *[insert name of country of registration]*
4. Bidder's Year of Registration: *[insert year of registration]*
5. Official address of the Bidder in the country of registration: *[insert the legal address of the Bidder in the country of registration]*
6. Information on the Bidder's duly authorized representative: Name: *[insert name of Bidder's representative]* Address: *[insert address of Bidder's representative]* Telephone/Facsimile: *[insert telephone number/facsimile of the Bidder's representative]* Email address: *[insert email address of Bidder's representative]*

7. Attached are copies of the originals of the following documents: *[mark the box(es) corresponding to the original documents attached]*

☐ Document of registration, registration or incorporation of the firm named in 1 above, in accordance with Article 4.4 of the ITB

☐ In the case of a grouping, a letter of intent to set up a grouping, or a grouping agreement, in accordance with Article 4.1 of the ITB.

☐ In the case of a public company in the Buyer's country, documents establishing, in accordance with ITB 4.6, that:

- it is legally and financially autonomous,
- it is administered in accordance with the rules of commercial law, and
- it is not under the supervision of the Buyer.

8. Attached is the organizational diagram, a list of board members and beneficial ownership. *The successful Bidder must provide additional information about the beneficiary's ownership, using the Beneficial Ownership Disclosure Form.]*

Group Member Information (EG) Form

[The Bidder shall complete the table below in accordance with the instructions in square brackets. The table must be completed by each member/partner of the group.]

Date: *[insert date (day, month, year) of submission of the Offer]*
AO No.: *[insert Tender Number]*
Tender Notice No.: *[insert tender notice number]*
Variant Number: *[insert ID number if this Offer is a Variant]*
Page _____ de_ _____ pages

1. Name of Bidder: *[insert legal name of Bidder]*
2. Name of the member of the group: *[insert the legal name of the member of the group]*
3. Country where the member of the group is, or will be, legally registered: *[insert name of the country of registration of the member of the group]*
4. Year of registration of the member of the group: *[insert year of registration of the member of the group]*
5. Official address of the group member in the country of registration: *[insert legal address of the group member in the country of registration]*
6. Information on the duly authorised representative of the member of the group: Name: *[insert name of representative of the group member]* Address: *[insert address of the representative of the member of the group]* Telephone/Facsimile: *[insert telephone number/facsimile of the representative of the member of the group]* Email address: *[insert email address of the group member's representative]*

7. Attached are copies of the originals of the following documents: *[mark the box(es) corresponding to the original documents attached]*

☐ Document of registration, registration or incorporation of the firm named in 2 above, in accordance with Article 4. 4 of the CT

☐ In the case of a public company in the Buyer's country, documents establishing that:

- it is legally and financially autonomous,
- it is administered in accordance with the rules of commercial law, and
- it is not under the supervision of the Buyer, in accordance with Article 4.6 of the ITC.

8. Attached is the organizational diagram, a list of board members and beneficial ownership. *The successful Bidder must provide additional information about the beneficiary's ownership, using the Beneficial Ownership Disclosure Form.]*

EAS and/or HS Declaration of Performance

[The table below must be completed for the Bidder and, in the case of a consortium, each member of the consortium and each specialised subcontractor.]

Name of Bidder: [insert full name]
Date: [insert day, month, year]
Name of the member of the Consortium or the specialized subcontractor: [insert full name]
DAO number and title: [insert DAO number and title]
Page [insert page number] on [insert total number] pages

EAS and/or HS declaration **in accordance with Section III, Qualification Criteria, and the Requirements**
We: (a) have not been disqualified by the Bank for non-compliance with SEA/HS obligations (b) have been disqualified by the Bank for non-compliance with SEA/HS obligations (c) have been disqualified by the Bank for non-compliance with the SEA/HS obligations. An arbitration decision on the disqualification case was rendered in our favour.
[If (c) above is applicable, attach evidence of an arbitral award reversing the findings on the issues underlying the disqualification.]

Offer Guarantee Model (Bank Guarantee)

[The bank shall complete this model offer guarantee in accordance with the indications in square brackets]

[insert name of bank, and address of issuing agency]

Beneficiary: *[insert name and address of the Buyer]*

Date: *[insert date]*

Variant: *[insert identification if it is a variant offer]*

Offer Guarantee No.: *[insert Warranty No.]*

Guarantor: *[insert name of bank, and address of issuing agency, unless on the header]*

We have been informed that *[insert Contract Number]* (hereinafter referred to as "the Bidder") has responded to your Request for Bids No. *[insert tender notice number]* for the supply of *[insert description of supplies]* and has submitted or will submit its Tender to you as of *[insert date of submission of Tender]* (hereinafter referred to as "the Offer").

Under the provisions of the Tender Documents, the Tender must be accompanied by a Guarantee of Offer**.**

At the request of the Bidder, we *[insert name of bank]* hereby unreservedly and irrevocably undertake to pay you, on first demand, any sums of money that you may claim up to [*insert sum in figures in the currency of the Buyer's Country or an equivalent amount in a freely convertible international currency]*. _____ [*insert sum in words*].

Your claim for payment must be accompanied by a statement that the Bidder has failed to perform any of its obligations under the Bid, namely:

a) if it withdraws the Bid before the expiry date of the validity of the Bid specified by it in the Bid Submission Letter, or such extended date as the Bidder may indicate; or

b) if, having been notified of the acceptance of the Offer by the Buyer before the date of expiry of the validity of the Offer as indicated in the Letter of Submission of the Offer or extended by the Bidder, it:

   (i) does not sign the Deed of Commitment; or

   (ii) fails to provide the Performance Bond if required to do so as provided for in the Instructions to Bidders.

This Security will expire (a) if the Contract is awarded to the Bidder, when we receive a copy of the Contract signed and the Performance Security issued on your behalf, in accordance with the

Bidder's Instructions; or (b) if the Contract is not awarded to the Bidder, on the earlier of: (i) when we receive a copy of your notification to the Bidder of the name of the successful bidder, or (ii) twenty-eight (28) days after the expiry date of the validity of the Bid.

Any request for payment under this guarantee must be received by this date at the latest.

This warranty is governed by the International Chamber of Commerce (ICC) Uniform Rules 2010 for On-Demand Guarantees, ICC Publication No. 758.

Name: *[full name of signatory]* Title *[legal capacity of signatory person]*

Signed *[signature of the person whose name and title appear above]*

Note: The text in italics is for use when preparing the form and should be removed from the final official version.

Bid Security
(Surety Bond issued by a guarantee company)

[The guarantee company completes this Bid Security in accordance with the indications in square brackets]

Warranty No *[insert Warranty No.]*

Whereas *[insert name of Bidder]* (hereinafter referred to as "the Bidder") submitted its bid on *[insert date]* in response to tender No. *[insert tender notice no.]* for the supply of *[insert description of supplies]* (hereinafter referred to as "the Bid").

HEREBY DO MAKE IT known that WE *[insert name of issuing guarantee company]* with registered office at *[insert address of guarantee company]* (hereinafter referred to as "the Guarantor"), are liable to *[insert name of Buyer]* (hereinafter referred to as "the Buyer") for the sum of *[insert the amount in figures in the currency of the Buyer's Country or an equivalent amount in a freely convertible international currency], [insert the amount in words]* that the Guarantor hereby undertakes and his successors or signatories to pay in full to the said Buyer. Certified by the stamp of the said Guarantor this __ day of _____ *[insert date]*

THE CONDITIONS for the performance of this obligation are as follows:

a) if it withdraws the Bid before the expiry date of the validity of the Bid specified by it in the Bid Submission Letter, or such extended date as the Bidder may indicate; or

b) if, having been notified of the acceptance of the Offer by the Buyer before the date of expiry of the validity of the Offer as indicated in the Letter of Submission of the Offer or extended by the Bidder, it:

   (iii) does not sign the Deed of Commitment; or

   (iv) fails to provide the Performance Bond if required to do so as provided for in the Instructions to Bidders.

We undertake to pay the Buyer an amount equal to the amount stipulated above, upon receipt of the Buyer's first written request, without the Buyer being required to justify its request, provided, however, that in its request, the Buyer will note that the amount it claims is due to it because one or both of the above conditions are met, specifying which one(s) has or have motivated his request.

This warranty remains valid until the twenty-eighth (28th) day inclusive after the expiry date of the validity of the Offer; any request by the Buyer to have it used must reach the Guarantor on this date at the latest.

Name: *[full name of signatory]* Title *[legal capacity of signatory person]*

Signed *[signature of the person whose name and title appear above]*

As of the _____ day of _____, _____. *[insert date]*

Model Bid Guarantee Statement**: Not applicable**

[The Bidder shall complete this bid security form in accordance with the indications in square brackets]

Date *[insert date (day, month, year) of submission of the Offer]*
AO No.: *[insert Tender Number]*
Tender Notice No.: *[insert tender notice number]*
Variant No.: *[insert ID number if this offer is offered for a variant]*

Attn: *[insert full name of Buyer]*

We, the undersigned, declare that:

1. We acknowledge that offers must be accompanied by a Guarantee of Offer statement.

2. We agree that we may be subject to a suspension of our right to participate in any tender for a contract from the Buyer for a period of *[insert number of months or years]* commencing on *[insert date],* if we fail to perform any of our obligations under the Offer, namely:

a) if we withdraw the Offer before the expiry date of the validity of the Offer specified in the Offer Submission Letter, or such other date extended by us; or

b) if, having been notified of the acceptance of the Offer by the Buyer prior to the expiry date of the validity of the Offer as set out in the Bid Submission Letter or extended by us, we:

   (i) do not sign the Deed of Commitment; or

   (ii) fail to provide the Performance Bond, if we are required to do so as provided for in the Instructions to Bidders.

3. This guarantee will expire if the contract is not awarded to us, on the earlier of: (i) when we receive a copy of your notification of the name of the successful bidder, or (ii) twenty-eight (28) days after the expiry date of our Offer.

4. It is understood that if we are a group of companies, the warranty statement of the Offer must be in the name of the group submitting the Offer. If the consortium has not been formally constituted at the time of submission of the Offer, the declaration of guarantee of the Offer must be in the name of all future members of the consortium named in the letter of intent.

Name of Bidder* _____

Name of the person duly authorized to sign the Bid on behalf of the Bidder**_____

As *a [indicate signatory capacity]*_____

Signature *[insert signature of the person named above]* _____

As of _____ day of _____ *[Insert date of signature]*

*: In the case of a Bid submitted by a GE, specify the name of the GE as the Bidder
**: The person signing the Bid must have a notarial power attached to the Bid given by the Bidder.

[Note: In the case of a GE, the Offering Guarantee Statement must be in the name of all members of the GE delivering the Offer]

Letter of Submission – Financial Part

INSTRUCTIONS TO BIDDERS: DELETE THIS BOX ONCE YOU HAVE COMPLETED THE DOCUMENT

The Bidder shall complete this Letter of Submission on its letterhead, clearly indicating the full name and business address.

Notes: The text in italics is intended to assist Bidders in preparing this form.

Date of submission of this Offer: ***[insert date (day, month, year) of submission of the Offer]***
AO No.: ***[insert Buyer's number]***
Variant No.: ***[insert ID number if this offer is offered for a variant]***

To: ***[insert full name of Buyer]***

We, the undersigned, submit herewith the second part of our Offer, the Financial Part.

By submitting our Offer, we make the following additional statements:

(a) **Validity of the Offer:** Our Offer will remain valid until _____ *[insert day, month and year in accordance with CIT 18.1],* and this offer is binding on us and may be accepted at any time prior to that date;

(b) **Offer Price:** The total amount of our Offer, excluding the discount offered in paragraph (c) below, is: ***[Insert one of the options below as appropriate]***

[In the case of a single lot:] Total amount is: ***[insert the total amount of the Offer in letters and figures, specifying the various amounts and respective currencies***];

[In the case of multiple lots: the Total Amount of each lot is: ***[insert the total amount of each of the lots in letters and numbers, specifying the various amounts and respective currencies***];

[In the case of multiple lots: The total amount of all lots is: ***[insert the total amount of all lots in letters and numbers, specifying the various amounts and respective currencies***];

(c) **Discounts:** The discounts offered and the terms and conditions for applying such discounts are as follows:

(i) The discounts offered are as follows: ***[detail each of the discounts offered]***
(ii) The precise method of calculating these discounts to determine the amount of the Offer is as follows**:** ***[indicate in detail the method of application of each of the discounts offered]***;

(d) **Benefits, Gratuities or Commissions:** We have paid, or are required to pay , the following benefits, gratuities or commissions in connection with the Tender process or the performance/signing of the Contract: *[insert the full name of each Beneficiary, their full address, the reasons for which each benefit, gratuity or commission was paid and the amount and currency of each payment]*

Name of the Beneficiary	Address	Reason	Amount
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

(If no amount has been paid or is not due, mark "nil").

e) **Contractual Commitment**: It is understood that this Offer, and your written acceptance of such offer by means of the Contract Letter, shall be in lieu of a binding commitment between us, until such time as a contract is formally established and signed;

Name of Bidder* ***[insert full name of Bidder]***

Name of Person Signing the Offer** ***[insert full title/capacity of Person Signatory to Offer]***

As ***[indicate signer's capacity]***

Signature of the person mentioned above ***[insert signature]***

Duly authorized to sign the Bid for and on behalf of ***[insert full name of Bidder]***

As of the _____ day of ***[Insert date of signature]***

*In the case of a tender submitted by a consortium of undertakings, indicate the name of the consortium or its partners as the Tenderer.

**The signatory must have a power of attorney given by the Bidder, to be attached to the Bid.

Price schedules

[The Bidder must complete all blank spaces in the Price Schedule forms in accordance with the instructions below. The list of items in column 1 of the Price Schedule shall be identical to the list of Supplies and Related Services provided by the Buyer in Section VII.]

Price schedule for Supplies to be imported

Date *[insert*

Group C Offers, Supplies to Import
Currency of the Offer in accordance with Article 15 of the ITC

the date (day, month, year) of submission of the Offer]
AO No.: *[insert Tender Number]*
Tender Notice No.: *[insert tender notice number]*
Variant No.: *[insert ID number if this offer is offered for a variant]*

1	2	3	4	5	6	7	8	9
Article No.	Description of Supplies	Country of origin	Delivery date as defined in Incoterms	Quantity (Nb. of units)	Unit price CIP___ in accordance with SI 14.8(b) (i)	CIP price per item (5x6 collar)	Price per item of ground transportation and other services required in the Buyer's Country to transport the supplies to the final destination (as required in the CADPs)	Total price per item (col. 7+8)
[insert Article No.]	*[Insert Identification of Supply]*	*[insert country of origin]*	*[insert free delivery date]*	*[insert quantity and unit of measure identifier]*	*[insert CIP unit price for item]*	*[insert total CIP price for the item]*	*[insert corresponding price for item]*	*[insert total price for item]*
1.	**City of KINSHASA**							
	Supply of smart meters integrating GPRS (General Packet Radio Service) technology to ensure remote data communication between the meters and the IoT server (including the smart meter management system or software) **Including 85% of smart meters in mono and 15% in spare parts.**							
1.1	DN 15 meter			**32800**				
1.2	DN 20 meter			**2800**				

1	2	3	4	5	6	7	8	9
Article No.	Description of Supplies	Country of origin	Delivery date as defined in Incoterms	Quantity (Nb. of units)	Unit price CIP___ in accordance with SI 14.8(b) (i)	CIP price per item (5x6 collar)	Price per item of ground transportation and other services required in the Buyer's Country to transport the supplies to the final destination (as required in the CADPs)	Total price per item (col. 7+8)
[insert Article No.]	*[Insert Identification of Supply]*	*[insert country of origin]*	*[insert free delivery date]*	*[insert quantity and unit of measure identifier]*	*[insert CIP unit price for item]*	*[insert total CIP price for the item]*	*[insert corresponding price for item]*	*[insert total price for item]*
1.3	DN 25 meter			**2800**				
1.4	DN 32 meter			**2800**				
1.5	DN 40 meter			**2800**				
1.6	DN 50 meter			**900**				
1.7	DN 65 meter			**900**				
1.8	DN 80 meter			**900**				
1.9	DN 100 meter			**900**				
1.10	DN 150 meter			**900**				
							Total price for the city of KINSHASA	**[Insert total price]**
2.	**City of KANANGA**							
2.1	**Meters for domestic and other private customers**							
	Supply of smart meters integrating GPRS (General Packet Radio Service) technology to ensure remote data communication between the meters and the IoT server (including the smart meter management system or software)							
2.1.1	DN 15 meter			**27200**				
2.1.2	DN 20 meter			**2000**				
2.1.3	DN 25 meter			**1000**				
2.1.4	DN 32 meter			**1000**				

1	2	3	4	5	6	7	8	9
Article No.	Description of Supplies	Country of origin	Delivery date as defined in Incoterms	Quantity (Nb. of units)	Unit price CIP___ in accordance with SI 14.8(b) (i)	CIP price per item (5x6 collar)	Price per item of ground transportation and other services required in the Buyer's Country to transport the supplies to the final destination (as required in the CADPs)	Total price per item (col. 7+8)
[insert Article No.]	*[Insert Identification of Supply]*	*[insert country of origin]*	*[insert free delivery date]*	*[insert quantity and unit of measure identifier]*	*[insert CIP unit price for item]*	*[insert total CIP price for the item]*	*[insert corresponding price for item]*	*[insert total price for item]*
2.1.5	DN 40 meter			**500**				
2.1.6	DN 50 meter			100				
2.1.7	DN 65 meter			100				
2.1.8	DN 80 meter			100				
2.1.9	DN 100 meter			100				
2.1.10	DN 150 meter			100				
2.2	**Meters for fire hydrants**							
	Supply of smart meters integrating GPRS (General Packet Radio Service) technology to ensure remote data communication between the meters and the IoT server (including the smart meter management system or software)							
2.2.1	DN 15 Standpipe Meter			300				
							Total price for the city of KANANGA	**[Insert total price]**
							Grand Total Price for the Three Cities	**[Insert total price]**

Name of Bidder *[insert name of Bidder]* Signature *[insert signature],* Date *[insert date]*

A reception of the supplies will be organised on site during which the conformity (quality and quantity) of the supplies delivered will be verified. The necessary costs of guarding (for a maximum period of 2 months to be expected) of the supplies before reception on site as well as the remuneration of the taskers for the handling and counting of the supplies will be borne by the supplier.

NB: The project benefits from the exemption regime for taxes, duties, taxes and fees conferred on it by Ministerial Order No. 076/CAB/MIN/FIN/2012 of 13 January 2012 on Special Provisions Applicable to Externally Financed Public Procurement and the related Tax Specifications.

Price schedule for supplies manufactured or assembled in the Buyer's Country

Buyer's Country

(Group A and B Offers)

Currency of the Offer in accordance with Article 15 of the ITC

Date [*insert date (day, month, year) of submission of the Offer]*
AO No.: *[insert Tender Number]*
Tender Notice No***.: [insert tender notice number]***
Variant No.: *[insert ID number if this offer is offered for a variant]*

1	2	3	4	5	6	7	8	9	10
Article	Description	Delivery date as defined in Inco-terms	Quantity (Nb. of units)	Unit price EXW	Prix total EXW per item (cols.4 x 5)	Unit price for ground transportation and other services required in the Buyer's Country to transport the supplies to the final destination as indicated in the DPAO	Cost of local labor, raw materials and components from the Buyer's country % of Col.5	Sales tax and other taxes if the contract is awarded (as per SI 14.8(a)(ii))	Total price per item (col. 6+7)
[insert Article No.]	*[Insert Identifica-tion of Supply]*	*[insert free delivery date]*	*[insert quantity and identi-fication of unit of measure]*	*[insert EXW unit price for item]*	*[insert total EXW price for item]*	*[insert corresponding price for item]*	*[insert cost Local labour, raw materials and components from the Buyer's country % of EXW price for item]*	*[insert total amount per object of sales and other taxes paid or payable if the contract is awarded]*	*[insert total price for item]*
							Total price		*[insert total price]*

Name of Bidder *[insert name of Bidder]* Signature *[insert signature]*, Date *[insert date]*

Date *[insert date of Offer]*

Price schedule and schedule for the execution of Related Services

Currency of the Offer in accordance with Article 15 of the ITC

Date *[insert date (day, month, year) of submission of the Offer]*
AO No.: *[insert Tender Number]*
Tender Notice No.: *[insert tender notice number]*
Variant No. *: [insert ID number if this offer is offered for a variant]*

1	2	3	4	5	6	7
Article	Description of the Services (excluding ground transportation and other services required in the Buyer's Country to transport the supplies to the final destination)	Country of origin	Date of completion at the final destination	Quantity (Nb. of units)	Unit price	Total price per item (Col. 5*6)
[insert Article No.]	*[Insert service identification]*	*[insert country of origin]*	*[insert date of completion offered]*	*[insert quantity and identification of unit of measure]*	*[insert unit price for item]*	*[insert total price for item]*
1	***City of KINSHASA***					
1.1.	IoT meter management servers: physical server, network server and application server (middleware), firewall including installation and configuration support			2 ensembles		
1.2.	Compatibility test result between smart meters and local telephone operators' networks (present in the DRC).			1 set		
1.3.	APIs for interfacing with REGIDESO SA software			1 set		
1.4.	APIs for interfacing with REGIDESO SA software			1 set		
1.5.	End-to-end testing of the entire infrastructure			1 set		
1.6.	Various documentation (installation, use, troubleshooting manual, configurations, etc.)			1 set		
1.7.	Software integration support and communication hardware			5 ensembles		
1.8.	Training of staff on meter installation, management software, and communication hardware and technology.			13 people		

1.9.	After-sales technical support and installation for a period of 12 months			8 ensembles		
1.10.	Installation and commissioning of smart meters for the sectorization of pilot areas (Pilot areas: Bandalungwa Commune, Gombe Commune and Ngaliema Commune)			60% of smart meters		
1.11.	Installation and commissioning of the smart meter assembly workshop as described in point 3 of this specification.			1 set		
1.12	Costs relating to the reception of supplies on site for the verification of the conformity (quality and quantity) of the supplies delivered, including the necessary costs of guarding (for a maximum period of 2 months) of the supplies before reception on site as well as the remuneration of the taskers for the handling and counting of the supplies			1 set		
					Total price for the city of KINSHASA	*[Insert total price]*
2	***City of KANANGA***					
2.1.	IoT meter management servers: physical server, network server and application server (middleware), firewall including installation and configuration support			0		
2.2.	Compatibility test result between smart meters and local telephone operators' networks (present in the DRC).			1 set		
2.3.	APIs for interfacing with REGIDESO SA software			1 set		
2.4.	APIs for interfacing with REGIDESO SA software			1 set		
2.5.	End-to-end testing of the entire infrastructure			1 set		

2.6.	Various documentation (installation, use, troubleshooting manual, configurations, etc.)			1 set		
2.7.	Software integration support and communication hardware			5 ensembles		
2.8.	Training of staff on meter installation, management software, and communication hardware and technology.					
2.9.	After-sales technical support and installation for a period of 12 months			8 ensembles		
2.10.	Installation and commissioning of smart meters for the sectorization of pilot areas (Pilot areas: Kananga Commune, Katoka Commune, Lukonga Commune, Ndesha Commune, Nganza Commune and the Ntambwe mission)			100% of smart meters		
2.11.	Installation and commissioning of the smart meter assembly workshop as described in point 3 of this specification.			1 set		
2.12	Costs relating to the reception of supplies on site for the verification of the conformity (quality and quantity) of the supplies delivered, including the necessary costs of guarding (for a maximum period of 2 months) of the supplies before reception on site as well as the remuneration of the taskers for the handling and counting of the supplies			1 set		
					Total price for the city of KANANGA	*[Insert total price]*
					Grand Total Price for the Three Cities	*[Insert total price]*

Name of Bidder *[insert name of Bidder]* Signature *[insert signature]* Date *[insert date]*

Section V. Eligible Countries: None.

Eligibility for procurement of Supplies, Works and Services financed by the World Bank.

For the information of bidders, with reference to ITB Articles 4.8 and 5.1, firms, goods and services from the following countries are not eligible to compete in this bidding process:

(a) under ITB 4.8 (a) and 5.1: please complete

[insert list of ineligible countries, or if there are none, indicate "none"]

(b) under ITB Articles 4.8 (b) and 5.1: please complete

[insert list of ineligible countries, or if there are none, indicate "none"]

Section VI. The Bank's Rules on Fraud and Corruption

(This Section VI shall not be amended)

1. Purpose

1.1 The Bank's Anti-Corruption Guidelines and this section are applicable to procurement in the context of the Bank's Investment Project Finance Operations.

2. Requirements

2.1 The Bank requires, as part of the procurement process it finances, to require Borrowers (including beneficiaries of its financing) as well as bidders (candidates/proposers), suppliers, service providers, contractors and their agents (whether declared or undeclared), staff, subcontractors and suppliers to observe, in the award and performance of such contracts, the strictest rules of professional ethics and to refrain from fraud and corruption practices.

2.2 Under this principle, the Bank

a) for the purposes of this provision, defines the following terms as follows:

(i) is guilty of «corruption» directly or indirectly offers, gives, solicits or accepts any advantage for the purpose of improperly influencing the actions of another person or entity;

(ii) Delivers "fraudulent schemes" means anyone who acts, or misrepresents facts, deliberately or through gross negligence, or attempts to mislead a person or entity in order to obtain a financial or other benefit, or to evade an obligation;

(iii) "Collusive practices" are persons or entities who agree to achieve an unlawful objective, including by improperly influencing the actions of other persons or entities;

(iv) engages in "coercive tactics" means anyone who harms or harms, or threatens to harm or harm, directly or indirectly, a person or their property with a view to improperly influencing the actions of that person or entity; and

(v) and engages in "obstructive manoeuvres"

(a) who deliberately destroys, falsifies, alters or conceals the evidence on which an investigation of corruption or fraudulent, coercive or collusive practices is based, or makes false statements to its investigators intended to obstruct its investigation; threatening, harassing or intimidating anyone in order to prevent them from sharing information about this investigation, or from continuing the investigation; or

(b) who wilfully interferes with the Bank's exercise of its right of review as set out in paragraph (e) below; and

b) reject the proposal for the award of the contract if it establishes that the tenderer to whom it is recommended to award the contract is guilty of corruption, directly or through an agent, or has engaged in fraudulent, collusive, coercive or obstructive tactics with a view to obtaining the contract;

c) in addition to the enforcement measures set out in the Financing Agreement, may decide on other appropriate actions, including declaring the procurement non-compliant if it determines, at any time, that the representatives of the Borrower or a beneficiary of the financing engaged in bribery or fraudulent, collusive, coercive or obstructive practices during the procurement procedure or the performance of the contract without the Borrower having taken, in a timely manner and to the satisfaction of the Bank, the measures necessary to remedy the situation, including by failing to inform the Bank when it became aware of such practices;

d) sanction a company or individual, within the framework of the Bank's Anti-Bribery Guidelines and in accordance with the applicable sanctions rules and procedures of the Bank Group, including by publicly declaring the exclusion of the company or individual for an indefinite or specified period of time (i) from the award of a Bank-financed contract or from being able to benefit financially or in any other way from it, [1] (ii) from participation[2] as a subcontractor, consultant, manufacturer or supplier of goods or designated service provider of an undertaking otherwise eligible for the award of a contract financed by the Bank; and (ii) the benefit of the disbursement of funds from a loan from the Bank or to participate in any other way in the preparation or implementation of a project financed by the Bank;

e) require that tender documents and contracts financed by the Bank contain a provision requiring bidders (candidates/proposers), consultants, suppliers and contractors, subcontractors, service providers, suppliers, agents, and their staff to authorize the Bank to inspect accounting [3] documents and documents and other documents relating to the awarding of the contract, the selection and/or performance of the contract and to submit them for audit to auditors appointed by the Bank.

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[1] For the avoidance of doubt, the effects of such a sanction on the party concerned concern, but are not limited to, (i) the submission of an application for pre-qualification, the expression of interest for a consultancy assignment, and the participation in a call for tenders directly or as a subcontractor, consultant, manufacturer or supplier, or service provider in the context of such a contract, and (ii) the conclusion of an amendment or addendum containing a material amendment to an existing contract.

[2] A designated subcontractor, consultant, manufacturer or supplier of goods or services (different titles are used depending on the wording of the tender documents) is a company or individual who (i) is part of the bidder's pre-qualification request or offer taking into account the specific and essential experience and know-how it brings to meet the qualification conditions for a given bid; or (ii) has been designated by the Borrower.

[3] The inspections carried out in this context are verifications on the basis of documents due to their nature. They include documentary and factual research activities undertaken by the Bank, or persons designated by it, in order to verify specific aspects of an investigation or audit, such as the assessment of the veracity of a possible accusation of Fraud and Corruption, by means of appropriate mechanisms. Such activities may include, without limitation, accessing and reviewing financial records of a business or person, making copies of such records as necessary, accessing and reviewing any other documents, data and information (in printed or electronic form) deemed relevant to the investigation or audit, make copies of these documents as required, interview staff and other persons, conduct physical inspections and site visits, and obtain third-party verification of information.

PART TWO - Buyer's Needs

Section VII. List of Supplies, Delivery Schedule, Technical Specifications and Plans

Table of Contents

1. List of Supplies and Delivery Schedule 101

2. List of Related Services and Implementation Schedule 102

3. Technical specifications 103

5. Inspections and Tests 107

Notes for the preparation of this Section VII

It is the responsibility of the Buyer to prepare and include this Section VII in the Tender Document. This Section includes at least a description of the Supplies and Services to be provided and the Delivery Schedule.

The purpose of this Section VII is to provide Bidders with sufficient information to enable them to prepare their Bids in an efficient and accurate manner, including Price Schedules, for the preparation of which Section IV provides Model Tables. In addition, this Section VII, used in conjunction with the Price Schedules (Section IV), should allow for price adjustments in the event of variations in quantities at the time of contract award in accordance with Article 45.1 of the Instructions to Bidders (SI).

The date or period of delivery of the Supplies shall be carefully specified, taking into account: (a) the implications that may arise from the terms used to define the delivery, such terms being specified in the ITB and defined in the terms of international trade (Incoterms) (e.g. the terms EXW, or CIP, FOB, FCA-which imply that the "delivery" is effective when the Supplies are delivered **to the carrier**), and (b) the prescribed date, which is the date from which the Bidder's obligations begin (e.g., notification of the Contract Award, signature of the contract, opening or confirmation of the letter of credit).

1. List of Supplies and Delivery Schedule

[The Purchaser shall complete this table, with the exception of the column "Delivery Date Offered by the Bidder" which shall be completed by the Bidder. The list of items must be identical to that which appears in the price schedule, Section IV]

Article No.	**Description of Supplies**	**Quantity (Nb. Units)**	**Unit**	**(Project Site) or Final Destination as indicated in the CADPs**	**Delivery date (according to Incoterms)**		
					Earliest delivery date	**Delivery date at the latest**	**Delivery date offered by the Bidder [*to be indicated by the Bidder*]**
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
I.	**City of KINSHASA**						
1.1.	Supply of smart meters integrating GPRS (General Packet Radio Service) technology to ensure remote data communication between the meters and the IoT server (including the smart meter management system or software) **Including 85% of smart meters in mono and 15% in spare parts.**						

Article No.	Description of Supplies	Quantity (Nb. Units)	Unit	(Project Site) or Final Destination as indicated in the CADPs	Delivery date (according to Incoterms)		
					Earliest delivery date	Delivery date at the latest	Delivery date offered by the Bidder [*to be indicated by the Bidder*]
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
1.1.1	DN 15 meter	**32 800**	Piece	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	
1.1.2	DN 20 meter	**2 800**	Piece	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	
1.1.3	DN 25 meter	**2 800**	Piece	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	

Article No.	Description of Supplies	Quantity (Nb. Units)	Unit	(Project Site) or Final Destination as indicated in the CADPs	Delivery date (according to Incoterms)		
					Earliest delivery date	Delivery date at the latest	Delivery date offered by the Bidder [*to be indicated by the Bidder*]
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
1.1.4	DN 32 meter	**2800**	Piece	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	
1.1.5	DN 40 meter	**2800**	Piece	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	
1.1.6	DN 50 meter	**900**	Piece	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	

Article No.	Description of Supplies	Quantity (Nb. Units)	Unit	(Project Site) or Final Destination as indicated in the CADPs	Delivery date (according to Incoterms)		
					Earliest delivery date	Delivery date at the latest	Delivery date offered by the Bidder [*to be indicated by the Bidder*]
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
1.1.7	DN 65 meter	**900**	Piece	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	
1.1.8	DN 80 meter	**900**	Piece	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	
1.1.9	DN 100 meter	**900**	Piece	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	

Article No.	Description of Supplies	Quantity (Nb. Units)	Unit	(Project Site) or Final Destination as indicated in the CADPs	Delivery date (according to Incoterms)		
					Earliest delivery date	Delivery date at the latest	Delivery date offered by the Bidder [*to be indicated by the Bidder*]
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
1.1.10	DN 150 meter	**900**	Piece	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	
1.2.	Supply of the computerized management system (software) allowing the interfacing of these meters with the other software of REGIDESO SA in particular the ERP, CRM, ...	1	Together	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	
1.3.	Supply of equipment for the modular assembly workshop of smart meters	1	Together	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe and Commune of Ngaliema, ...	6 months	7 months	

Article No.	Description of Supplies	Quantity (Nb. Units)	Unit	(Project Site) or Final Destination as indicated in the CADPs	Delivery date (according to Incoterms)		
					Earliest delivery date	Delivery date at the latest	Delivery date offered by the Bidder [*to be indicated by the Bidder*]
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
II.	City of KANANGA						
2.1	**Meters for domestic and other private customers**						
	Supply of smart meters integrating GPRS (General Packet Radio Service) technology to ensure remote data communication between the meters and the IoT server (including the smart meter management system or software) **Including 85% of smart meters in mono and 15% in spare parts.**						
2.1.1	DN 15 meter	**27 200**	Piece	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.	6 months	7 months	

Article No.	Description of Supplies	Quantity (Nb. Units)	Unit	(Project Site) or Final Destination as indicated in the CADPs	Delivery date (according to Incoterms)		
					Earliest delivery date	Delivery date at the latest	Delivery date offered by the Bidder [*to be indicated by the Bidder*]
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
2.1.2	DN 20 meter	**2 000**	Piece	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.	6 months	7 months	
2.1.3	DN 25 meter	**1000**	Piece	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.	6 months	7 months	

Article No.	Description of Supplies	Quantity (Nb. Units)	Unit	(Project Site) or Final Destination as indicated in the CADPs	Delivery date (according to Incoterms)		
					Earliest delivery date	Delivery date at the latest	Delivery date offered by the Bidder [*to be indicated by the Bidder*]
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
2.1.4	DN 32 meter	**1000**	Piece	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.	6 months	7 months	
2.1.5	DN 40 meter	**500**	Piece	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.	6 months	7 months	

Article No.	Description of Supplies	Quantity (Nb. Units)	Unit	(Project Site) or Final Destination as indicated in the CADPs	Delivery date (according to Incoterms)		
					Earliest delivery date	Delivery date at the latest	Delivery date offered by the Bidder [*to be indicated by the Bidder*]
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
2.1.6	DN 50 meter	100	Piece	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.	6 months	7 months	
2.1.7	DN 65 meter	100	Piece	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.	6 months	7 months	

Article No.	**Description of Supplies**	**Quantity (Nb. Units)**	**Unit**	**(Project Site) or Final Destination as indicated in the CADPs**	**Delivery date (according to Incoterms)**		
					Earliest delivery date	**Delivery date at the latest**	**Delivery date offered by the Bidder [*to be indicated by the Bidder*]**
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
2.1.8	DN 80 meter	100	Piece	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.	6 months	7 months	
2.1.9	DN 100 meter	100	Piece	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.	6 months	7 months	

Article No.	Description of Supplies	Quantity (Nb. Units)	Unit	(Project Site) or Final Destination as indicated in the CADPs	Delivery date (according to Incoterms)		
					Earliest delivery date	Delivery date at the latest	Delivery date offered by the Bidder [*to be indicated by the Bidder*]
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
2.1.10	DN 150 meter	100	Piece	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune Nganza and the Ntambwe mission.	6 months	7 months	
2.2	**Meters for fire hydrants**						
	Supply of smart meters integrating GPRS (General Packet Radio Service) technology to ensure remote data communication between the meters and the IoT server (including the smart meter management system or software)						

Article No.	Description of Supplies	Quantity (Nb. Units)	Unit	(Project Site) or Final Destination as indicated in the CADPs	Delivery date (according to Incoterms)		
					Earliest delivery date	Delivery date at the latest	Delivery date offered by the Bidder [*to be indicated by the Bidder*]
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
2.2.1	DN 15 Meter For Fire Hydrant	300	Piece	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.	6 months	7 months	
2.3	Supply of the computerized management system (software) allowing the interfacing of these meters with the other software of REGIDESO SA in particular the ERP, CRM, ...	1	Together	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune Commune of Nganza and the Ntambwe mission.	6 months	7 months	

Article No.	Description of Supplies	Quantity (Nb. Units)	Unit	(Project Site) or Final Destination as indicated in the CADPs	Delivery date (according to Incoterms)		
					Earliest delivery date	Delivery date at the latest	Delivery date offered by the Bidder [*to be indicated by the Bidder*]
	[Insert description of Supplies]	*[Insert quantity of items to be supplied]*	*[Insert unit of measure]*	*[Insert final delivery location, as per the CADAs]*	*[Insert date]*	*[Insert date]*	*[Insert date offered by the Bidder]*
2.4	Supply of equipment for the modular assembly workshop of smart meters	1	Together	REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/ Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.	6 months	7 months	

List of the main assemblies and spare parts:

The main sets of water meters and water meter spare parts:

- **Electronic components:** present in digital meters, with sensors, display units and circuit boards.
- **Connection accessories**: fittings, plumbing parts, and adapters connecting meters to pipes.
- **Seals:** Gaskets, O-rings and seals that play a critical role in preventing leaks.
- **Calibration Equipment:** Tools to ensure that water meters accurately read according to standards.

These supplies must have the below advantages of being high-quality water meter parts and water meter spare parts

- **Improved accuracy:** Reliable parts ensure that the water meter records consumption accurately, avoiding billing discrepancies.
- **Increased Durability:** Quality parts increase the life of water meters, minimizing the need for frequent replacements.
- **Economic efficiency:** Using reliable spare parts can reduce maintenance costs over time and improve operational efficiency.
- **Environmentally friendly:** By ensuring the proper functioning of water meters, these parts contribute to water conservation, ultimately benefiting the environment.
- **User-friendly maintenance:** Well-designed parts make it easier for technicians and owners to make repairs or replacements with minimal hassle.

2. List of Related Services and Implementation Schedule

[This table is completed by the Buyer. The dates for the completion of the services must be realistic, and consistent with the delivery dates (according to the Incoterms)]

Article No. Service.	**Description du Service**	**Quantity**[4]	**Physical Unit**	**Site or location where the Services are to be performed**	**Final date of completion of the Services**
[insert Service number	*[insert service description]*	*[insert number of items to be provided]*	*[unit of measurement]*	*[place of service]*	*[insert date]*
I.	City of KINSHASA				
1.1.	IoT meter management servers: physical server, network server and application server (middleware), firewall including installation and configuration support	2	Together	The server application will be deployed on a central server in Kinshasa at the DG with a single database, and the other server will be for backup, as all smart meters will use GPRS as a communication module. All the counters will be connected to a single server but the client application (back office application) will be installed in the workstations of the provinces concerned.	*Six (6) after issuance of the SO*
1.2.	Compatibility test result between smart meters and local telephone operators' networks (present in the DRC).	1	Together	Kinshasa	*Six (6) after issuance of the SO*

[4] Yes applicable

1.3.	APIs for interfacing with REGIDESO SA software	1	Together	Kinshasa	*Six (6) after issuance of the SO*
1.4.	APIs for interfacing with REGIDESO SA software	1	Together	Kinshasa	*Six (6) after issuance of the SO*
1.5.	End-to-end testing of the entire infrastructure	1	Together	Kinshasa	*Six (6) after issuance of the SO*
1.6.	Various documentation (installation, use, troubleshooting manual, configurations, etc.)	1	Together	Kinshasa	*Six (6) after issuance of the SO*
1.7.	Software integration support and communication hardware	5[5]	Together	Kinshasa	*Six (6) after issuance of the SO*
1.8.	Training of staff on meter installation, management software, and communication hardware and technology.	13[6]	No one	Kinshasa[7]	*Six (6) after issuance of the SO*
1.9.	After-sales technical support and installation for a period of 12 months	8[8]	Together[9]	Kinshasa	*Six (6) after issuance of the SO*
1.10.	Installation and commissioning of 60% of smart meters per city for the sectorization of pilot areas (Pilot areas: Municipality of Bandalungwa, Gombe, Ngaliema,...)	29. 100	Piece	Kinshasa	*Six (6) after issuance of the SO*

[5] As the system will be centralized, the integration support and communication equipment will be done in Kinshasa and the DG's engineers will then train the other stakeholders
6 (4 IoT Engineers, 4 DEX Engineers, 4 Sales Agents and 1 Full Stack Engineer)
7 The training will be done at the central level, and the DG Engineers will train the other technicians in the provinces
8 (4 IoT Engineers and 4 DEX Engineers)
9 IoT Engineers and Operations Engineers must master all the technical support that will be available

1.11.	Installation and commissioning of calibration benches and training of personnel	1	Together	REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa; .	*Six (6) after issuance of the SO*
II.	City of KANANGA				*Six (6) after issuance of the SO*
2.1.	IoT meter management servers: physical server, network server and application server (middleware), firewall including installation and configuration support	0	Together	The server application will be deployed on a central server in Kinshasa at the DG with a single database, and the other server will be for backup, as all smart meters will use GPRS as a communication module. All the counters will be connected to a single server but the client application (back office application) will be installed in the workstations of the provinces concerned.	*Six (6) after issuance of the SO*
2.2.	Compatibility test result between smart meters and local telephone operators' networks (present in the DRC).	1	Together	Kananga	*Six (6) after issuance of the SO*
2.3.	APIs for interfacing with REGIDESO SA software	0	Together	Kinshasa	*Six (6) after issuance of the SO*
2.4.	APIs for interfacing with REGIDESO SA software	0	Together	Kinshasa	*Six (6) after issuance of the SO*
2.5.	End-to-end testing of the entire infrastructure	1	Together	Kananga	*Six (6) after issuance of the SO*
2.6.	Various documentation (installation, use, troubleshooting manual, configurations, etc.)	1	Together	Kananga	*Six (6) after issuance of the SO*

2.7.	Software integration support and communication hardware	5	Together	Kinshasa	*Six (6) after issuance of the SO*
2.8.	Training of staff on meter installation, management software, and communication hardware and technology.		No one	Kinshasa	*Six (6) after issuance of the SO*
2.9.	After-sales technical support and installation for a period of 12 months	8[10]	Together[11]	Kananga	*Six (6) after issuance of the SO*
2.10.	Installation and commissioning of 100% of smart meters per city for the sectorization of pilot areas (Pilot areas: Commune of Kananga, Katoka, Lukonga, Ndesha, Nganza and the Ntambwe mission)	32.500	Piece	Kananga	*Six (6) after issuance of the SO*
2.11.	Installation and commissioning of calibration benches and training of personnel	1	Together	On the REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga;	*Six (6) after issuance of the SO*

10 (4 IoT Engineers and 4 DEX Engineers)
11 IoT Engineers and Operations Engineers must master all the technical support that will be available

3. Technical specifications

STS smart meters, calibration bench equipment and meter assembly workshop (GPRS technology and connectivity).

A. PREAMBLE

REGIDESO S.A. wants to become a digital leader in water production, distribution and marketing services in Africa. It is now considering switching to smart meters to allow it to manage problems related to:

- Quantitative evaluation of consumption.
- Evaluation of the service on its distribution networks.
- The validity and intelligence of water consumption billing.

And thus allow its customers to benefit from a quality service.
This document is a call for tenders for:

❖ **Supply:**

- Smart meters integrating GPRS (*General Packet Radio Service*) technology to ensure remote data communication between the meters and the IoT server (including the smart meter management system or software).
- The computerized management system (software) allowing the interfacing of these meters with the other software of REGIDESO SA in particular the ERP, CRM, ...

The meters provided shall be designed for commercial accounting of the amount of water consumed in municipalities, public buildings, homes, businesses in various sectors, industries and other areas of activity requiring the measurement and control of water consumption, with the aim of collecting water-related revenues, improving billing efficiency and reducing unaccounted water losses.

❖ **Calibration bench and related equipment:**

Specifically designed to test and calibrate smart meters:

- Verification of measurement accuracy
- Calibration: See if a meter has a deviation from the normalized values.
- Simulation of real-world conditions
- Regulatory Compliance Control
- Malfunction detection

❖ **The necessary equipment of the smart meter assembly workshop:**

A quantity of meters will be supplied in spare parts (15%). The assembly and/or assembly will be done in the facilities of REGIDESO SA (Meter Assembly Workshop). The specifications of the components of the workshop are provided in point 3 of these specifications.

B. SUPPLY OF SMART METERS

B.1 Requirements for the Smart Water Meter

Smart water meters must be equipped with advanced connectivity technologies to enable efficient management of water meters and consumption data. The connectivity technology is GPRS.

B.2 Payment features

Meter management software (applications) will have to allow two interchangeable subscription methods: prepayment and post-payment. In addition, the meter must incorporate a valve that can be operated remotely. This valve will make it possible to cut off the water supply when the meter credit is exhausted in the case of a prepayment, or when the consumption must be stopped in the case of a post-payment method.

B.3 Operation in degraded mode

In the event of inaccessibility to the system implying the impossibility of prepayment, the system must provide a mechanism for switching to post-payment mode during the investigations of RE-GIDESO SA. All while respecting an anti-fraud algorithm that will be specified.

B.4 Remote credit top-up

Each meter will need to support remote online charging via a communication channel that will be specified. This feature will allow efficient management of charging, without requiring a physical connection to the meter.

B.5 Security and confidentiality

Meters will need to ensure the security of consumption data through advanced encryption protocols and robust authentication mechanisms, in line with communication security best practices, including the configuration of a dedicated APN.

B.6 Compatibility with existing networks

The meters will have to be designed for seamless integration with the GSM network infrastructures (GPRS) of telecommunication companies in the DRC.

B.7 Maintenance and diagnostics

Meters will need to be equipped with remote diagnostic capabilities for early detection of problems and failures. They will also need to be able to receive over-the-air software updates to improve performance and enhance security.

B.8 Standards and Certifications

- Water meters must have been designed, developed and manufactured by a certified company that complies with all the requirements of OIML R 49-1 and OIML R 49-3 as well as ISO 4064.

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- Each meter will have to be certified to the national, international and public STS standards, IEC 62055-41 and 51, ensuring high standards of safety and interoperability. The corresponding certificates of conformity issued by the STS Association must be provided as proof of compliance.

Other reference standards, guidelines and recommendations include:

- Directive 2014/32/EU of the European Parliament and of the Council of 26 February 2014 on measuring instruments "MID Directive"
- NBN EN ISO 4064-1 to 5: Cold drinking water and hot water meters.
- NBN EN 681-1: Rubber seals
  – Material specifications for pipe joint seals used in the water and drainage sector
  – Part 1: vulcanized rubber.
- NBN EN 14154-4: Water meters - Part 4: Additional functionalities NF EN 14154-4 European 19/04/2023.
- NBN EN1092-2: Flanges and their assemblies – Circular clamps for pipes, valves, fittings and accessories, designated PN – Part 2: Cast iron flanges.

- ISO 4064-1:2005 Measurement of water flow in closed pipes-Cold drinking water meters-Part 1: Specifications
- ISO 4064-2:2005 Measurement of water flow in closed pipes -Cold drinking water meters-part 2: Installation and selection conditions
- ISO 4064-3: 2005 Measurement of water flow in closed pipes-Cold drinking water meters-Part 3: Test methods and equipment

B.9 Water Meter Components

B.9.1 Type of Water Meter

The type of meter is the ultrasonic water meter (for accurate, stable and bidirectional measurement) with an R ratio (Q3/Q1) of at least 200. For small gauge meters (DN 15, 20, 25, 32 and 40)

A water meter equipped with electronic devices shall be designed and constructed in such a way that significant defects do not occur when exposed to the disturbances defined in A.5. (RI OIML R 49-1 of 2013).
A significant defect must have a value equal to half of the EMTs (Perturbative Metering Effects) in the upper part of the flow zone.
All water meters equipped with control systems shall prevent or detect a reverse flow as specified in 4.2.7. (RI OIML R 49-1 of 2013).
The flow characteristics of a water meter must be defined by the values of Q1, Q2, Q3 and Q4.
A water meter shall be designated by the numerical value of Q3 in m3/h and by the ratio of Q3 to Q1.
The meters to be proposed will comply with standards such as ISO 4064:2014 and OIML R 49:2013 that define the accuracy requirements for water meters. These standards ensure that meters meet strict criteria for accuracy and reliability. The tenderer is required to mention in his tender the relevant elements.

B.9.2 Water meter box

Prepaid water meters must be installed in boxes.
The specifications and dimensions of the water meter box should be as follows:

a. The material must be plastic: polycarbonate
b. The meter box must be robust and resistant to environmental conditions such as humidity, temperature variations and chemical contaminants
c. The meter box should be waterproof and have a protection rating (at least IP68) suitable for outdoor environments.
d. The opening angle of the hinged lid must not exceed 90 degrees from the horizontal.
e. The box must be equipped with a lock to protect the meter from illegal access.
f. The protective box must be made of UV and fire-resistant materials.

B.9.3 Technical data

a. Key Features of Smart Water Meter

a) Diameters: DN15, 20, 25, 32, 40.
b) Perfectly waterproof (IP68 or higher) and must be robust and resistant to environmental conditions such as humidity, temperature variations and chemical contaminants and able to operate underwater;
c) Low credit warning will be programmable;
d) Loading of the quantity of water from the platforms (Online payment applications, use of USSD, applications at the level of Regideso SA branches);
e) More than 10 years of data storage in EEPROM (Electrically Erasable Programmable Read-Only Memory) memory in the absence of a power supply (Battery);
f) Prepared for AMR (Automatic meter reader) functions with RF, M-BUS;
g) Leak detection threshold: 0.1% of Q3;
h) Installation of the meters: all positions dial towards the operator;
i) Suitable for face installation;
j) Valve must:
   - Be an integral part of the meter body;
   - Preferably operated with opening and closing capability
   - Automatic (periodically) in order to clean your ball;
   - Have a minimum lifespan of 10 years;
   - Close when the credit is exhausted;
   - Be able to perform 100,000 mechanical maneuvers;
   - Have an operating pressure range of 0.15 Bar to 16 Bar, the valve must be able to withstand 24 Bar for shorter periods of time;

NB: As for the loss of pressure:

The pressure drop generated by the meter at the maximum flow rate Qmax (according to EEC Directive 75/33) or Q4 (according to MID-001) must not exceed 0.063 MPa (0.63 bar) between Q1 and Q3.

The accuracy zone will cover flow rates for which measurement errors may not exceed +/-5%.

The accuracy zone will cover flow rates for which measurement errors cannot be greater than +/-2%.

The limit of these two zones is defined by Q1 or Q2 which is the transition flow. Its values will be specified by the manufacturer according to the different calibers of the meters to be purchased and must be mentioned on the model's prospectus.

b. Registration

Every counter must bear in a very visible and perfectly legible manner and indelibly on each of the two sides of the body:

- An arrow in relief indicating the direction of water flow.
- An optical readout head to read and configure,
- A graphical flow indicator,
- Reference (including information on counter size, length,)
- Serial number and year of production,
- The sign of type approval in accordance with national regulations.
- The name or brand of the manufacturer.
- The REGIDESO SA.
- The year of manufacture, the last two digits of the year of manufacture or the month and year of manufacture.
- The serial number (as close as possible to the indicating device).
- The direction of the flow, by means of an arrow (visible on both sides of the body or on only one side, provided that the arrow indicating the direction of the flow is easily visible in all circumstances).
- Maximum permissible pressure (MAP) (1) if it exceeds 1 MPa (10 bar)
- The letter V or H if the meter can only be used in a horizontal or vertical position.
- The temperature class as shown in Table 1 if different from T30.
- The pressure loss class if it differs from Δp 63.
- The installation sensitivity class if it differs from U0/D0

c. Other requirements

- Configuration (with information on display resolution, encryption level),
- Accuracy class according to OIML R49 (For DN 15 to 25: Class 2, for DN 32 and above: Class 1);
- Environmental class: Electric E1 or E2;
- And Mechanical M1 according to MID;
- Environmental classes B and C according to OIML R49 (interior, exterior);
- Label from REGIDESO SA (15X38mm);
- Barcode or QR code with serial number;
- The year the stack expired;
- Temperature class according to OIML R49;
- Q3 of the counter;
- Measurement dynamics;
- Software version;
- Pressure stage and protection class;
- CE marking according to MID.
- Communication interface: MOD BUS; GPRS

d. Materials

- Meter housing and measuring tube made of brass (copper and zinc alloy) with at least 58% copper;
- Reflectors: Stainless steel, W No. 1.4306.

B.10 Operating characteristics

B.10.2 Pressure Drops

- According to OIML R49, the maximum pressure drop must not exceed 0.63 bar (0.063 MPa) in the range Q1 to Q3.
- The meter must have a low cut-off flow rate (**start-up flow**), i.e. 2 l/h for Q3 = 1.6 m^3/h; 2.5 m^3/h and 3.2 l/h for Q3 = 4.0 m^3/h, which ensures accurate measurement even at low flow rates.

B.10.2 Electrical data

a. 3.65 VDC battery, 1 x Lithium C cell
b. Lifespan: at least 10 years,

c. EMC data[12]: Compliant with MID classification
   - E1 and E2 for the Wireless M-Bus version
   - E1 for the Wired M-Bus version.

B.10.3 Mechanical Data

a. Metrology class[13]: 2
b. Environmental Class Conforms to OIML R4914: Class B and O (Interior and exterior of buildings).
c. Ambient temperature: 2 to 55 °C
d. Protection class: IP68
e. Fluid temperature: 0.1 to 30 °C (T30);
f. Pressure rating: 0.03 Mpa (0.3 bar) to at least 1 MPa (10 bar);
g. The meter must be equipped with a non-return valve which is a protective and safety element of the water meter that prevents water from backing up into the pipes.

B.10.4 External dimensions and fittings for mounting

A dimensioned sketch will accompany the submission with the indication of the length without and with dismantling fittings. (Large and pt caliber).

B.11 Communication Technology and Protocol (Smart Water Meter Data Management Software / Platform Specification)

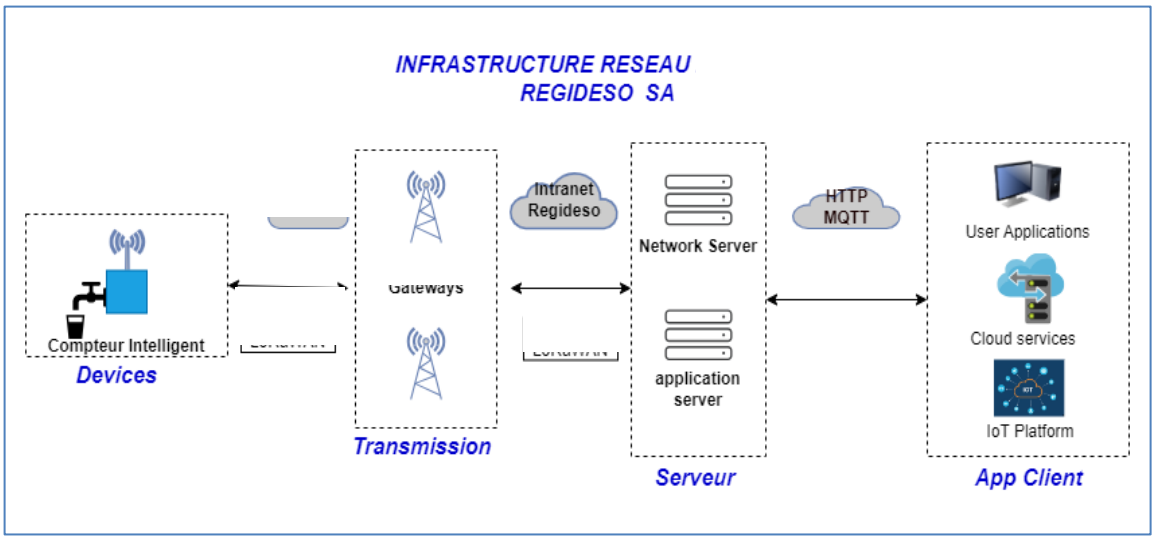
B.11.1 General considerations

[12] **EMC Data**: Electrical, Magnetic and Electromagnetic Environmental Classifications, this is provided for the purpose of selecting the most appropriate requirements and associated performance tests.
E1: This class applies to measuring instruments used in locations where electromagnetic disturbances correspond to those that are likely to be found in residential, commercial and light industrial environments.
E2: This class applies to instruments used in places where electromagnetic disturbances correspond to those which are likely to be found in industrial buildings.

[13] **Metrology class** : A water meter must be designed and manufactured in such a way that its errors of indication do not exceed the values maximum tolerated (EMT).
In **class 2** the EMT for the upper flow zone **(Q2 ≤ Q ≤ Q4)** is ±2%, for temperatures between 0.1 °C and 30 °C and ± 3% for temperatures above 30 °C. The tolerated EMT for the lower flow zone **(Q1 ≤ Q ≤ Q2)** is ± 5% regardless of temperature range.

[14] **Environmental class**: For each performance test, the characteristic test conditions are indicated and correspond to the climatic and mechanical environmental conditions to which a water meter is typically exposed.
Water meters equipped with electronic devices are divided into three classes according to climatic environmental conditions and mechanical ones:
— Class B: for fixed meters installed in a **building** ;
— class O: for meters installed outdoors (" **Out** Doors");
— class M: for **mobile meters**.

The diagram below shows in a panoramic way the entire network infrastructure of smart meters that REGIDESO SA wants to set up.



This infrastructure is composed of 4 parts: Device, Transmission, Server and App Client. From the meter to the server level, GPRS will be used as a communication protocol that relies on the communication infrastructure.
The following are summary descriptions of the building blocks of the infrastructure.

B.11.2 Device

The device part is made up of the set of smart meters that will be in communication via GPRS technology with the various infrastructures of a telecommunications operator for the sending of data collected at the meter level.
The meter ensures that:

- **In uplink**, transmit the following information with a frequency of 1 or 2 times a day:
  - Data related to water consumption.
  - Other information (battery status, alerts, ...)

In the event of a lost connection, the meter must save the data in SDCard memory and send it automatically once the connection is restored.

- **In downlink**, receive the configurations, commands and various operations from the meter management platforms found in the 4th part of the image above; These include:
  - Remote firmware update;
  - Updating (active or inactive) the status of the counter;
  - Remote valve opening/closing.

B.11.3 Transmission

This part ensures communication between the counters and the servers. It is made up of telecommunications infrastructures as shown in the figure above.

B.11.4 Server

This part consists of the physical and virtual servers (Network server and Application server) which are housed in the datacenter of REGIDESO S.A. The Network server serves as an interface between the telecommunication infrastructure and the application server (middleware) which communicates with the REGIDESO S.A. client applications of the 4th part of the infrastructure via http communication protocols, MQTT, etc.

Note: This contract also consists of the supply of the meter management application. The REGIDESO SA team will have to inspect the management software (Source Code) when providing the software for future integrations and improvements.

B.11.5 Application Client

This part will consist of all meter management software that meets the STS standard and meets the following requirements:

- Have/integrate a real-time storage system of all data from meters;
- Have / integrate a system for selling water credit top-ups online (Applications, USSD, from REGIDESO SA agencies);
- Be able to perform a number of real-time operations on the meters;
- Be able to communicate with smart meters manufactured by third parties;
- Have / integrate a meter billing system based on the volume of water consumed;
- Have/integrate a system that allows subscribers to consult information related to their account (bills, amount of water consumed, etc.);
- Have / integrate tools for monitoring all activities in the network;
- Be configurable with multi-user access and various profiles;
- Support local language: French (English optional);
- Geolocate all installed meters;
- Accept the allocation of virtual credits for a category of subscribers;
- Recording of consumption data every 2 times a day;
- Record the meter's battery voltage;
- Synchronization of the clock of the entire RTC system (real time clock);
- Logging of sabotage events.

B.11.6 Automatic valve management option

a. **Closure:**
   - Must close when the credit is exhausted;
   - Must close for cleaning or maintenance.
b. **Opening hours:**
   - Must open in charging reload;

- Have a reopening code in case of voluntary closure before the end of the credit.

B.12 Sales Management Systems

The sales management system (customer application) must be configurable to operate in pre-paid and post-paid mode and ensure the following via the application server (middleware):

a. Prepayment

- Ensure the recharging of water credit according to the profile and category of subscribers;
- Ensure that water consumption tariffs are updated;
- Configure the meters (in stock as well as at installation);
- Print invoices/receipts;
- Integrate automatic collection of arrears;
- Produce the sales report (daily, weekly, zones, etc.) and an expected report in Excel and PDF format;
- Interact with the Mobile Point of Sale (POS) Terminal;
- Ensure the installation and removal of meters (i.e. create, modify, change and delete the information of a meter in the system);
- Prevent indiscriminate use of water;
- Incorporate a metered vital debit and emergency credit with an adjustable credit limit when the credit runs out;
- Provide a low credit warning that can be either displayed by the meter interface, as a notification in the customer mobile app, or transmitted via SMS to the customer.

b. Post-paid

- Manage customer profiles;
- Ensure/manage the installation and removal of meters;
- Configure the meters (in stock as well as at installation);
- Monitor consumption (daily, weekly, monthly);
- Ensure the automatic reading of water consumption from meters.
- Produce the sales report (daily, weekly, zones, etc.) and an expected report in Excel and PDF format;
- Interact with the Mobile Point of Sale (POS) Terminal.
- Ensure the installation and removal of meters (i.e. create, modify, change and delete the information of a meter in the system).
- Preventing indiscriminate use of water

- Incorporate a metered vital debit and emergency credit with an adjustable credit limit when the credit runs out.
- Provide a low credit warning that can either be displayed by the meter interface, as a notification in the customer mobile app, or transmitted via SMS to the customer.

B.13 Client Access

The system (client application) via the application server (middleware) must offer each subscriber access via a mobile, web and USSD application allowing him to exchange in order to:

- To monitor your water consumption;
- To recharge water credits;
- View the charging history;
- To consult notifications related to the operation of their meter;
- To make a service request.

B.14 Data Integration

The meter management system will have to be provided with APIs capable of allowing REGIDESO SA to integrate with its online bill payment system so that subscribers can prepay their credit online in *pre-paid* mode or pay their bill online in *post-paid mode*.
The proposed meter management system must interact with other platforms through an API or APIs capable of exchanging data with:

- Existing invoicing software (*http protocol*),
- The management ERP,
- The GIS platform for mapping all counters,
- Any other software product using a webservice or a database such as: Oracle, MySQL, PostgreSQL, MongoDB, etc.

The necessary technical support to facilitate integration with online invoicing and payment systems will need to be provided by the selected provider.

B.15 Surveillance

By means of a real-time monitoring system, the proposed software should make it possible to configure and monitor the distribution network mainly by:

- Automatic reporting of various anomalies (leaks, fraud, lack of water, improper handling of meters, reverse flow, unauthorized access, low voltage);
- Real-time monitoring of the operation of the meters installed;
- Network management, monitoring and control;
- Access to the history of information and changes (detailed logs);
- Tampering attempts must generate an alert and cause the water supply to be cut off by the meter (Only authorized personnel are authorized to reset the meter);

- Battery-level alerts and warnings can be done in the following ways:
  - **First level**: when the battery power drops to 20%, the meter must give indications to remind REGIDESO SA to replace the battery on time/ 7 days max.
  - **Second level**: When the battery is completely depleted, the meter automatically records the relative data and then closes the valve. Only when the battery is replaced can the meter be used continuously.

B.16 Security

Management software must be able to:

- To communicate/exchange data via a secure protocol;
- To protect access to information by login and password;
- To ensure the backup of the data generated;
- Store all relevant data (e.g. monthly consumption data) for at least 5 years.

B.17 Meter Operation Requirements

a. Real-time clock (RTC): The measuring device must have a real-time clock with an accuracy of less than 0.5 seconds per day, synchronize the clock of the entire REGIDESO SA network, and take into account different time zones in the country.

b. Multiple recharging of the meter: The meter must allow the remote charging function via the communication channels set up and provide at least one backup charging method. The bidder (supplier) must provide the detailed options for the backup charging method and the corresponding documents in the user guide.

c. Meter Reset: The meter must be able to remove all customer information from the meter using a command (a feature provided in the control interface), thus bringing the customer back to factory mode.

B.18 Alarm functions

a. Low credit alarm: A visual alarm should be triggered as soon as the available credit falls below a programmed level. The alarm value must be configurable using tokens.

b. Low battery voltage alarm: When the battery power reaches 20%, the meter must give indications to remind REGIDESO SA to replace the battery. When the battery runs out, the meter should automatically store the relevant data and then close the valve. The meter can only be used continuously when the battery is replaced. The customer will also receive the alarm for their information.

c. Alarm in case of tampering on the meter, fraud;

B.19 Security and Burglary

a. **Antimagnetic** : In the event of magnetic interference, the valve should close automatically and this event should be recorded in the meter's memory.
b. **Leak detection** : The meter should record the amount of water consumed each hour. If a specific customer consumes water continuously for a certain abnormal time interval according to the requirements of the water authority, the meter must detect it as a possible leak.
c. **Detection** of meter disassembly: The meter must be equipped with a built-in sensor to detect the disassembly of the meter, trigger an audible alarm, and record this event. External detection, which poses a risk of destruction, is not acceptable for the detection of meter disassembly.
d. **Tamper-evident rings for water meters (anti-fraud ring**): allow the meter to be sealed and deter any attempt at fraud. The anti-fraud ring will protect the water meter nut from being disassembled. Each ring has a unique numbering (except the 1"1/2 model)
e. **Geolocation at installation**: The meter can only operate in its configuration area. Outside this zone, a new configuration of REGIDESO SA is needed to reactivate it.

B.20 Recording Function

a. **Event recording function** : The measuring device must be able to store all program parameters and measurement data in a non-volatile memory in the event of a power supply failure.
b. **Monthly Billing Data** : Storage of monthly water usage data for at least 10 years for later analysis.

B.21 Battery

The meter must use a high-energy lithium battery, with a capacity of at least 19 Ah, to guarantee a lifespan of at least 10 years. The meter should have an alarm that the battery is low or damaged. The battery must be removable and replaceable.

a. **Standby Power Consumption:** Less than 10 µA (microamps) in standby to minimize power consumption when the meter is not on a call.
b. **Communication Power Consumption:** Less than 50 mA (milliamperes) in data transmission to ensure minimal power consumption during transmissions.
c. **Wake Cycle:** Programmable to allow extended sleep intervals and wake-ups synchronized with the different transmissions.

Note: Except in the case of an alarm before the end of the term, after 10 years REGIDESO SA must change the batteries.

B.22 Technical Data Sheet

INDICATEURS	Unités	FICHE TECHNIQUE								
Type de compteur		Ultrasonique								
Diamètre nominal	(mm)	15	20	25	32	40	50	65	80	100
Débit permanent	Q3 (m³/h)	2.5	4	6,3	10	16	25	40	63	100
Température de fonctionnement	°C	T 30	T 30	T 30	T30	T 30	T 30	T 30	T 30	T 30
Humidité relative ambiante	%	93	93	93	93	93	93	93	93	93
Pression maximale de travail (MAP)	bars	16	16	16	16	16	16	16	16	16
Perte de pression	bars	0,63	0,63	0,63	0,63	0,63	0,63	0,63	0,63	0,63
Présence de clapet anti-retour		OUI	OUI	OUI	NON	NON	NON	NON	NON	NON
Disponibilité du filtre		OUI	OUI	OUI	NON	NON	NON	NON	NON	NON
Classe métrologique		2	2	2	2	2	2	2	2	2
Classe de précision Q3/Q1	R	200	200	200	200	200	200	200	200	200
Durée de vie de la batterie (Lithium) Années	Année	10	10	10	10	10	10	10	10	10
Système de prépaiement		OUI	OUI	OUI	-	-	-	-	-	-
Unités de mesure		m³								
Position d'installation		Toute								
Tarif échelonné		OUI	OUI	OUI	-	-	-	-	-	-
Disponibilité de l'application de recharge		OUI	OUI	OUI	-	-	-	-	-	-
Classe de protection (IP) IEC 60529		IP 68	IP 68	IP 68	IP 68	IP 68	IP 68	IP 68	IP 68	IP 68

C. LATEST-GENERATION PREPAYMENT ELECTROMAGNETIC FLOW METERS (LARGE GAUGE).

C.1 Reference Standards, Guidelines and Recommendations:

- ISO 20456: Measurement of fluid flow in closed pipes — Recommendations for the use of electromagnetic flow meters in conductive liquids.

C.2 Device description and operation:

A prepaid electromagnetic flow meter is an instrument used to measure the volumetric flow of water, while integrating a prepayment system for consumption management.

The flow meters will be used to measure instantaneous flows and to count the volumes of drinking water transited through loaded pipes.

These devices will be composed mainly of:

1) Flow sensor,

2) Treatment Unit
3) Prepayment module
4) Power supply
5) Communication technology: GPRS.

C.3 Class and protection rating

With regard to safety rules (classes and protection classes), the equipment to be supplied must comply with the N.F.C.20-010 standard or equivalent and the conditions deemed necessary by the manufacturer for the proper functioning of electromagnetic flow meters.

The measuring sleeves (primary) must be protected IP68 under a water slab of at least 2 m for one hour and the protection of the converter as well as these electrical connections must be at least IP 65.

C.4 Accuracy, Sensitivity and Stability of Flow Meter Measurement

C.4.1 Sensitivity and Accuracy

The flow meters that are the subject of this call for tenders must have a minimum accuracy equal to the greater of the following two errors: 0.5% of the instantaneous flow rate or 2mm/s.

C.4.2 Measurement stability

Flow meters must be designed and constructed in such a way that their errors do not exceed the maximum permissible errors. This requirement must be met in a sustainable manner.

- Stability to temperature variation: the tenderer shall mention in its tender the maximum accuracy drift that a temperature variation of 10°C generates.
- Stability with respect to the power supply: The bidder shall mention in its tender the supply voltage ranges for which the accuracy is not affected.
- Stability to pressure variation: The bidder shall mention in its tender the influence on accuracy of a pressure variation from zero bar to the maximum operating pressure for which the electromagnetic flow meter was constructed.

C.4.3 Certificate of Calibration

Each electromagnetic flow meter must be accompanied by its calibration certificate, at four points with pressure test. The calibration of flow meters must be carried out according to EN 29104.

C.5 CHARACTERISTICS OF THE MEASURING TUBE (SENSOR)

C.5.1 Maximum working pressure:

The maximum working pressure is 10 bar.

C.5.2 Constitution and materials

The materials that make up the measuring tube and its coatings must be judiciously chosen according to the quality of the water to be transited and the environment in which they will be installed.

The measuring tube consists of the following components:

- A stainless steel tube with a diameter equal to the nominal diameter requested. The tube is covered internally with an insulating coating made of ebonite or better. This coating must comply with the applicable national regulations for drinking water and must partially or completely cover the outer edges of the flanges. A certificate of health compliance will be attached to the offer.
- All electromagnetic flow meters will be flanged steel. They must comply with ISO 7005, NF EN 1092 or equivalent for the nominal pressure PN 10.
- Measuring electrodes made of stainless steel or better (the bidder must justify the choice of the quality of the stainless steel proposed) and of such a construction that they do not hinder the tightness of the sleeve. Depending on the quality of the water transited, the tenderer must indicate in its technical brief the possibility of automatic cleaning of the electrodes and will specify whether this operation is necessary for drinking water.
- The coils generating the magnetic field placed perpendicular to the electrodes and made of copper wire of appropriate cross-section. These coils must be well protected against moisture.
- The electrode and coil assembly is surrounded by an outer envelope ensuring the tightness, rigidity of the assembly and guaranteeing the IP 68 protection class. The metal outer casings must be welded and satisfactorily protected against hot-dip epoxy corrosion (minimum thickness 150 µm)

C.6 CONVERTER FEATURES

The expected features are as follows:

- The measurement converter must be controlled by a microprocessor.
- Its programming must be simple, user-friendly and access to the programming will be password protected
- The user must have the possibility to choose the language of programming and display in French
- An active analog output: generates its own current signal (typically 4-20 mA) without the need for an external power supply in the loop. This means that the flow meter itself provides the energy needed to transmit the signal
- Logic Outputs: The measurement converter provides at least two logic systems (All or Nothing). Each can optionally represent the following events: Measurement Fault, Reverse Flow, Empty Tube, High Flow, Low Flow, Exceeding the Measuring Range, Exceeding the Counting Frequency. For each of the outputs, the events will appear as a logical function "WHERE"
- Counting output (pulse): the converter provides at least two impulse soties, one of which is active. The counting function is freely programmable from the point of view of the pulse weight (dl, l, dal, hl, m3, etc.) and can represent for each of them the flow rate in the direct direction, the flow rate in the opposite direction or both. In the latter case, one of the logical outputs will be used to define the flow direction.
- Communication: The converter must be equipped with a communication output (RS 232C or RS 485, Fieldbus).
- Display instantaneous flow in each direction with indication of flow direction.
- Display totalized volume (totaling in the forward direction, in the opposite direction and net volume)
- Display speed in m/sec (displayed continuously or alternately)
- Display alarms: Measurement fault, Reverse flow, Empty or half-empty tube (tube is not loaded), High flow, Low flow, Exceeding the measuring range.

- The converters must be identical and interchangeable without any recalibration, by changing the calibration parameters related to the diameter without altering the accuracy of the measurement. These parameters must be on each flow meter (measuring tube, converter and calibration certificate) and must be easily configurable.

C.7 REPLACEABLE BATTERY POWER

- The flow meter must have a replaceable battery with a minimum operating autonomy of at least 10 years
- If a backup power supply is provided, the bidder must indicate whether the flow meter works with which power supply via the display in order to better track the switching of power sources.
- Replacement of the battery(ies) must not alter the degree of protection defined elsewhere
- the tenderer must give the technical characteristics and precise rules for the replacement of the batteries and undertakes to supply them to REGIDESO SA (at the latter's request for a minimum period of 10 years).
- Electromagnetic flow meters must comply with the current standards IEC 61000 or equivalent as well as the European Directive 89/336/EEC, revised 2004/108/EC or equivalent.

D. DISTRIBUTION TABLE OF METERS AND FLOW METERS ACCORDING TO NOMINAL DIAMETERS

No.	Nominal Diameter	Total number	Kinshasa	Kananga
Smart meters				
0	15 for BF[15]	300		300
1	15 for BP[16]	60000	32800	27200
2	20 for BP	4800	2800	2000
3	25 for BP	3800	2800	1000
4	32 for BP	3800	2800	1000
5	40 for BP	3300	2800	500
Smart Flow Meters				
6	50	1000	900	100
7	65	1000	900	100
8	80	1000	900	100
9	100	1000	900	100
10	150	1000	900	100
Total		**81000**	**48500**	**32500**

E. THE EQUIPMENT OF THE MODULAR ASSEMBLY WORKSHOP FOR SMART METERS

E.1 Background

The smart meter assembly workshop is a major component in the value chain that aims to modernize the complex infrastructure of water production, treatment and distribution within REGIDESO S.A.

The smart meter assembly workshop of REGIDESO S.A. will be located in a modern manufacturing complex.

Some unconditional requirements:

[15] BF : Standpipe
[16] BP: Private Connection

- The workshop will be equipped with state-of-the-art technologies to design, assemble, test and calibrate smart meters. The meters are designed to support GPRS technology, providing reliable connectivity and remote communication;
- Technology transfer for highly qualified teams (REGIDESO SA) take care of each step of the manufacturing process;
- The production of electronic circuits is carried out with exceptional precision, followed by the mechanical assembly of the meters;
- Electronic components are carefully and normatively soldered onto PCBs;
- Rigorous quality control is put in place to ensure that each smart meter meets the accuracy and quality standards required by REGIDESO S.A.;
- Meters are calibrated to ensure reliable measurements;
- The primed meters are packaged in secure packaging for distribution.

E.2 The equipment of the modular assembly workshop for smart meters

a. List of main equipment:

- Test bench for DNx meters (automatic and semi-automatic).
- Meter assembly line(s).
- Encapsulation machine for sealing electronic components.
- Packing line(s).
- Potting machine.

b. List of auxiliary equipment:

- Semi-automatic welding machines;
- Automatic screw machine;
- Electric screwdrivers;
- Electric soldering iron (with solder);
- Wire scissors;
- Heat gun;
- Glue gun;
- Computer (SDI test);
- Computer for customization of water meters;
- Barcode Reader Gun (3 for Counter Keypad, 4 for Customization Process, 1 for Labeling Process)
- Laser marking machine for counters, number printing;

- Automatic Packing Machine;
- Thermoplastic sheath cutting machines;
- Air compressor (100 L), for air supply;
- Barcode printing machines;
- Drawer/Flip Forklift (1.2 x 0.6m);
- Maintenance table;
- Customization tools.

N.B : These main and auxiliary equipment will depend on the number of meters to be produced annually (81,0000 initially).

E.3 Training

The transfer of knowledge, technologies, and other skills related to the workshop will take place on a continuous basis from the beginning to the end of the project between REGIDESO SA engineers and all suppliers associated with the project.
Technicians and workshop staff will be trained in the latest technology and best production practices.

E.4 Maintenance

A regular maintenance program is in place to ensure that production equipment remains in perfect working order. This program will be provided by maintenance management software (e.g. CMMS)

E.5 Component Acquisition and Production

In this smart meter assembly workshop, some parts can be produced locally or made on site, while others can be purchased from specialized suppliers. Here is a distinction between components that can be produced locally and those that are generally purchased:

1) Components that can be produced locally

- **Plastic housings:** Smart meter housings can be manufactured locally using materials such as polycarbonate. The injection molding process will be used to produce all the plastic parts of the enclosures.
- **Labels and Markings:** Smart meter-specific labels, markings, and stickers can be printed locally (using dedicated machines) to uniquely identify each meter with information such as serial number, model, and safety information. Ex: Laser Marking Machine
- **Packaging:** Cartons
- **Electronic Components (Assembly):** The assembly of electronic components on printed circuit boards (PCBs) will be carried out in the workshop, using automated

or semi-automated soldering machines with the specialized workforce. This can include installing sensors, processors, and communication components.

- **Calibration:** The calibration of smart meters will be performed locally using an automatic or semi-automatic test bench to ensure their measurement accuracy.

E.6 Meter calibration bench

The calibration bench concerns the 85% of meters to be acquired

a. Reference Standards, Guidelines and Recommendations:

- The ultrasonic water meter test bench complies with the requirements outlined in AWWA/ISO 4064, the national measurement verification regulation for drinking cold water meters, allowing the verification of all specified items.
- It also meets the standards of the latest Water Meter Verification Device Regulation (AWWA/ISO 4064).

b. <u>Device Description</u>

- **Type of equipment to be provided:** The ultrasonic calibration bench.
- **The proposed calibration system will include**:
  - **Water Source System** : Includes a water or piston pump, a pressure stabilization tank, and a stainless steel water tank.
  - **Piston System** : Used to measure standard cumulative flow with high accuracy.
  - **Software Control System** : Allows the adjustment of the flow rate and a data acquisition system.
- **Extended device uncertainty** : ≤0.2% (k=2), according to cold water meter verification requirements as specified in AWWA / ISO 4064.
- **Applicable Support** : Clean Drinking Cold Water; Verification Method: Suitable for conventional and fast verification.

During the verification process, while one row of meters is being tested, the other row can be used for installation, removal, ventilation, and pressure testing, improving the efficiency of the tests.

Once the tests are complete, the sampling system is slid to the next row via a cylindrical rail, which starts the next verification cycle in a continuous cycle.

c. **Meter Specifications and Quantity**

- For small bore meters DN15, DN20, DN25, DN 30, DN 32 and DN 40, the supplier is required to mention in his prospectus the compatible number to be tested for each diameter category. (**Two pieces**)
- For large bore meters DN 50, DN 65, DN 80, DN 100, DN 150, DN 200 and DN 250. (**One piece**).

The prospectus will specify the number of devices to be tested on the bench.

d. **Water Meter Reading Method** : The ultrasonic water meter test bench will be equipped with an electronic sensing module that monitors the data and provides status indications via color coding, allowing users to easily determine if the device is operating within normal parameters.

e. **Electroacoustic Conversion Control Function** : The device has a feature to check the electroacoustic conversion.

f. **Pressure Test**: The control software allows the pressure test values to be customized, applying the pressure smoothly and automatically, with a maximum pressure not exceeding 2.0 MPa. Pressure testing is fully automated, controlled by pressure sensors, with automatic pressure limiting protection and a built-in pressure relief function.

g. **Switch Type** : The device will use an open pneumatic switch for water flow switching and includes a photoelectric verification interface for easy verification of the switch.

h. **Real-time pressure monitoring** : High-precision pressure sensors with a range of 0-2.5 MPa and an accuracy of ≤ 0.21 TP3T (certified) will be used.

i. **Real-time temperature monitoring** : High-precision temperature sensors with a range of 0-50°C and an accuracy of ≤ 0.21 TP3T (certified) will be used.

j. **Water Meter Number Input Method**: The dynamic image collector will automatically enter the meter number without the need for a barcode scanner (which supports barcodes and QR codes).

E.7 Equipment required for the assembly of meters (Assembly workshop).

This equipment concerns the 15% of meters to be acquired

In anticipation of the assembly of the meters that will be delivered in spare parts and assembled by the teams of REGIDESO SA, the successful bidder is required to present in its bid the tools necessary for the said operation in accordance with the production line of its manufacturing plant. This will include:

- Execution tools
- Measurement tools

The transfer of knowledge, technologies, and other skills related to the workshop will take place on a continuous basis from the beginning to the end of the project between the REGIDESO SA engineers and the bidder.
Technicians and workshop staff will be trained in the latest technology and best production practices. This will require on-site training for the 15% of meters to be assembled locally so that the transfer of knowledge is effective.

The various training modules will be developed by the bidding company to cover all aspects related to smart water metering.

TESTS AT FACTORY ACCEPTANCE OF METERS

Upon receipt prior to each shipment to the factory, the following tests will be required
Must be performed:

a. Leak tests at 16 bar pressure, either for 15 minutes with water or for one minute with air. The meter must not show any seepage through the wall, nor any leakage during the jam.
b. Verification of the measurement error, which should be between +/-5% at the lower limit of the accuracy zone (Qmin or Q1), and between +/-2% at the lower and upper limit flow rates of the accuracy zone (Qt and Qmax, or Q2 and Q4).

These tests will be carried out on 10 meters of the same caliber taken by the receiver from each batch of 1,000 meters forming part of the order in question. However, the number of meters tested per caliber may not be less than 5.
These tests will be considered satisfactory if 95% of the meters tested are
to specification. If more than 5% of the meters tested are not compliant, the corresponding batch will be rejected and must be replaced entirely by a batch that complies with these tests. All costs resulting from these tests are entirely borne by the supplier.

These factory tests must be organised and carried out in the presence of the project owner's delegated engineers. The total duration of the stay of these engineers who are agents of the Project Owner at the Tenderer's headquarters is set at more or less ten days.
The supplier shall provide the receivers with the certificates of tests and inspections carried out by the national approved body.

F. LIST OF DELIVERABLES

1) 76,000 smart meters, and 5,000 smart flow meters with related equipment (boxes, connection accessories, etc.). Of which 85% of the smart meters are monobloc and 15% are spare parts;
2) IoT servers for meter and flow meter management: two physical servers, Network server and application server (middleware), a firewall including installation and configuration support for Kinshasa at the General Directorate
3) Compatibility test result between smart meters and local telephone operators' networks (present in the DRC) for each city.
4) APIs for interfacing with REGIDESO SA software in Kinshasa.
5) End-to-end testing of the entire infrastructure for each city.
6) Different documentation (Installation, Use, Troubleshooting Manual, Configuration Manual, ...) for each city.
7) Software integration support and communication hardware required for each city.
8) Staff training: installation of meters, management software and communication equipment for Kinshasa.
9) After-sales technical support and installation for a period of 12 months for each city.
10) The smart meter assembly workshop as described in point 3 of this specification for each city.

F.1. The tenderer must imperatively attach to its tender :

- A detailed maintenance and repair manual in French

- A user manual in French
- An exploded drawing of the meter with a nomenclature including the material of the different components of the meter in French
- A list of rated spare parts of the proposed meter
- A functional description of the various electronic devices;
- A flowchart showing the functions of the electronic devices;
- A description giving the technical characteristics and the principle of operation;
- Samples of this type may be considered necessary by the body responsible for the evaluation to estimate the reproducibility of the measurements. We note a DN 15, DN 20 meter.
- It should be noted that the meter assembly materials will be received at the same time.

F.2 Warranty

The meters offered must be guaranteed for a minimum of one year from the date of shipment against any proven defect in workmanship or design.

4. Plans

This Tender Documents *[insert "includes the following plans" or "does not include any plans"],* as applicable.

[if the RFP file includes plans, insert a list of them in the table below]

List of plans		
Our	**Titles**	**Objectives**

5. Inspections and Tests

The following inspections and tests will be carried out*:*

1) Tests at the factory acceptance of meters

When receiving at the factory before each shipment, the following tests must be performed:

a) Leak tests at 16 bar pressure, either for 15 minutes with water or for one minute with air. The meter must not show any seepage through the wall, nor any leakage during the jam.

b) Verification of the measurement error, which should be between +/-5% at the lower limit of the accuracy zone (Qmin or Q1), and between +/-2% at the lower and upper limit flow rates of the accuracy zone (Qt and Qmax, or Q2 and Q4).

These tests will be carried out on 10 meters of the same caliber taken by the receiver from each batch of 1,000 meters forming part of the order in question. However, the number of meters tested per caliber may not be less than 5.

These tests shall be considered satisfactory if 95% of the meters tested conform to the specifications of paragraphs (a) and (b). If more than 5% of the meters tested are not compliant, the corresponding batch will be rejected and must **be** replaced entirely by a batch that complies with these tests. All costs resulting from these tests are entirely borne by the supplier.

These factory tests must be organised and carried out in the presence of four delegates from the Delegated Project Owner. The total duration of the stay of these four agents of the Delegated Project Owner at the supplier's headquarters is set at ten days.

The supplier shall provide the receivers with the certificates of tests and inspections carried out by the national approved body.

However, the supplier will remain solely responsible for the proper functioning of the equipment even after acceptance at the factory, except in the following cases:

- Weather-related failures in the site of use;
- Failures related to improper handling of equipment users;
- Failures related to natural disasters, etc.

PART THREE – Contract Clauses and Forms

Section VIII. General Administrative Clauses (GACC)

List of clauses

1. Definitions 113
2. Contract documents 114
3. Fraud and Corruption 114
4. Interpretation 114
5. Language 115
6. Grouping 116
7. Origin criteria 116
8. Notifications 116
9. Applicable law 116
10. Dispute Resolution 117
11. Inspections and audits by the Bank 117
12. Purpose of the Contract 118
13. Shipping 118
14. Responsibilities of the Supplier 118
15. Market Price 120
16. Terms of payment 120
17. Taxes and duties 120
18. Guarantee of good performance 120
19. Copyright 121
20. Confidential Information 121
21. Subcontracting 122

22. Specifications and Standards 122

23. Packaging and documents 123

24. Insurance 123

25. Transport 123

26. Inspections and Testing 124

27. Penalties 125

28. Warranty 125

29. Patents 126

30. Limitation of Liability 127

31. Changes to Acts and Regulations 128

32. Force majeure 128

33. Change Orders and Contract Amendments 128

34. Extension of time limits 130

35. Termination 130

36. Assignment 132

37. Restrictions d'exportation 132

General Administrative Clauses (GACC)

1. Definitions

1.1 The following terms and expressions shall have the meanings ascribed to them herein:

a) "The Bank" means the International Bank for Reconstruction and Development (IBRD), or the International Development Association (IDA).

b) "Contract" means the Deed of Commitment signed by the Buyer and the Supplier, together with the contractual documents referred to in such Deed of Commitment, including all attachments, annexes and all documents incorporated therein by reference.

c) "Contractual Documents" means the documents referred to in the Deed of Commitment, including any amendments to such documents.

d) "Market Price" means the price payable to the Supplier, in accordance with the Deed of Commitment signed, subject to any addition and modification or deduction of said price, which may be made under the Contract.

e) "Day" means a calendar day.

f) "Completion" means the complete performance of related services by Supplier in accordance with the terms and conditions set forth in the Contract.

g) The "CCAG" stands for the General Administrative Clauses.

h) The term "Supplies" means all products, raw materials, machinery and equipment and/or any other materials that the Supplier is required to deliver to the Buyer in performance of the Contract.

i) The "Buyer's Country" means the country identified in the Special Administrative Clauses (SCC).

j) "Purchaser" means the entity purchasing the supplies and related services, as identified in the PACC.

k) "Related Services" means services related to the supply of the goods, such as insurance, installation, training and initial maintenance, as well as any similar obligations of the Supplier under the Contract.

l) The "**CCAP**" stands for the Cahier des Clauses administratif particulières.

m) A "Subcontractor" means any individual, private person or governmental entity, or any combination thereof, to whom any part of the Supplies or Related Services is subcontracted by the Supplier.

n) "Supplier" means any individual, private person or governmental entity or any combination thereof, whose Offer has been accepted by the Buyer and which is designated as such in the Deed of Commitment.

o) "Project Site" means the location set out in **the CCAP**, if applicable.

2. Contract documents

2.1 Subject to the order of precedence set forth in the Deed of Commitment, all documents constituting the Contract (and all parts thereof) are correlative, complementary, and mutually explanatory. The Deed of Commitment is read as forming a whole.

3. Fraud and Corruption

3.1 The Bank requires the application of the Bank's Anti-Bribery Guidelines and related sanctions policies, as well as the procedures established in the Bank's Sanctions Framework, as set out in Annex 1 of the CCAG.

3.2 The Buyer shall require the Supplier to disclose any benefits, gratuities or commissions paid or to be paid in connection with the Tender procedure or the performance or signing of the Contract. The information disclosed must include, at a minimum, the name and address of each agent or other entity, the amount and currency, and the reason for the payment of the benefit, gratuity or commission.

4. Interpretation

4.1 If the context requires it, the singular refers to the plural and vice versa.

4.2 Incoterms

a) Subject to inconsistencies with the terms of the Contract, the meaning of a trade term and the corresponding rights and obligations of the parties to the Contract are those prescribed by the International Trade Terms - Incoterms specified in **the CCAP.**

b) The terms EXW, CIP, FCA, CFR and other similar terms shall be governed by the rules prescribed in the latest edition of Incoterms specified in the **SCAC** and published by the International Chamber of Commerce (ICC) in Paris, France.

4.3 Entire Agreement

The Contract represents the totality of the contractual provisions agreed to by the Buyer and the Supplier with respect to its subject matter, and supersedes all communications, negotiations and agreements (whether written or oral) entered into between the parties with respect to its subject matter prior to the date of the Contract.

4.4 Endorsements

Amendments and other amendments to the contract shall not enter into force unless they are made in writing, dated, expressly refer to the contract and are signed by a duly authorised representative of each of the parties to the contract.

4.5 No waiver

a) Subject to the provisions of clause 4.5(b) of the CCAG below, no release, abstention, delay or indulgence by either party in enforcing any of the terms and conditions of the Contract, or the fact that either party grants an extension of time to the other, shall prejudge the rights vested in that party by the Contract, nor to affect or restrict them; similarly, the waiver by one of the parties to seek compensation for any breach of the Market shall not be construed as a waiver of any claim for compensation for subsequent or persistent breach of the Contract.

b) Any waiver of a party's rights, powers or remedies under the Contract shall be in writing, dated and signed by an authorized representative of the party granting such waiver, and shall specify the right waived and the scope of the waiver.

4.6 Severability

If any provision or condition of the Contract is prohibited or rendered invalid or unenforceable, such prohibition, invalidity or unenforceability shall not affect the validity or enforceability of the remaining terms and conditions of the Contract.

5. Language

5.1 The Contract and all correspondence and documentation relating to the Contract exchanged between the Supplier and the Buyer, shall be drawn up in the language specified in **CCAP**. Additional documents and printed matter forming part of the Contract may be written in another language, provided that they are accompanied by an accurate translation into the language specified in **CCAP** relevant passages. In this case, for the purposes of interpretation of the Contract, this translation shall be authoritative.

5.2 The Supplier shall bear all costs of translation into the applicable language and all risks relating to the accuracy of such translation, with respect to the documents it provides.

6. Grouping

6.1 If the Supplier is a consortium of undertakings, all members shall be jointly and severally liable to the Purchaser to comply with the terms of the Contract, and shall appoint one or more members to act as joint agent with power to bind the consortium. The composition or constitution of the group may not be modified without the prior written consent of the Buyer.

7. Origin criteria

7.1 The Supplier and its Subcontractors must be nationals of an eligible country. A Supplier or subcontractor shall be deemed to be a citizen of, or incorporated or registered in, a country and operates in accordance with the laws and regulations of that country.

7.2 All Supplies and Related Services to be provided in performance of the Contract and financed by the Bank shall originate from Eligible Countries. For the purposes of this Clause, country of provenance means the country where the supplies have grown, been grown, extracted, produced, or where, as a result of a process of manufacture, processing or assembly of important and integrated components, another article recognized as fit for sale has been obtained whose basic character, purpose and utility are substantially different from its imported components.

8. Notifications

8.1 Any notice sent to either party by the other party under the Procurement shall be given in writing to the address specified in the **CCAP**. The term "in writing" means in writing with acknowledgement of receipt.

8.2 A notification shall take effect on the date on which it is delivered or on the date of entry into force of the notifiance, whichever is later.

9. Applicable law

9.1 The Contract shall be governed by and construed in accordance with the laws of the Buyer's Country, unless the **CCAP** does not provide otherwise.

9.2 During the performance of the Contract, the Supplier shall comply with the prohibitions on the importation of goods and services into the Buyer's Country when:

a) the law or regulation of the Borrower's country prohibits business relations with that country; or

b) pursuant to a Decision of the Security Council of the United Nations under Chapter VII of the Charter of the United Nations, the country of the Borrower prohibits any importation of supplies

from that country or any payment to natural or legal persons of that country.

10. Dispute Resolution

10.1 The Buyer and the Supplier shall use their best efforts to settle amicably, by direct and informal negotiation, any disagreement or dispute between them or in connection with the Contract.

10.2 If, after twenty-eight (28) days, the parties have not been able to resolve their dispute or disagreement through such mutual consultation, Buyer or Supplier may notify the other party of its intention to resort to arbitration, as provided below, with respect to the subject matter of the dispute. No arbitration relating to this subject matter may be initiated without such notification. Any dispute or disagreement in respect of which notice to initiate arbitration proceedings has been given in accordance with this Clause, shall ultimately be resolved by arbitration. The arbitration procedure may commence before or after delivery of the Supplies under the Procurement. The arbitration proceedings shall be conducted in accordance with the rules of procedure specified in the **CCAC.**

10.3 Notwithstanding any reference to arbitration:

a) the parties will continue to perform their respective contractual obligations, unless they mutually agree otherwise, and

b) Buyer shall pay Supplier for any expenses due to Supplier.

11. Inspections and audits by the Bank

11.1 Supplier shall maintain, and ensure that its subcontractors maintain systematic and accurate accounts and documentation in relation to supplies in a detailed form and manner in order to establish supply costs.

11.2 In accordance with paragraph 2.2 (e) of Annex 1 of the General Clauses of the Contract, the Supplier shall authorise and cause its agents (whether declared or undeclared), subcontractors, service providers, suppliers and staff, to allow the Bank and/or persons designated by the Bank to inspect the site and/or accounts, records and other documents relating to the procurement process, award and/or performance of the contract, and to have such accounts, registers and other documents audited by auditors appointed by the Bank. The Supplier and its subcontractors shall take into consideration the provisions of Sub-Clause 3.1 (Fraud and Corruption) which states that any action that materially impedes the Bank's inspection and audit actions is a prohibited practice and may lead to the termination of the Contract (as well as a declaration of ineligibility, in accordance with the Bank's sanctions procedures in force).

12. Purpose of the Contract

12.1 The Supplies and Related Services relating to this Procurement are those set out in Section VII, List of Supplies, Delivery Schedule, Technical Specifications and Plans.

13. Shipping

13.1 Pursuant to clause 33.1 of the GCC, the delivery of the Supplies and the completion of the Related Services will be carried out in accordance with the delivery and completion schedule set out in the Bill of Quantities and the Delivery Schedules. The **CCAP** sets out the details of the shipment and will indicate the other documents and documents to be presented by the Supplier.

14. Responsibilities of the Supplier

14.1 The Supplier shall provide all Supplies and related Services included in the subject matter of the Contract pursuant to Clause 12 of the CCAG and the delivery and completion schedule, in accordance with Clause 13 of the CCAG.

14.2 The Supplier, including its Subcontractors, shall not employ or engage forced labour or trafficked persons as described in Sub-Clauses 14.3 and 14.4 of the CCAG.

14.3 Forced labor consists of any work or service, not performed voluntarily, that is required of an individual under threat of force or punishment, and includes any type of involuntary or compulsory labor, such as bonded labor, bonded labor, or similar employment contract agreements.

14.4 Trafficking in persons is defined as the recruitment, transportation, transfer, harbouring or receipt of persons through the threat or use of force or other forms of coercion, abduction, fraud, deception, abuse of power or a position of vulnerability, or the granting or receipt of payments or benefits to obtain the consent of a person having control over another person, for operational purposes.

14.5 The Supplier, including its Subcontractors, will not employ or engage a child under the age of 14 unless national law specifies a higher age (the Minimum Age).

14.6 Supplier, including its Subcontractors, shall not employ or engage any child between the minimum age and the age of 18 in a manner that is likely to be hazardous, or interfere with the child's upbringing, or be detrimental to the child's physical, mental, spiritual, moral or social health or development.

14.7 Work that is considered hazardous to children is work that, by its nature or the circumstances in which it is performed, is likely to endanger the health, safety or morals of children. These professional activities prohibited to children include working in:

(a) in the event of exposure to physical, psychological or sexual abuse;

(b) underground, underwater, working at heights or in confined spaces;

(c) with machinery, equipment or tools that are hazardous or involve the handling or transportation of heavy loads;

(d) in unhealthy environments exposing children to hazardous substances, agents or processes, or to temperatures, noise or vibrations that are harmful to health; or

(e) in difficult conditions such as working long hours, at night or in confinement on the employer's premises.

14.8 Supplier shall comply with, and require its Subcontractors, as applicable, to comply with all applicable health and safety regulations, laws, guidelines and any other requirements set out in the Technical Specifications.

14.9 In accordance with **the CCAP,** the Supplier, including its Subcontractors/Suppliers/Manufacturers, shall take all necessary technical and organisational measures to protect the IT systems and data used in connection with the Contract. Without limiting the foregoing, Supplier, including its subcontractors/suppliers/manufacturers, shall use all reasonable efforts to establish, maintain, implement and comply with reasonable information technology, information security, cybersecurity and data protection controls, policies and procedures, including monitoring, access controls, encryption, technological and physical safeguards, and business continuity/disaster recovery and security plans designed to protect against and prevent unauthorized breach, destruction, loss, distribution, use, access, disabling, misappropriation or modification, or any other compromise or misuse of or related to any information technology system or data used in the Market Framework.

14.10 The Supplier shall comply with additional obligations as specified **in the CCAP.**

15. Market Price

15.1 The price charged by the Supplier for the Supplies delivered and for the related Services rendered under the Contract shall not vary from the price indicated by the Supplier in its Offer, except for the price revisions permitted in the **CCAP**.

16. Terms of payment

16.1 The price of the Contract will be settled in accordance with the provisions of the **CCAP**.

16.2 The Supplier shall submit its request for payment in writing to the Buyer, together with invoices describeing, as appropriate, the supplies delivered and related services rendered, and the documents and exhibits submitted in accordance with Clause 13 of the CCAG,

and after having complied with all obligations specified in the Contract.

16.3 Payments due to Supplier shall be made without delay by Buyer, and no later than sixty (60) days after Supplier's presentation of the invoice or request for payment, and after acceptance by Buyer.

16.4 The currency(ies) in which payments will be made to the Supplier under the Contract shall be the currency(ies) in which the price of the Offer is indicated.

16.5 In the event that the Buyer fails to make a payment due by its due date or within the period indicated in the **CCAP**, the Buyer shall be liable to pay the Supplier interest on the amount of the late payment, at the rate(s) specified in the **CCAP** for the entire period of delay until full payment of the prize, whether before or as a result of a judgment or arbitration award.

17. Taxes and duties

17.1 For supplies originating from a country other than the Buyer's Country, the Supplier shall be fully responsible for all taxes, stamp duties, patents and taxes due outside the Buyer's Country.

17.2 For supplies originating in the Buyer's Country, the Supplier shall be fully responsible for all taxes, duties, patents, etc., to be paid up to the time of delivery to the Buyer of the Supplies which are the subject of the contract.

17.3 If the Supplier is entitled to any tax exemptions, reductions, allowances or privileges in the Buyer's Country, the Buyer shall make every effort to enable the Supplier to benefit from them up to the maximum allowed.

18. Guarantee of good performance

18.1 Within twenty-eight (28) days of receipt of the notice of award of the Contract, the Supplier shall provide a guarantee for the proper performance of the Contract, in the amount and in the currency specified in the **CCAP**.

18.2 The performance bond shall be paid to the Purchaser for any loss resulting from the Supplier's failure to perform all of its obligations under the Contract.

18.3 The performance bond shall be denominated in the currency of the Market or in a freely convertible currency acceptable to the Buyer, and presented in one of the forms stipulated by the Buyer in the **CCAP** or in any other form acceptable to Buyer.

18.4 The Buyer shall release and return to the Supplier the performance bond no later than twenty-eight (28) days after the date of completion of the obligations incumbent on the Supplier in respect of the

performance of the Contract, including the technical warranty obligations, unless otherwise provided in the **CCAP**.

19. Copyright

19.1 The copyright in all plans, documents and other materials containing data and information provided to Buyer by Supplier shall remain with Supplier or, if provided directly to or through Buyer by a third party, including suppliers of materials, the copyright in such materials shall remain with such third party.

20. Confidential Information

20.1 Buyer and Supplier shall respect the confidentiality of any documents, data or other information provided directly or indirectly by the other party under the Procurement, and shall not disclose such documents without the written consent of the other party, whether such information was provided before, during or after the performance or termination of the Procurement. Notwithstanding the above, the Supplier may provide its subcontractor with any documents, data and other information it receives from the Buyer to the extent necessary to enable the subcontractor to perform its services in accordance with the Contract, in which case the Supplier shall require the said subcontractor to enter into a confidentiality undertaking similar to the undertaking imposed on the Supplier under Clause 20 of the CCAG.

20.2 Buyer shall not use any documents, data and other information received from Supplier for any purpose other than the Contract. Similarly, the Supplier shall not use any documents, data and other information received from the Buyer for any purpose other than the performance of the Contract.

20.3 However, the obligation imposed on a party under Clauses 20.1 and 20.2 above will not apply to the following types of information:

a) those that the Buyer or Supplier must share with the Bank or other institutions involved in the financing of the Contract;

b) those which, now or in the future, belong or will belong to the public domain, without the party in question being at fault;

c) those for which it can be proved that they were in the possession of the party in question when they were disclosed and that they had not been previously obtained, directly or indirectly, from the other party; or

d) those that are legitimately made available to the party in question by a third party not bound by the duty of confidentiality.

20.4 The above provisions of Clause 20 of the CCAG do not in any way alter any confidentiality agreement given by either party prior to the date of the Contract in respect of all or part of the supply.

20.5 The provisions of Clause 20 of the CCAG shall survive the completion or termination of the Contract for any reason.

21. Subcontracting

21.1 The Supplier shall notify the Buyer in writing of all subcontracts awarded under the Contract if it has not already done so in its bid. The notification by the Supplier, for the addition of any Sub-Processors not named in the Contract, must also include the Subcontractor's Statement in accordance with Annex 2 of the CCAG - Statement on Sexual Exploitation and Abuse (SEA) and/or Sexual Harassment (HS). Such notice, whether provided in the Offer or subsequently, shall not relieve the Supplier of any liability, nor shall it be released from any of its obligations under the Contract.

21.2 Subcontracts will comply with the provisions of Clauses 3 and 7 of the CCAG.

22. Specifications and Standards

22.1 Technical Specifications and Plans

a) The Supplies delivered under the Procurement and related Services shall comply with the Technical Specifications specified in Section VII - List of Supplies, Delivery Schedule, Technical Specifications and Plans. If no standard is specified therein, the standard shall be deemed to be equivalent to or superior to the official standards whose application is appropriate in the country of origin of the Supplies.

b) The Supplier may not be liable for any design study, data, plan, specification or other document, or any modification thereof, provided or designed by or on behalf of the Buyer, by giving the Buyer notice that it disclaims its liability.

c) Where the Contract refers to the codes and standards under which it will be performed, the edition or revised version of such codes and standards shall be as specified in the Technical Specifications. During the performance of the Contract, changes to such codes and standards shall be applied only after the approval of the Purchaser and shall be dealt with in accordance with Clause 33 of the CCAG

23. Packaging and documents

23.1 The Supplier shall pack the Supplies in such a manner as is required so that they do not suffer damage or deterioration during transport to their final destination, in accordance with the provisions of the Contract. During transport, the packaging will be sufficient to withstand rough handling and extreme temperatures, salt and precipitation, and open storage in all circumstances. The dimensions and weight of the boxes will take into account, whenever necessary, the remoteness of the final destination of the supplies and the possible absence of heavy handling equipment at all stages of transport.

23.2 The packaging, marking, labelling and documentation inside and outside the crates shall be strictly in accordance with the provisions specified in the Contract and subsequent instructions, if any, pursuant to the **CCAP**, and any other instructions given by the Buyer.

24. Insurance

24.1 Unless otherwise specified by the **CCAP**, the Supplies delivered under this Procurement shall be fully insured in freely convertible currency of an eligible country against any loss or damage arising out of their manufacture or acquisition, transportation, storage and delivery in accordance with the Incoterms in force or in the manner specified in the **CCAP**.

25. Transport

25.1 Unless otherwise specified by the **CCAP**, the responsibility for the transportation of the Supplies is assumed in accordance with the specified Incoterm.

25.2 If this is stipulated **in the CCAC**, the Supplier may be required to provide any or all of the following services:

a) assembly or supervision of assembly on the Project Site or commissioning of the delivered supplies;

b) provision of the tools necessary for the assembly and/or maintenance of the supplies delivered;

c) provision of a detailed use and maintenance manual for each element of the supplies delivered;

d) operation, control, or maintenance and/or repair of the delivered supplies, for a period agreed between the parties, it being understood that this service will not relieve the Supplier of its warranty obligations under the contract; and

e) training of Buyer's personnel, at Supplier's factory and/or place of use, in the assembly, commissioning, operation, maintenance and/or repair of the supplies delivered.

25.3 The prices charged by the Supplier for the above related services, if not included in the Supply Contract Price, will be agreed in advance between the parties and will not be higher than those that the Supplier charges other customers for similar services.

26. Inspections and Testing

26.1 The Supplier shall carry out, at its own expense and free of charge to the Buyer, all tests and/or inspections relating to the supplies and related services stipulated in the **CCAP.**

26.2 Inspections and tests may be carried out at the premises of the Supplier or its subcontractor, at the point of delivery and/or at the place of final destination of the supplies or at any place in the Buyer's Country referred to in the **CCAP**. Subject to Clause 26.3 of the GCC, if the tests and/or inspections take place at the premises of the Supplier or its subcontractor, all reasonable facilities and assistance,

including access to production plans and figures, will be provided to the inspectors, at no cost to the Buyer.

26.3 The Buyer or its authorised representative shall be entitled to attend the tests and/or inspections referred to in Clause 26.2 of the GCC, provided that the Buyer shall bear all costs and expenses incurred in connection therewith, including, but not limited to, all travel, subsistence and accommodation costs.

26.4 As soon as Supplier is ready to perform such tests and inspections, Supplier shall notify Buyer with reasonable notice, including the place and date of such tests and inspections. Supplier shall obtain from any interested third party or manufacturer any necessary authorization or consent to enable Buyer or its authorized representative to attend the testing and/or inspection.

26.5 The Buyer may request the Supplier to carry out tests and/or inspections not stipulated in the Contract but deemed necessary to verify that the characteristics and operation of the supplies comply with the technical specifications, codes and standards set out in the Contract, provided that the reasonable cost to the Supplier of such additional tests and/or inspections shall be added to the Contract price. In addition, if such testing and/or inspection impedes further manufacturing and/or prevents the Supplier from fulfilling its other obligations under the Contract, due account shall be taken of this in the delivery and completion dates and in respect of the fulfilment of other obligations so affected.

26.6 The Supplier shall provide the Buyer with a report presenting the results of the tests and/or inspections carried out in this way.

26.7 The Buyer may refuse all or part of the supplies that have proved to be defective or that do not comply with the specifications. The Supplier shall make the necessary rectifications to or replace or make such modifications as may be necessary to conform to the specifications in whole or in part of the rejected supplies at no cost to the Purchaser, and shall renew the testing and/or inspection, at no cost to the Purchaser, upon giving notice in accordance with Clause 26.4 of the CCAG.

26.8 The Supplier agrees that neither the carrying out of a test and/or inspection of all or part of the supplies, nor the presence of the Buyer or its authorised representative at a test and/or inspection carried out on all or part of the supplies, nor the submission of a report pursuant to Clause 26.6 of the CCAG, exempts the Supplier from giving any warranty or performance of any other obligations stipulated in the Contract.

27. Penalties

27.1 Subject to the provisions of Clause 32 of the CCAG, if the Supplier fails to deliver any or all of the Supplies or to render the Services

provided for within the time specified in the Contract, the Buyer, without prejudice to any other remedies it has under the Contract, may deduct from the Contract price, by way of penalties, an amount equal to the percentage stipulated in the **CCAP** applicable to the delivery price of the Supplies delivered late or related Services not performed, for each week or part of a week of delay, until the actual delivery or performance, up to a maximum amount corresponding to the percentage of the Contract price indicated in the **CCAP**. Once this maximum has been reached, the Buyer shall have the right to terminate the Contract pursuant to Clause 35 of the CCAG.

28. Warranty

28.1 Supplier warrants that the Supplies are new and unused, are of the latest or current model, and feature all the latest design and material improvements, unless otherwise provided for in the Contract.

28.2 Subject to Clause 22.1(b) of the GCC, the Supplier further warrants that the supplies will be free from any defects arising from any act or omission of the Supplier or from defects in design, materials and workmanship which may prevent their normal use under the particular conditions of the country of final destination.

28.3 Unless otherwise provided by the **CCAP**, the warranty will remain valid for twelve (12) months after delivery of all or part of the supplies, if any, to their final destination indicated in **CCAP**, as specified in the Contract or eighteen (18) months after the date of shipment from the port or place of loading in the country of origin; the earliest period shall be taken into account for the purposes of this clause.

28.4 The Buyer shall notify the Supplier of any complaint as soon as practicable after the defects have been ascertained, indicating the nature of the defects and providing available evidence. Buyer shall give Supplier a reasonable opportunity to inspect such defects.

28.5 Upon receipt of such a claim, the Supplier shall promptly repair or replace within the time limits set forth for this purpose in the **CCAP**, defective supplies or parts, at no cost to the Buyer.

28.6 If the Supplier, after being notified, fails to remedy the defect within the time limits prescribed by the **CCAP**, the Buyer may undertake, within a reasonable period of time, at the Supplier's risk and expense, any necessary remedies, without prejudice to any other remedies available to the Supplier under the Contract.

29. Patents

29.1 Provided that the Buyer complies with Clause 29.2 of the CCAG, the Supplier shall indemnify and hold harmless the Buyer, its employees and directors, against any and all legal proceedings, actions or administrative proceedings, damages, claims, losses, penalties and costs of any kind, including attorneys' fees, which may be brought or incurred by the Buyer as a result of any actual or alleged infringement of

any patent, utility model, registered design, trademark, copyright or intellectual property rights registered or in force on the date of the Contract, due to:

a) the installation of the Supplies by the Supplier or the use of the Supplies in the country where the Site is located; and

b) the sale in any country of the goods produced by means of the Supplies.

This indemnification obligation shall not cover any use of the supplies or any part of the supplies for purposes other than those set out in the Contract or which can reasonably be inferred from it, and shall not cover any breach that is due to the use of the supplies or any part of the supplies or goods produced by means of the supplies, in association or combination with any other equipment, facilities or materials not supplied by the Supplier in accordance with the Contract.

29.2 In the event that any proceedings or claims are brought against the Buyer in the context of Clause 29.1 of the CCAG, the Buyer shall forthwith notify the Supplier by giving notice to that effect, and the Supplier may, at its own expense and on behalf of the Buyer, conduct such proceedings or the settlement of such claim, and any negotiations to settle such proceedings or claims.

29.3 If Supplier fails to notify Buyer, within twenty-eight (28) days of receipt of notice, that it intends to conduct such proceeding or claim, Buyer shall be free to do so on its own behalf.

29.4 Buyer shall, if requested by Supplier, give Supplier all available assistance in the conduct of the proceedings or settlement of the claim, in which case Supplier shall reimburse Buyer for all reasonable costs incurred by Buyer in doing so.

29.5 Buyer shall indemnify and hold harmless Supplier, its employees, directors and subcontractors, from and against any and all legal suits, actions or administrative proceedings, damages, claims, losses, penalties and costs of any kind, including attorneys' fees, which may be brought or incurred by Supplier as a result of any actual or alleged infringement of any patent, utility model, registered design, trademark, copyright, or intellectual property rights registered or in force as of the date of the Contract, in respect of plans, data, drawings, specifications, or other documents or materials furnished or designed by or on behalf of Buyer.

30. Limitation of Liability

30.1 Except in cases of gross negligence or wilful misconduct:

a) Neither party shall be liable to the other for any indirect or consequential loss or damage, loss of use, loss of production

or loss of profits or financial charges, provided that this exception shall not apply to any of the Supplier's obligations to pay penalties to the Buyer;

b) The aggregate liability that the Supplier may assume to the Buyer under the Contract or under civil or other liability shall not exceed the amount of the Contract, provided that this limitation of liability shall not apply to the cost of repairing or replacing defective equipment, nor to the obligation of the Supplier to indemnify the Buyer in the event of patent infringement.

31. Changes to Acts and Regulations

31.1 Unless otherwise provided by the Contract, if after the date corresponding to 28 days prior to the date of submission of tenders, any local law, regulation, decree, order or regulation having the force of law is adopted, promulgated, repealed or amended in the place in the Buyer's Country where the site is located (including any change in the interpretation or application of such text by the competent authorities) in a manner which affects the the delivery date and/or the Contract price, the said delivery date and/or the said Contract price shall be revised upwards or downwards as the case may be, to the extent that the Supplier has been affected thereby in the performance of any of its obligations under the Contract. Notwithstanding the above, the surcharge or cost reduction will not be paid or credited separately if such surcharge or reduction has already been reflected in the price review provisions as required, in accordance with Clause 15 of the CCAG.

32. Force majeure

32.1 The Supplier shall not be exposed to the seizure of its performance bond, penalties or termination of the Contract for non-performance if, and to the extent that, its delay or any other failure to perform its obligations under the Contract is due to a case of Force Majeure.

32.2 For the purposes of this Clause, the term "Force Majeure" means an event beyond the control of the Supplier, which is not attributable to its fault or negligence and which is unforeseeable and unavoidable. Such events may include, but are not limited to, acts of Buyer under state sovereignty, wars and revolutions, fires, floods, epidemics, quarantine measures and embargo on cargo.

32.3 In the event of Force Majeure, the Supplier shall notify the Buyer without delay in writing of the existence of such Force Majeure and the reasons for it. Subject to instructions to the contrary, in writing, from the Buyer, the Supplier shall continue to fulfil its contractual obligations to the extent possible, and shall endeavour to continue to fulfil those obligations the performance of which is not hindered by the Force Majeure Event.

33. Change Orders and Contract Amendments

33.1 The Buyer may at any time request the Supplier, by notification, in accordance with the provisions of Clause 8 of the CCAG, to make changes within the general framework of the Contract, in one or more of the following areas:

a) plans, designs or specifications, where the supplies to be delivered under the Contract are to be manufactured specifically for the Buyer;

b) the method of shipping or packaging;

c) the place of delivery; and

d) related Services to be provided by Vendor.

33.2 If any of the above changes result in an increase or decrease in the cost or time required for the Supplier to perform any part of the Contract, the Contract price and/or the delivery/completion schedule will be changed in an equitable manner and the Contract will be amended accordingly. Any request for adjustment by Supplier under this clause shall be filed within twenty-eight (28) days of the date of receipt by Supplier of the change order issued by Buyer.

33.3 The price charged by the Supplier for the provision of any ancillary services that may be required but not included in the Contract shall be agreed in advance by the parties and shall not exceed the rates charged by the Supplier to other parties for similar services.

33.4 **Value Analysis**: The Supplier may prepare, at its own expense, a proposal based on the value analysis at any time during the performance of the Contract. The value-based proposal will include, at a minimum, the following information:

(a) the proposed change(s), and a description of the differences with the requirements of the Contract;

(b) a comprehensive analysis of the costs and benefits of the proposed change(s), including a description and estimate of the costs (including operation and maintenance costs) that may be incurred by the Buyer if it accepts the proposal; and

(c) a description of any impact(s) of the change on performance or functionality.

The Purchaser may accept the value-based proposal in the event that the proposal has one or more of the following benefits:

(a) accelerate the time frame for completion, or

(b) reduce the cost to the Purchaser over the useful life,

(c) improve the quality, efficiency, safety or sustainability of facilities, or

(d) produce any other benefit to the Buyer,

without compromising the necessary functionality of the facilities.

In the event that the proposal based on the value analysis is approved by the Buyer and has the effect of:

(a) reduce the Contract Amount, the amount payable to the Supplier shall be the percentage set out **in the SMCC** of the reduction in the Contract Amount; or

(b) increase the Contract Amount, but reduce future costs to Buyer as a result of any benefit described in (a) through (d) above, the amount payable to Supplier shall be the entire increase in the Contract Amount.

33.5 Subject to the above provisions, no variation or modification of the terms of the Contract shall be made other than by a written amendment signed by the parties.

34. Extension of time limits

34.1 If at any time during the performance of the Contract, the Supplier or its subcontractors encounter a situation which prevents them from providing the related services within the time limits set out in Clause 13 of the GCC, the Supplier shall promptly notify the Buyer of the delay in writing, its likely duration and the reason for it. As soon as possible after receipt of the Supplier's notification, the Buyer shall assess the situation and may, at its discretion, extend the time limits for the Supplier to perform the Contract, in which case the extension shall be ratified by the parties, by way of an amendment to the contract.

34.2 Except for the Force Majeure Event referred to in Clause 31 of the CCAG, a delay on the part of the Supplier in performing its obligations will expose the Supplier to the application of one or more of the penalties provided for in Clause 27 of the CCAG, unless an extension of time has been granted under Clause 34.1 of the CCAG.

35. Termination

35.1 Termination for non-performance

a) The Purchaser may, without prejudice to any other remedies it may have in the event of breach of contract, notify the Supplier in writing of the termination for non-performance of all or part of the Contract:

i) if the Supplier fails to deliver any or all of the supplies within the time periods specified in the Contract or within the time periods extended by the Buyer in accordance with the provisions of Clause 34 of the CCAG; or

ii) if the Supplier fails to perform any other obligations under the Contract.

iii) If the Supplier, in the opinion of the Buyer, has engaged in Fraud and Corruption practices, as defined in paragraph 2.2 (a) of Annex 1 of the CCAG, at the stage of its selection or at the time of the termination of the Contract.

b) In the event that the Purchaser terminates all or any part of the Contract, pursuant to the provisions of Clause 35.1(a) of the CCAG, the Purchaser may acquire, on such terms and in such manner as it deems appropriate, supplies or related services similar to those not received or not performed and the Supplier shall be liable to the Purchaser for any additional costs resulting therefrom. However, the Supplier will continue to perform the Contract to the extent that it is not terminated.

35.2 Termination for insolvency

a) The Buyer may at any time terminate the Contract by written notice to the Supplier if the Supplier is declared bankrupt or becomes insolvent. In such event, termination shall be without compensation to Supplier, provided, however, that such termination shall not prejudice or affect any rights or remedies that Buyer may have or hereafter have.

35.3 Termination for convenience

a) The Buyer may at any time terminate all or part of the Contract by written notice to the Supplier for convenience. The notice of termination will specify that the termination is unilaterally for convenience, the extent to which the performance of the tasks stipulated in the Contract is terminated and the date on which the termination takes effect.

b) Buyer shall take delivery, at Contract prices and terms, of the completed and ready for shipment Supplies within twenty-eight (28) days of Supplier's receipt of notice of termination. With respect to the remaining supplies, the Purchaser may decide:

i) to have any part of such supplies completed and delivered at the prices and conditions of the Contract; and/or

ii) cancel the remainder and pay to Supplier an agreed amount for partially completed Supplies and Related Services and materials already procured by Supplier.

36. Assignment

36.1 Unless the other party has received the prior written consent of the other party, neither the Buyer nor the Supplier will assign any or all of its contractual obligations under the Contract.

37. Restrictions d'exportation

37.1 Notwithstanding any obligation to undertake export formalities under the Procurement, any export restriction attributable to the Buyer, to the Buyer's Country, or to the use of the goods or services to be supplied, where such export restrictions result from the application of the trade regulations of a country supplying such goods or services, and if such restriction impedes the Supplier in the performance of its contractual obligations, the Supplier shall not be required to meet its obligations to provide the goods or services. However, this is on the express condition that the Supplier is able to demonstrate, to the satisfaction of the Buyer and the Bank, that it has diligently completed all required formalities, including the application for any permits, authorization(s) and license(s) necessary for the delivery of the goods or services under the Contract. The termination of the Contract in this context will be pronounced for convenience by the Buyer in accordance with Clause 35.3 of the CCAG.

Appendix 1
Fraud and Corruption

[*Do not modify the text of this Annex.*]

1. Purpose

1.1 The Bank's Anti-Corruption Guidelines and this section are applicable to procurement in the context of the Bank's Investment Project Finance Operations.

2. Requirements

2.1 The Bank requires, as part of the procurement process it finances, to require Borrowers (including beneficiaries of its financing) as well as bidders (candidates/proposers), suppliers, service providers, contractors and their agents (whether declared or undeclared), staff, subcontractors and suppliers to observe, in the award and performance of such contracts, the strictest rules of professional ethics and to refrain from fraud and corruption practices.

2.2 Under this principle, the Bank

(a) for the purposes of this provision, defines the following terms as follows:

(i) is guilty of «corruption» directly or indirectly offers, gives, solicits or accepts any advantage for the purpose of improperly influencing the actions of another person or entity;

(ii) Delivers "fraudulent schemes" means anyone who acts, or misrepresents facts, deliberately or through gross negligence, or attempts to mislead a person or entity in order to obtain a financial or other benefit, or to evade an obligation;

(iii) "Collusive practices" are persons or entities who agree to achieve an unlawful objective, including by improperly influencing the actions of other persons or entities;

(iv) engages in "coercive tactics" means anyone who harms or harms, or threatens to harm or harm, directly or indirectly, a person or their property with a view to improperly influencing the actions of that person or entity; and

(v) and engages in "obstructive manoeuvres"

(a) who deliberately destroys, falsifies, alters or conceals the evidence on which an investigation of corruption or fraudulent, coercive or collusive practices is based, or makes false statements to its investigators intended to obstruct its investigation; threatening, harassing or intimidating anyone in order to prevent them from sharing information about this investigation, or from continuing the investigation; or

(b) who wilfully interferes with the Bank's exercise of its right of review as set out in paragraph (e) below; and

(b) reject the proposal for the award of the contract if it establishes that the tenderer to whom it is recommended to award the contract is guilty of corruption, directly or

through an agent, or has engaged in fraudulent, collusive, coercive or obstructive tactics with a view to obtaining the contract;

(c) in addition to the enforcement measures set out in the Financing Agreement, may decide on other appropriate actions, including declaring the procurement non-compliant if it determines, at any time, that the representatives of the Borrower or a beneficiary of the financing engaged in bribery or fraudulent, collusive, coercive or obstructive practices during the procurement procedure or the performance of the contract without the Borrower having taken, in a timely manner and to the satisfaction of the Bank, the measures necessary to remedy the situation, including by failing to inform the Bank when it became aware of such practices;

(d) sanction a company or individual, within the framework of the Bank's Anti-Bribery Guidelines and in accordance with the applicable sanctions rules and procedures of the Bank Group, including by publicly declaring the exclusion of the company or individual for an indefinite or specified period of time (i) from the award of a Bank-financed contract or from being able to benefit financially or in any other way from it, [17] (ii) from participation[18] as a subcontractor, consultant, manufacturer or supplier of goods or designated service provider of an undertaking otherwise eligible for the award of a contract financed by the Bank; and (ii) the benefit of the disbursement of funds from a loan from the Bank or to participate in any other way in the preparation or implementation of a project financed by the Bank;

(e) require that tender documents and contracts financed by the Bank contain a provision requiring bidders (candidates/proposers), consultants, suppliers and contractors, subcontractors, service providers, suppliers, agents, and their staff to authorize the Bank to inspect accounting [19] documents and records and other documents relating to the procurement, selection and/or performance of the contract and to submit them for audit to auditors appointed by the Bank.

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[17] For the avoidance of doubt, the effects of such a sanction on the party concerned concern, but are not limited to, (i) the submission of an application for pre-qualification, the expression of interest for a consultancy assignment, and the participation in a call for tenders directly or as a subcontractor, consultant, manufacturer or supplier, or service provider in the context of such a contract, and (ii) the conclusion of an amendment or addendum containing a material amendment to an existing contract.

[18] A designated subcontractor, consultant, manufacturer or supplier of goods or services (different titles are used depending on the wording of the tender documents) is a company or individual who (i) is part of the bidder's pre-qualification request or offer taking into account the specific and essential experience and know-how it brings to meet the qualification conditions for a given bid; or (ii) has been designated by the Borrower.

[19] The inspections carried out in this context are verifications on the basis of documents due to their nature. They include documentary and factual research activities undertaken by the Bank, or persons designated by it, in order to verify specific aspects of an investigation or audit, such as the assessment of the veracity of a possible accusation of Fraud and Corruption, by means of appropriate mechanisms. Such activities may include, without limitation, accessing and reviewing financial records of a business or person, making copies of such records as necessary, accessing and reviewing any other documents, data and information (in printed or electronic form) deemed relevant to the investigation or audit, make copies of these documents as required, interview staff and other persons, conduct physical inspections and site visits, and obtain third-party verification of information.

ANNEX 2
EAS and/or HS Statement for Subcontractors

[The table below must be completed by each Subcontractor proposed by the Supplier, who has not previously been named in the Contract.]
Processor Name: [insert full name]
Date: [insert day, month, year]
Contract No. and Title: [insert Contract number and title]
Page [insert page number] on [insert total number] pages

EAS and/or HS declaration **in accordance with Section III, Qualification Criteria, and the Requirements**
We: (a) have not been disqualified by the Bank for non-compliance with SEA/HS obligations (b) have been disqualified by the Bank for non-compliance with SEA/HS obligations (c) have been disqualified by the Bank for non-compliance with the SEA/HS obligations. An arbitration decision on the disqualification case was rendered in our favour.
[If (c) above is applicable, attach evidence of an arbitral award reversing the findings on the issues underlying the disqualification.]

Name of Subcontractor_____

Name of the person duly authorized to sign on behalf of the Subcontractor_____

Title of the person signing on behalf of the Subcontractor_____

Signature of the person named above_____

Signature date_____

Countersignature of Vendor's authorized representative:

Signature : _____

Signature date_____

Section IX. Special Administrative Clauses (CCAP)

The Special Administrative Clauses (CCAC) supplement and/or modify the General Administrative Clauses (CCAG). In the event of a contradiction, the following clauses shall prevail over the clauses of the CCAG.

[Buyer selects and inserts appropriate text using the examples provided below or alternative acceptable text; and removes the text in italics]

CCLW 1.1 (i)	The country of the Buyer is: **Democratic Republic of Congo**
CCLW 1.1 (j)	The Buyer is: **Water Project Implementation Unit (CEP-O)**
CCLW 1.1 (o)	The Project site or final destination is: • **REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Gombe, Ngaliema, etc.** • **REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/Pilot areas: Commune of Kananga, Katoka, Lukonga, Ndesha, Nganza and the Ntambwe mission.**
CCLW 1.1 (p)	The term SEA/HS when used in the Market has the following meanings: • "Sexual Exploitation and Abuse (SEA) encompasses the following meanings: "Sexual Exploitation" (SE), defined as the abusing or attempting to abuse a state of vulnerability, differential power, or trust for sexual purposes, including, but not limited to, profiting monetarily, socially, or politically from the sexual exploitation of another person; "Sexual Abuse" (SA), defined as any physical intrusion or threat of physical intrusion of a sexual nature, either by force or under unequal conditions or by coercion; • "Sexual Harassment" (HS) is defined as any inappropriate sexual advance, request for sexual favors, or other verbal or physical behavior with sexual connotations by Vendor personnel toward other Vendor or Buyer personnel.
CCLW 4.2 (a)	Trade terms shall have the meanings prescribed by the Incoterms. If the meaning of a trade term, and if the rights and obligations of the parties are not prescribed by the Incoterms, they shall be prescribed by:

CCLW 4.2 (b)	La version des Incoterms sera : **Incoterms 2020**
CCLW 5.1	The language will be: **French**.
CCAG 8.1	For the purposes of **notification**, the Buyer's address shall be: Attn: **Philippe LUMEKA DITALUA** **Water Project Implementation Unit, CEP-O,** Located at 22007, Route de Matadi, Binza – Ozone, Commune of NGALIEMA Kinshasa / Democratic Republic of Congo Tel.: (+243) 978 254 141, (+243) 823 636 173 E-mail address: cepo@cepordc.com
CCLW 9.1	The applicable law shall be that of: **the Democratic Republic of Congo**
CCAG 10.2	The rules of the arbitration procedure, in accordance with CCAG Clause 10.2, shall be as follows: **a) Contract with a Foreign Supplier:** Any dispute, dispute, or claim arising out of or related to this Market, or any breach, termination, or invalidity of this Market, shall be resolved by arbitration under the UNCITRAL arbitration procedures as in force at this time. **b) Contract with a National Supplier in the Supplier's country:** In the event of a dispute between the Buyer and a Supplier who is a national of the Buyer's country, the dispute will be adjudicated or arbitrated in accordance with the legislation of the Democratic Republic of Congo.
	If the Buyer chooses the Rules of the Arbitration Institute of the Stockholm Chamber of Commerce, the following clause, for example, may be inserted: "CCAG 10.2 (a) Any dispute, dispute, or claim arising out of or in connection with this Contract, or any breach, termination, or invalidity of this Contract, shall be resolved by arbitration pursuant to the procedures of the Arbitration Institute of the Stockholm Chamber of Commerce.";**or** ***If the Buyer chooses the Rules of the London Court of International Arbitration, the following clause, for example, may be inserted:*** "CCAG 10.2 (a) Any dispute arising out of or in connection with this Contract, including any question concerning its existence, validity or termination, shall be referred to the London Court of International Arbitration and ultimately resolved by arbitration in accordance with the Rules of the London Court of International

	Arbitration, the Rules of which shall be deemed to be incorporated by reference in this clause." ***b) Contract with a National Supplier in the Supplier's Country:*** "In the event of a dispute between the Buyer and a Supplier who is a national of the Buyer's Country, the dispute shall be adjudicated or arbitrated in accordance with the law of the Buyer's Country."
CCAG 13.1	Upon shipment, the Supplier shall notify the Buyer and the insurance company of the detailed provisions relating to the shipment, namely: the contract number, the description of the supplies, the vessel, the number and date of the bill of lading, the port of loading, the date of shipment, the port of landing, etc. The Supplier shall send the following documents to the Buyer, with a copy to the insurance company: (i) 3 copies of the Supplier's invoices, describing the supplies, their quantities, their unit price and the total amount; (ii) 1 original and 3 copies of the negotiable bill of lading, net on board, marked "expenses paid" and 3 copies of the non-negotiable bill of lading; (iii) 3 copies of packing lists identifying the contents of each package; (iv) 1 certificate of insurance; (v) 1 warranty certificate from the Manufacturer or Supplier; (vi) 1 inspection certificate issued by the designated inspection service and (vii) 1 certificate of origin. The above documents are to be received by the Buyer at least one week prior to the arrival of the supplies at the port and, if not received, the Supplier shall be liable for any expenses resulting therefrom.
CCAG 14.9	Cybersecurity *"applies"*
CCAG 14.10	***Not applicable***
CCLW 15.1	The prices of Supplies delivered and related services performed **will not be subject to revision**.
CCAG 16.1	Clause 16.1 of the CCAG: The method and conditions of payment of the Supplier under this contract are: **Foreign Supplies Regulations:**

	Payment of the game in currencies will be made in **US Dollars** or any other convertible currency (i) **Payment of the Advance:** Thirty (30%) percent of the Contract price shall be paid within 30 days of the signing of the Contract, against a demand for payment, and a bank guarantee (i) in an equivalent amount (ii) valid until delivery of the Supplies and (iii) in accordance with the standard format provided in the tender document or another format acceptable to the Buyer. (ii) **When boarding:** forty (40%) per cent of the Contract price for the On-Board Supplies shall be paid by confirmed and irrevocable letter of credit credited to the Supplier in a bank in its country, against the provision of the documents specified in Clause 13 of the CCAG. (iii) **Upon acceptance:** twenty (20%) percent of the Contract price for the Delivered Supplies will be paid within thirty (30) days of receipt, against a claim accompanied by a certificate of acceptance issued by Buyer. (iv) **After receipt of the supplies installed and organization of the trainings, ten (10) percent of the price of the amount of the supplies.** **Payment for Supplies and Services from the Buyer's country:** Payment for Supplies and Services from the Buyer's country will be made in **US Dollars**, as follows: (i) **Payment of the Advance:** thirty (30%) percent of the Contract price shall be paid within 30 days of the signing of the Contract, against a receipt and bank guarantee for an equivalent amount, and submitted in accordance with the template provided in the Tender Document or in another form acceptable to the Buyer, in an equivalent amount, and in accordance with the format provided in the Tender Document or in another format acceptable to the Buyer. (ii) **On delivery:** forty (40%) percent of the Contract Price shall be paid upon receipt of the Supplies upon delivery of the documents specified in Clause 13 of the CCAG. (iii) **Upon acceptance:** the balance of twenty (20%) percent of the Contract Price shall be paid to the Supplier within thirty (30) days from the date of the Acceptance Certificate issued by the Buyer. (iv) **After receipt of the supplies installed and organization of the trainings, ten (10) percent of the price of the amount of the supplies.**
CCAG 16.5	The period beyond which Buyer will pay interest to Supplier is: **thirty (30) days**.

	The applicable late interest rate will be **the monthly rate for payments in foreign currency in proportion to the number of days of delay, based on the short-term rate of the Bank of the country of the currency, plus 1%.**
CCLW 18.1	A guarantee of good performance **is required** **The amount of the performance guarantee will be: 5% of the Market Price**.
CCAG 18.3	If required, the performance guarantee will be: **a bank guarantee**. If required, the performance guarantee will be denominated in: **a freely convertible currency acceptable to the Buyer, as a percentage of the Market Price**.
CCAG 18.4	The performance bond will be released: **pursuant to Clause 18.4 of the CCAG**
CCAG 23.2	The packaging, marking and documents placed inside and outside the boxes will be: **The supplies will be protected with adequate packaging(s) placed in <u>20-foot last-trip containers</u>, normally used for the packaging of the various supplies to be delivered. This packaging will be adapted to ensure the protection of supplies against corrosion, weathering and accidental damage, including the effects of humid or saline atmospheres.** **Supplies will be packaged to protect them during in-transit handling, road or rail transportation between the port and the final destination.** **The packaging must be suitable for export, for prolonged storage in the open air in a tropical environment. The storage period may exceed 6 months.** **The supplier is responsible for packaging in such a way that the goods reach their destination intact and undamaged.**
CCAG 24.1	The insurance will be taken out in accordance with the applicable Incoterm.
CCAG 25.1	Responsibility for the transportation of the Supplies will be as set forth in the Incoterms.
CCAG 25.2	The following related services are required: a) Mounting or Supervision of the Editing of 15% of smart meters to be acquired on the Project Site (in the assembly workshop to be provided); b) provision of the tools necessary for the assembly and/or maintenance of the supplies delivered;

	c) provision of a detailed use and maintenance manual for each element of the supplies delivered; d) operation, control, or maintenance and/or repair of the delivered supplies, for a period agreed between the parties, it being understood that this service will not relieve the Supplier of its warranty obligations under the contract; and e) training of the Buyer's personnel, four persons at the Supplier's factory and nine persons at the place of use, in the assembly, commissioning, operation, maintenance and/or repair of the supplies delivered.
CCAG 26.1	Inspections and Tests are: **prior to shipment and on-site receipt of all supplies, which will be subject to the control of the Congolese Control Office or its representative at embarkation, the inspection fee will be included in the Supplier's price**
CCAG 26.2	Inspections and tests will be carried out **to verify compliance with the required technical specifications.** **The Supplier undertakes to organise factory acceptances at the facilities of the manufacturers of supplies, which are the subject of this contract, and this, by lot, before their shipment. The reception committee will be composed of four people. Travel costs are the responsibility of the Buyer.**
CCAG 27.1	Late penalties will be: **0.5 percent of the value of late delivered supplies** per week.
CCAG 27.1	The maximum amount of late penalties will be: **5% of the Final Price of the Contract**
CCAG 28.3	The warranty period will be: **At least one year.** For security purposes, the final destination is: • **REGIDESO site of N'djili Eucalyptus of the Regional Directorate of Kinshasa-East (DRK-East), Commune of N'DJILI, city of Kinshasa/ Pilot areas: Commune of Bandalungwa, Commune of Gombe, Commune of Ngaliema,** • **REGIDESO site of the Regional Directorate of Kasai Occidental, city of Kananga/Pilot areas: Commune of Kananga, Commune of Katoka, Commune of Lukonga, Commune of Ndesha, Commune of Nganza and the Ntambwe mission.**
CCAG 28.5 & 28.6	The repair or replacement time will be: **Sixty (60)** days.
CCAG 33.4	In the event that the proposal based on the value analysis is approved by the Buyer, the remuneration paid to the Supplier, which will be included in the Contract Amount, will be **50% of the decrease in the Contract Amount**.

Appendix: Price Revision Formula (not applicable according to the DAO)

[If, in accordance with Clause 15.1 of the CCAC, prices are adjustable, the following method will be used to calculate the price revision]

The prices payable to the Supplier, as set out in the Contract, will be revised, at the time of completion of the Contract, to reflect variations in labour and material costs, using the following formula:

$$P1 = P0 \left[a + \frac{bL1}{L0} + \frac{cM1}{M0}\right] - P0$$

$$a+b+c=1$$

in which:

P1	=	adjusted amount payable to Vendor;
PO	=	Market Price (Base Price);
a	=	fixed element representing profits and overheads included in the Market price and generally in the range of five (5) to fifteen (15) percent;
b	=	Estimation of the percentage of the Market Price representing the cost of labor.
c	=	estimate of the percentage of the Market Price representing the cost of materials.
Lo, L1	=	indices applicable to the cost of labour in the industry in question in the country of origin, at the reference date and the date of revision, respectively.
Mo, M1	=indices of the main materials in their country of origin, applicable on the reference date and the date of revision, respectively,	

The coefficients a, b and c are specified by the Buyer:

a= *[insert coefficient value]*
b= *[insert coefficient value]*
c= *[insert coefficient value]*

The Bidder will indicate in its bid the source and value of the indicia as of the record date.

Reference Date = thirty (30) days before the deadline for submission of tenders.
Date of overhaul = *[insert number of weeks]* weeks prior to the date of embarkation (normally the date corresponding to the midpoint of the manufacturing period).

The above adjustment formula will be invoked by any of the parties under the following conditions:

(a) Price revisions will not be permitted beyond the original delivery date unless indicated in the letter extending the deadline. The rule is that price adjustments are not permitted for periods of delay that are entirely attributable to the Supplier. However, Buyer may benefit from any reduction in the prices of the Supplies subject to the revision.

(b) If the currency in which the Market Price is expressed is different from the original currency of the labour and material indices, a correction factor will be applied to avoid erroneous adjustments to the Market Price. This corrective factor will be: Zo/Z1, where

Z0 = number of currency units of the country of origin of the indices that equal to one unit of the market price currency on the date of reference, and

Z1 = number of units of currency of the country of origin of the indices that equal one unit of the currency of the market price on the date of Revision.

(c) The advance paid to the Supplier will not be subject to review.

Section X. Contract Forms

List of Forms

Notification of Intent to Award Template 150

Beneficial Ownership Disclosure Form 155

Letter of Notification of Contract Award 157

Deed of commitment 158

Performance Guarantee Model 160

Guarantee of Good Performance 162

Advance Refund Guarantee Model 163

NOTIFICATION OF INTENT TO AWARD TEMPLATE

[*The Notification of Intent to Award shall be addressed to each of the Bidders who have submitted a Bid, unless the Bidder has previously received notification of its exclusion from the process at an intermediate stage of the procurement process].*

[The recipient must be the Bidder's authorized representative].

Attention: Bidder's Authorized Representative
Name: *[insert name of authorized representative of the Bidder]*
Address: *[insert address of Bidder's authorized representative]*
Telephone/Fax: *[insert telephone/fax of Bidder's authorized representative]*
Email address: *[insert email address of the Bidder's authorized representative]*

[IMPORTANT: Insert the date of transmission of this Notification to all Bidders. The Notification must be sent to all Bidders simultaneously, i.e. on the same date and at the same time, as far as possible].

DATE SENT: This Notice is sent by: [*email/fax*] on [*date*] (local time).

Notification d'Intention d'Attribution

Buyer: *[insert name of Buyer]*

Title of the contract: *[insert title of the contract]*

Country: *[insert name of Buyer's Country]*

Loan No./Credit No./Grant No.: *[insert loan/credit/grant reference]*

AO No.: *[insert the number of the call for tenders with reference to the Procurement Plan]*

By this Notification of Intent to Award (the Notification) we inform you of our decision to award the above Contract. Sending the Notice marks the beginning of the Waiting Period. During this period, you can:

a) request a debriefing regarding the evaluation of your Offer, and/or

b) submit a complaint concerning the award of the contract, relating to the decision to award the contract.

1. Successful bidder

Name:	[*insert name of successful Bidder*]
Address:	[*insert address of successful Bidder*]
Market Price:	[*insert winning Bidder's Contract price*]
Total Combined Score:	[*insert the combined total score of the successful bidder*]

2. Other Bidders *[INSTRUCTIONS: insert the names of all Bidders who submitted a Bid. When the price of the Offer has been evaluated, indicate the evaluated price of each Offer, as well as the price of each Offer as read in the opening session.]*

Name of Bidder	Score Technique	Offer Price	Evaluated Bid Price	Combined Score
[insert name]	[*insert technical score*]	*[Offer Price]*	*[Evaluated Offer Price]*	[*insert combined score*]
[insert name]	[*insert technical score*]	*[Offer Price]*	*[Evaluated Offer Price]*	[*insert combined score*]
[insert name]	[*insert technical score*]	*[Offer Price]*	*[Evaluated Offer Price]*	[*insert combined score*]
[insert name]	[*insert technical score*]	*[Offer Price]*	*[Evaluated Offer Price]*	[*insert combined score*]
[insert name]	[*insert technical score*]	*[Offer Price]*	*[Evaluated Offer Price]*	[*insert combined score*]

3. Reason(s) why your Offer was not accepted

[INSTRUCTIONS: State the reason(s) why the Bid of the Bidder to whom this notification is addressed has not been accepted. Fail to provide: (a) a point-by-point comparison with a Competing Bid, or (b) information identified as confidential by the Bidder in its Bid.]

4. How to request a debriefing

DEADLINE DATE & TIME: The time and deadline to request a debriefing is midnight on [*insert date*] (local time).

You can request a debriefing regarding the results of the evaluation of your Offer. If you wish to request a debriefing, your written request must be submitted within three (3) business days of receipt of this Notification of Intent to Award.

Indicate the title of the contract, the reference number, the name of the Bidder, the details of the contract and the address for the submission of the debriefing request as follows:

Attention:
Name: *[insert person's full name]*
Title/Position: *[insert title/position]*
Agency: *[insert name of Buyer]*
Email: *[insert email address]*
Fax: *[insert No fax **omit if not used**]*

Where a request for a debriefing has been submitted within the three (3) business day period, we will grant the debriefing within five (5) business days of receipt of the request. In the event that it is not possible for us to grant a debriefing within this period, the waiting period will be extended until five (5) working days after the debriefing has taken place. In such a case, we will notify you by the fastest possible means of the extension of the waiting period and confirm the date on which the extended waiting period will expire.

The debriefing can be in writing, by phone, video-conference or in person. We will inform you in writing as soon as possible of how the debriefing will take place, confirming the date and time.

When the deadline for requesting a debriefing has expired, however, you can request a debriefing. In such a case, we will grant the debriefing as soon as possible, and normally no later than fifteen (15) working days following the publication of the notification of award of the Contract.

5. How to make a complaint

DEADLINE DATE & TIME: The time and deadline to submit a claim is midnight on [*insert date*] (local time).

Indicate the title of the contract, the reference number, the name of the Bidder, the details of the contract and the address for the submission of the debriefing request as follows:

Attention:
Name: *[insert person's full name]*
Title/Position: *[insert title/position]*
Agency: *[insert name of Buyer]*
Email: *[insert email address]*

Fax: *[insert No fax* ***omit if not used****]*

[at this stage of the procurement process] [Upon receipt of this notification], you may submit a procurement complaint about the contract award decision. You do not need to have requested or received a debriefing before submitting a claim. Your claim must be submitted during the Waiting Period and received by us prior to the expiration of the Waiting Period.

Additional information:

For more information, please refer to the Procurement Regulations applicable to Borrowers in the context of the financing of investment projects, dated July 2016 (Procurement Regulations) (Annex III). You are asked to read these documents before preparing and submitting your claim. In addition, the World Bank Recommendation " How to Make a Procurement Complaint" provides useful explanations of the process, as well as a sample letter of complaint.

In summary, the following four requirements are essential:

1. You must be an "interested party". In this case, this means a Bidder who has submitted a Bid as part of this selection process, and who is the recipient of a Notification of Intent to Award.
2. The complaint may contest the decision to award the contract exclusively.
3. The claim must be received by the deadline indicated above.
4. You must provide in the claim, all the information required by the Procurement Rules (as described in Annex III).

6. Waiting period

DEADLINE DATE & TIME: The time and expiration date of the Waiting Period is midnight on [*insert date*] (local time).

The waiting period is ten (10) business days from the date this Notification of Intent to Award is sent.

The waiting period may be extended. This could occur when we are unable to grant a debriefing within the five (5) business day time limit. In such a case, we will notify you of the extension

If you have any questions about this Notice, please contact us.

On behalf of [insert name of Buyer]:

Signature : _____

Name: _____

Title/position: _____

Telephone: _____

Email: _____

BENEFICIAL OWNERSHIP DISCLOSURE FORM

[insert title of the call for tenders]

AO No.: *[insert Tender Number]*

To: *[insert full name of Buyer]*

In response to your request in the Contract Award Notification Letter dated *[insert date of notification letter*] to provide additional beneficial ownership information: *[retain applicable option and delete non-beneficial ownership options]*

(i) we provide the following beneficial ownership information:

Identity of the beneficial owner	*directly or indirectly owns 25% or more of the shares* (Yes / No)	*directly or indirectly holds 25% or more of the voting rights* (Yes / No)	*directly or indirectly has the power to appoint a majority of the members of the Board of Directors or equivalent authority of the Bidder* (Yes / No)
[insert full name, nationality, country of residence]			

OR

(ii) we declare that there is no beneficial owner who meets at least one of the following conditions:

- directly or indirectly owns 25% or more of the shares
- directly or indirectly holds 25% or more of the voting rights
- directly or indirectly has the power to appoint a majority of the members of the Board of Directors or equivalent authority of the Bidder

OR

(iii) we represent that we are unable to identify any beneficial owner who meets at least one of the following conditions:

- directly or indirectly owns 25% or more of the shares
- directly or indirectly holds 25% or more of the voting rights
- directly or indirectly has the power to appoint a majority of the members of the Board of Directors or equivalent authority of the Bidder

Name of Bidder:* *[insert full name of Bidder]*

Name of the person authorized to sign on behalf of the Bidder:** *[insert full title/capacity of the signatory person]*

As: *[indicate signer's capacity]*

Signature *[insert signature]*

As of the _____ **day of** *[Insert date of signature]*

*In the case of a tender submitted by a consortium of undertakings, indicate the name of the consortium or its partners as the Tenderer.

**The signatory must have a power of attorney given by the Bidder, to be attached to the Bid.

LETTER OF NOTIFICATION OF CONTRACT AWARD

Date : *[date]*

To: *[name and address of the Supplier (successful Bidder)]*

Subject: **Notification No. of the Award of the ..... Contract**

Ladies and gentlemen,

This is to notify you that your bid dated *[date]* for the performance of ___ ***[insert Contract name and identification number, as in the PACC]*** for the amount of the Contract of _____ *[insert amount in numbers and letters and name of currency], as* corrected and amended in accordance with the Instructions to Bidders, is accepted by our services.

You are required to provide (i) the Performance Bond within 28 days, in accordance with the CCAG, using the Performance Security form, and (ii) additional beneficial ownership information in accordance with ITB Section 48.1 within eight (8) Business Days using the Beneficial Ownership Disclosure Form, of Section X, Contract Forms of the Tender Documents.

Please accept, gentlemen, the expression of our distinguished consideration.

[Signature, name and title of the signatory authorized to sign on behalf of the Buyer]

Attached: Deed of Commitment

DEED OF COMMITMENT

[The selected Bidder shall complete the Deed of Commitment in accordance with the indications in italics]

UNDER THIS CONTRACT, entered into on the [date] day of [month] of [year]

BETWEEN

(1) *[insert full legal name of Buyer] of [insert full address of Buyer]* (hereinafter referred to as the "Buyer") of the one part, and

(2) *[insert full legal name of Supplier]* of *[insert full address of Supplier]* (hereinafter referred to as the "Supplier"), on the other hand:

WHEREAS the Purchaser has tendered for certain Supplies and Related Services, namely *[insert brief description of the Supplies and Related Services]* and has accepted an offer from the Supplier for the delivery of such Supplies and the provision of such Related Services, for an amount equal to *[insert Contract Price expressed in the currency(ies) of settlement of the Contract]* (hereinafter referred to as the "Contract Price").

IT WAS AGREED AND AGREED AS FOLLOWS:

1. In this Contract, the words and expressions shall have the same meaning as given to them respectively in the Contract documents referred to.

2. The following documents shall be deemed to be an integral part of the Contract and to be read and construed as such. This Deed of Commitment shall prevail over any other component of the Contract.

a) the Contract Award Notification Letter
b) the Letter of Submission – Technical Part
c) the Letter of Submission – Financial Part
d) Addendum Nos. ___ (if applicable);
e) the Special Administrative Clauses;
f) the General Administrative Clauses;
g) List of Supplies, Delivery Schedule, Technical Specifications and Plans

h) completed Schedules (including Price Schedules);
i) any other document(s) listed in the CCAG as forming part of the Contract.

3. In consideration of the payments to be made by the Purchaser to the benefit of the Purchaser, as hereinafter set forth herein, the Purchaser hereby agrees with the Purchaser to deliver the Supplies and render the Related Services, and to remedy defects in such Supplies and Related Services in accordance with the provisions of the Contract in all respects.

4. Buyer hereby agrees to pay to Supplier, in consideration for the Supplies and Related Services, and any rectification of defects and deficiencies thereof, the Contract price, or any other amount due under the Contract, on such terms and in the manner prescribed by the Contract.

IN WITNESS WHEREOF the parties to this Contract have caused this document to be signed in accordance with the laws of *[insert name of country whose law is applicable to the Contract],* on the day and year hereinafter mentioned.

Signed by *[insert name and title of authorized signatory]* (for Buyer)

Signed by *[insert name and title of person authorized to sign]* (for Supplier)

PERFORMANCE GUARANTEE MODEL

Option 1: (Bank guarantee)

[At the request of the selected Bidder, the bank (guarantor) shall complete this standard performance bond in accordance with the indications in italics]

[insert name of bank and address of issuing bank]

Beneficiary: *[insert name and address of Buyer]*

Date: *[insert date]*

Performance Guarantee No. : *[insert No]*

Guarantor: *[insert name of bank, and address of issuing agency, unless on the header]*

We have been informed that *[insert name of Supplier]* (hereinafter referred to as "the Supplier") has entered into Contract No. *[insert No]* dated *[insert date]* for the supply of *[insert description of supplies and related services]* (hereinafter referred to as "the Contract").

In addition, we understand that a performance bond is required under the terms of the Contract.

At the request of the Supplier, we *[insert name of bank]* hereby unreservedly and irrevocably undertake to pay you on first demand any sums of money that you may claim up to *[insert sum in figures. The Guarantor must insert an amount representing the amount or percentage mentioned in the Contract either in the currency(ies) mentioned in the Contract, or in any other freely convertible currency acceptable to the Buyer.] [insert sum in letters]*. Your claim for payment must be accompanied by a statement that the Supplier is not in compliance with the terms of the Contract, without you having to prove or give the reasons or reason for your claim or the amount stated in your claim.

This guarantee expires on or before the *[insert date]* day of *[insert month] [insert year],* [20] and any request for payment must be received on or before that date.

This warranty is governed by the ICC Uniform Rules for On-Demand Warranties - 2010, ICC Publication No. 758, except for subparagraph 15(a)(ii) which is hereby excluded.

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[20] *The date is set in accordance with Clause 18.4 of the General Administrative Clauses ("GACC"), taking into account any technical warranty obligation of the Supplier under clause 28.2 of the CCAG/CCAP to be secured by a partial performance guarantee. The Buyer must take into account that, in the event of an extension of the duration of the Contract, it must ask the Guarantor to extend the duration of this warranty. Such a request must be made in writing before the expiry date mentioned in the warranty. When preparing the warranty, the Buyer may consider adding the following at the end of the penultimate paragraph: "Upon the written request of the Buyer, made before the expiration of this warranty, the Guarantor shall extend the duration of this warranty for a period not exceeding [six months] [one year]. Such an extension will only be granted once. »*

[Insert name and position of the person authorized to sign the guarantee on behalf of the bank]

[Insert signature]

GUARANTEE OF GOOD PERFORMANCE

Option 2: Personal and joint guarantee

Date:
Call for Bids No.:

Beneficiary: _____ [*name and address of the Buyer*]

Date: _____

Caution no. : _____

We, the undersigned_____ [*name and address of the guarantor*]
We declare that we are personally and severally liable for _____ *[indicate the name and full address of the Supplier holding the contract]* (hereinafter referred to as "the Contractor") for the amount of the performance bond to which the Contractor is subject as the holder of Contract no. _____ dated the _____ concluded with _____ [*name and address of the Buyer*], hereinafter referred to as "the Beneficiary", for the performance of _____ [*description of supplies*] (hereinafter referred to as "the Contract") concluded on _____ *[insert date of the Contract]*.

The said deposit amounts to _____[21].

We undertake to make the payment of the sums for which the Contractor would be liable under the Contract due to the non-performance of its contractual obligations, upon a request for payment by the Beneficiary sent by post with acknowledgement of receipt received no later than the expiry date mentioned below, up to the amount guaranteed above. This commitment will be reduced by half on presentation of the provisional acceptance report and will remain valid until the thirtieth day following the date of issue of the final acceptance report.

SIGNATURE and authentication of the signataire_____
_____

Name and address of the caution_____ organization

Note: The text in italics should be removed from the final document; It is provided for information purposes only in order to facilitate its preparation

[*bank guarantees directly issued by a bank of the bidder's choice in any eligible country will be eligible]*

[21] *The guarantor must insert an amount representing the amount of the Contract mentioned in the Contract either in the currency(ies) mentioned in the Contract, or in any other freely convertible currency acceptable to the Buyer.*

ADVANCE REFUND GUARANTEE MODEL

(Bank guarantee on request)

AOI No.: _____ [*Insert International Tender Number*].

Guarantor: _____ [*name of the bank and address of the issuing bank and SWIFT code*]

Beneficiary: _____ [*name and address of the Buyer*]

Date: _____

Deposit Return Guarantee No. :

We have been informed that [*name of Buyer*] (hereinafter referred to as "the Client") has entered into Contract No., with the Beneficiary dated _____ for the performance of [*name of the contract and description of the supplies*] (hereinafter referred to as "the Contract").

In addition, we understand that under the terms of the Contract, an advance in the amount of [*insert amount in numbers*] [*insert amount in words*] is paid against a guarantee of return in advance.

At the request of the Client, we, as the Guarantor, make an irrevocable commitment to pay the Beneficiary any sum up to the limit of the Guarantee Amount, which amounts to [*insert amount in figures*] [*insert sum in words*][22]. Your claim for payment must include, either in the claim itself or in a separate signed document accompanying or identifying the claim, a statement that the Principal:

(a) has used the advance for purposes other than the services covered by the Contract; or

(b) has not repaid the advance under the conditions specified in the Contract, specifying the amount not reimbursed by the Client.

Any request under this guarantee must be accompanied by a certificate from the Beneficiary's bank stating that the above-mentioned advance has been credited to the Offeror's bank account with number _____ at [*name and address of the bank*].

The amount of this guarantee will be reduced gradually by the amount of the repayments of the advance made by the Client as they appear in the monthly statements, a copy of which will be presented to us.

This guarantee shall expire on or before the earlier of the receipt of a copy of the statement showing that 90 (ninety) percent of the Contract Amount has been approved for payment, or on the

[22] *The Guarantor must insert the amount representing the amount of the advance either in the currency(ies) mentioned in the Contract for the payment of the advance, or in any other freely convertible currency acceptable to the Buyer.*

following date: ___.[23] Accordingly, any claim for payment under this Guarantee must be received by us on or before that date.

This warranty is governed by the ICC Uniform Rules for Warranties on Demand (RUGD), ICC Publication No. 758, except for subparagraph 15(a)(ii) which is hereby excluded.
.

_____
[*Signature*]

Note: The text in italics should be deleted from the final document; It is provided for information purposes only in order to facilitate its preparation

[23] *Insert the expected date for provisional acceptance. The Beneficiary (Buyer) must take into account that, in the event of an extension of the duration of the Contract, it must request the Guarantor to extend the duration of this guarantee. Such a request must be made in writing before the expiry date mentioned in the warranty. When preparing the guarantee, the Beneficiary may consider adding the following provision at the end of the penultimate paragraph of the form: "Upon written request by the Beneficiary made before the expiry of this guarantee, the Guarantor undertakes to extend the duration of this guarantee for a period not exceeding [six months] [one year]. Such an extension will be granted only once."*